CAA SERVICE REGULATIONS-2014

(REVISED VERSION-2019)

VERSION	**:**	**2.0**
DATE OF IMPLEMENTATION	**:**	**01-08-2019**
OFFICE OF PRIME INTEREST	**:**	**Human Resource Directorate (HR)**

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In exercise of the powers conferred by section 27 of the Pakistan Civil Aviation Ordinance, 1982 (XXX of 1982) read with section 12 of the said Ordinance and in supersession of the Civil Aviation Authority Service Regulations, 2000 except things done or omitted to be done before such suppression, the Civil Aviation Authority with the approval of the Board during its 179th meeting held on 01st August 2019 hereby makes the following revisions in CAA Service Regulations:-

i. **Civil Aviation Authority Employees (Appointment, Promotion, Transfer and other Service Terms & Conditions) Regulations, 2014 (Revised Version-2019)**
ii. **Civil Aviation Authority Efficiency and Discipline Regulations, 2014 (Revised Version-2019)**
iii. **Civil Aviation Authority Employees Appeal Regulations, 2014 (Revised Version-2019)**
iv. **Civil Aviation Authority (Code of Conduct) Regulations, 2014 (Revised Version-2019)**
v. **Civil Aviation Authority Employees Pay and Pension Regulations, 2014 (Revised Version-2019)**
vi. **Civil Aviation Authority Internal Job Placement Regulations, 2014 (Revised Version-2019)**
vii. **Civil Aviation Employees (Working Hour) Regulations, 2014 (Revised Version-2019)**

Secretary of the Board

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RECORDS OF AMENDMENTS AND CORRIGENDA

AMENDMENTS			
No.	Date Applicable	Date Entered	Entered by
1	01-08-2019	01-08-2019	Secretary CAA Board

CORRIGENDA			
No.	Date of Issue	Date Entered	Entered by

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CIVIL AVIATION AUTHORITY EMPLOYEES (APPOINTMENT, PROMOTION, TRANSFER AND OTHER SERVICE TERMS AND CONDITIONS) REGULATIONS, 2014 (REVISED VERSION-2019)

REG-001-HRXX-2.0 - In exercise of the powers conferred by section 27 of the Pakistan Civil Aviation Authority Ordinance, 1982 (XXX of 1982) read with section 12 of the said Ordinance and in suppression of the Civil Aviation Authority Service Regulations, 2000 except things done or omitted to be done before such suppression, the Civil Aviation Authority with the approval of the Board hereby makes the following regulations governing the appointment, promotion, transfer and other service terms and conditions of its employees, namely:-

1. SHORT TITLE, EXTENT, APPLICATION AND COMMENCEMENT:

(1) These regulations will be called as the Civil Aviation Authority Employees (Appointment, Promotion, Transfer and Other Service Terms and Conditions) Regulations, 2014 (Revised Version-2019).

(2) These Regulations shall apply to all employees of the Authority.

(3) For the officer on deputation, the service shall be subject to conditions agreed between the Authority and the lending organization.

(4) For contract appointments, the service shall be subject to such terms and conditions as determined by the Authority.

(5) These Regulations shall come into force at once.

2. DEFINITIONS:

(1) Unless there is anything repugnant in the subject or context;

a. **"Appointment"** includes all appointments whether by recruitment, selection, promotion and posting[1] otherwise than by deputation or contract made in accordance with the prescribed procedure;

b. **"Authority"** means the Authority constituted under Section 3 of the Ordinance;

c. **"Board"** means the Board established under Section 7 of the Ordinance;

d. **"Cadre"** means a part of an Establishment declared by the Authority which may include one or more posts in different pay groups at different levels, the incumbents of which are eligible for promotion by seniority and / or selection, as the case may be, when vacancies of higher posts occur in the same part of the Establishment.

e. **"Cadre seniority"** means the relative position of an employee in the cadre to which he belongs;

f. **"Common seniority"** means the relative position of an employee amongst all the employees of the same pay group under the common seniority list**;**

g. **"Consultant"** means an individual, organization, firm, body, etc. whether incorporated or not, engaged for rendering services on terms and conditions governed by a contract;

h. **"Contract employee"** means a person, engaged for rendering service for a specified period on terms and conditions governed by a contract;

[1] clause (a) substituted vide by the CAA Board in its 179th Board Meeting held on August 1, 2019

i. **"Competent Authority"** means the appointing authority duly designated by the Authority;

j. **"Common seniority list**" in relation to any pay group means the seniority list of employees of that pay group serving in all cadres;

k. **"CAA Pay Group"** means the pay group applicable to employees of the Authority;

l. **"Duty"** means functions performed by an employee on a post whether temporary or permanent and includes.-

i. service as a probationer; or
ii. period of joining time; or
iii. period of authorized training; or
iv. period spent on official visit / tour; or
v. period spent on duly authorized leave; or
vi. any kind of work to be declared as duty by the Competent Authority.

m. **"Director General"** means the Director General of the Authority**;**

n. **"Employee"** means any person appointed by the competent authority;

o. **"Establishment"** means overall strength of posts in all cadres as sanctioned by the Authority from time to time;

p. **"Family"** means spouse[s] of the employee, his parents and children;

q. **"Form"** means the Forms appended to the Schedule;

r. **"Gender and Number"** in these Regulations means;

i. words importing the masculine gender shall be taken to include the feminine; and

ii. words in singular shall include the plural and the words in plural shall include the singular.

s. **"Government"** means the Federal Government;

t. **"Initial appointment or recruitment"** means appointment made except by promotion or deputation[2];

u. **"Interpretation committee"** means committee headed by Director General including Additional Director General, Director Human Resource, Director Finance, Director Legal as its members and / or such other member[s] as prescribed by the Authority[3];

v. **"Leave"** means the absence from duty with the approval of the leave sanctioning authority;

w. **"Ordinance"** means the Pakistan Civil Aviation Authority Ordinance, 1982 (XXX of 1982);

x. **"Officer on deputation"** means an officer whose services have been borrowed from the Federal Government, a Provincial Government, agency, department, organization etc.;

y. **"Post"** means a vacancy / position created in the cadre within the approved establishment of the Authority;

z. **"Posting"** means the movement of an employee from one post or office to another post or office in pursuance of a posting order issued by a Competent Authority;

aa. **"Permanent post"** means a post sanctioned by the Authority without prescribed time limit;

bb. **"Probation"** means any period of employment before confirmation in the service of the Authority or on a post, in case of promotion;

cc. **"Probationer"** means an employee appointed by the Authority who has not been confirmed;

[2] clause (t) substituted by the CAA Board in its 179th Board Meeting held on August 1, 2019
[3] clause (u) substituted ibid

dd. **"Promotion"** means appointment of an employee to a higher pay group in the service or cadre to which he belongs;

ee. **"Prescribed"** means rules prescribed under these Regulations;

ff. **"Regular employee"** means a permanent employee who has been confirmed after completing the probation period successfully;

gg. **"Schedule"** means the Schedule prescribed under these Regulations;

hh. **"Service"** means service rendered by an employee in the Authority;

ii. **"Selection Board"** means Boards constituted by the Authority for the purpose of appointment, promotion or transfer;

jj. **"Temporary employee"** means an employee who has been appointed against a temporary post sanctioned for a specific period or appointed on temporary basis against a permanent post;

kk. **"Temporary post"** means a post other than a permanent post;

ll. **Omitted[4].**

(2) The words and expressions used in these Regulations but defined in the Ordinance or the rules and regulations for the time being in force shall have the same meaning respectively assigned to them in the Ordinance or the rules and regulations as the case may be.

3. INTERPRETATION:

Wherever a clarification is required, the interpretation committee shall be the final authority for the interpretation of these Regulations and for all supplementary instructions and orders issued in connection with these Regulations.

[4] clause (ll) omitted ibid

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Chapter I

TERMS AND CONDITIONS OF SERVICE

4. SERVICE CONDITIONS:

(1) Service terms and conditions of every employee shall be governed by these Regulations.

(2) All employees in service, before commencement of these regulations, shall be deemed to have been appointed under these regulations and service render by them shall be counted for purpose of service benefits.

5. CLASSIFICATION OF SERVICE:

(1) The service shall be classified into operational and general cadres.

(2) The service shall be classified into operational and general cadres as specified by the Authority[5].

6. CLASSIFICATION OF POSTS:

(1) All posts of Authority shall be classified into Groups in accordance with the TABLE I & II[6] given below.-

TABLE I

Group	CAA Pay Group	Designation / Post	Length of Service
Support Staff	SG-01	Junior Staff	5 years
	SG-02	Staff	5 years
	SG-03	Senior Staff	5 years
	SG-04	Head Staff [nomenclatures of respective cadres]	5 years
Technical & Administration Staff	SG-05	Assistant Grade II	5 years
	SG-06	Assistant Grade I	5 years
	SG-07	Supervisor Grade II	5 years
	SG-08	Supervisor Grade I	5 years
	SG-09	Superintendent Grade II	5 years
	SG-10	Superintendent Grade I	5 years
	SG-11	Senior Superintendent / Deputy Assistant Director	

[5] Regulation 5 (2) substituted by the CAA Board in its 179th Board Meeting held on August 1, 2019
[6] sub clause (1), Table shall be substituted by Table I & II ibid

TABLE II

Group	CAA Pay Group	Designation/ Post	Length of Service
Executive	EG-01	Assistant Director / ATCO Grade II	3 years
	EG-02	Senior Assistant Director / ATCO Grade I	3 years
	EG-03	Deputy Director / SATCO Grade II	3 years
	EG-04	Senior Deputy Director / SATCO Grade I	3 years
	EG-05	Joint Director / CATCO Grade II	3 years
	EG-06	Senior Joint Director / CATCO Grade I	3 years
	EG-07	Additional Director / PATCO Grade II	3 years
	EG-08	Senior Additional Director / PATCO Grade I	3 years
	EG-09	Director / EATCO	3 years
	EG-10	Deputy Director General[s] / Senior Directors	4 years
--	EG-11	Additional Director General	
--		*Director General	--

(2) Provided that the criterion of classification under clause (1) shall be applicable to all operational or general posts.

(3) The Authority may, from time to time, create or abolish such number of posts as it may deem necessary for its functions under the Ordinance.

(4) The Authority may also, from time to time, revise its establishment subject to the strength of employees necessary for its functions under the Ordinance. Provided that any project post[s] created for execution of any development, operation, maintenance, etc. scheme/ arrangement shall not be construed as revision of the establishment[7].

(5) Director General shall be the Executive Head of the organization appointed by Federal Government.

(6) The Pay Groups of Director General and Deputy Director General may be determined by the Competent Authority

7. COMPETENT AUTHORITY:

(1) The Competent Authority to make appointment by recruitment and promotion to post[s] in different pay groups shall be as follows:-

TABLE-I[8]

Sr. No.	CAA Pay Group	Competent Authority
1.	EG-09 and above	Chairman of the Board
2.	EG-01 to EG-08 and equivalent	Director General
3.	SG-01 to SG-11 and equivalent	Director Human Resource

[7] sub -regulation (4), substituted ibid
[8] TABLE I substituted ibid

(2) Omitted[9].
(3) Omitted[10].

TABLE – II Omitted [11]

(4) Omitted[12].

(5) Notwithstanding the above the Authority may use any other nomenclature for designations assigned to its employees under these Regulations.

8. REGULAR APPOINTMENT IN SERVICE:

(1) The Authority shall make appointments in its service by;

(a) Recruitment;
(b) Selection[13]

(1A) Notwithstanding the above, the appointments on project post[s] shall not be construed, as a regular appointment in service of the Authority, unless the incumbent is a regular employee of the Authority.

(1B) Two or more employees shall not be appointed substantively to the same permanent post at the same time.

(1C) An employee shall not be appointed substantively to a post on which another employee holds a lien, unless the lien on such post has been discharged[14].

(2) The method of appointment and other conditions have been prescribed in Schedule I.

(3) The Authority may amend or modify the Schedule from time to time subject to the requirements of the post.

(4) Provided that such amendment(s) or modification(s) shall be made to improve and further strengthen the prescribed conditions under Schedule I.

9. PROCEDURE FOR ASSESSING RECRUITMENT REQUIREMENT:

(1) The Human Resource Directorate, in consultation with the concerned Directorate shall carry out an assessment for recruitment against the posts falling vacant in induction pay groups due to.-

a. retirement; or
b. death; or
c. promotion; or
d. voluntary retirement; or
e. removal or dismissal from service; or
f. compulsory retirement; or
g. selection under internal job placement regulations; or
h. upon creation of new post[s] by the Authority; or

(2) Notwithstanding anything contained in clause (1), any Directorate may also send to the Human Resource Directorate its recruitment requirement with a reasonable justification.

(3) In case the Human Resource Directorate is of the opinion that recruitment under clause (1) and (2) is necessary to or ancillary to operational functions of the Authority it shall initiate the process immediately with the approval of the Competent Authority.

[9] Regulation 7(2) omitted ibid
[10] Regulation 7(3) omitted ibid
[11] TABLE II omitted ibid
[12] Regulation 7(4) omitted ibid
[13] Regulation 8(1) substituted ibid
[14] New sub regulation (1A), (1B) &(1C) add ibid

(4) The Human Resource Directorate shall carry out a periodic assessment for recruitment either on its own or in consultation with the concerned Directorate.

(5) The Human Resource Directorate on being satisfied after the assessment under above clauses that requirement exists, shall initiate the recruitment process with the approval of the Competent Authority.

10. INITIATION OF RECRUITMENT PROCESS:

(1) The Human Resource Directorate shall initiate the process of recruitment through advertisement in newspapers having nationwide circulation.

(2) The advertisement shall clearly include.-

a. the required eligibility criteria for such appointment;
b. the terms and conditions of acceptance and rejection of application;
c. the requirement to verify degree / certificate through respective educational or technical institute or university as the case may be;
d. the deadline for submission of application; and / or
e. any other details as prescribed by the Authority.

11. APPLICATIONS:

(1) All applications received on or before the prescribed or extended date, if any, shall be entered in the record in chronological order by the Human Resource Directorate.

(2) In case of more than one post the Human Resource Directorate shall maintain separate record of each post subject to the condition under clause (1).

(3) The Human Resource Directorate shall facilitate the online submission of applications. Provided that the interested candidate may submit his application on the electronic – form or through courier or postal service.

(4) All candidates shall be allowed to amend or add any information that has been submitted online before the application submission deadline.

(5) All applications shall be subject to a screening process as prescribed by the Authority, from time to time. After screening process, test and assessment of shortlisted candidates shall be conducted by the Human Resource Directorate and / or any consultant employed for such purpose.

(6) The test results compiled by the Human Resource Directorate shall remain confidential.

12. INTERVIEW:

(1) The Human Resource Directorate shall issue formal letters for calling candidates for interview who have qualified the test.

(2) Interview under clause (1) shall be processed by the Human Resource Directorate on the prescribed date and venue.

(3) The panel for conducting interviews shall be constituted by the Human Resource Directorate with the approval of the Competent Authority subject to the nature of the advertised post.

(4) The panel shall conduct interviews and prepare a merit list[s] of candidates who are eligible for recruitment subject to conditions of advertised post[s].

13. CANDIDATES TO BE RECOMMENDED:

(1) The Director Human Resource shall forward the merit list of eligible candidates to the concerned Selection Board as prescribed under these Regulations.

(2) The concerned Selection Board shall evaluate the merit list, test and interview results, screening report, along with the proof of qualification, experience, age, etc. that shall be the primary consideration for recommendation.

(3) The Selection Board based on its evaluation under clause (2) shall recommend the most suitable candidates, for appointment, to the Competent Authority.

(4) Provided that the Selection Board after evaluation under clause (2) may change the order of merit list as proposed by the panel upon considering that.-

a. Proof of qualification, experience, age, etc. are insufficient or incorrect;
b. Non satisfactory certificate of character and antecedents;
c. Record or documents of candidate are based on misrepresentation; or
d. After re-verification of any degree or certificate if found to be fake or forged.

(5) If the re-verification under clause (4) (d) is causing delay, the Selection Board may forward its recommendations to the Competent Authority.

(6) If the Competent Authority decides to appoint a candidate whose re-verification is pending, such appointment shall remain temporary[15] subject to the outcome of the verification report.

(7) The merit list shall be arranged in the order of merit and in case of candidates of equal merit their names shall be arranged in the order of seniority in age.

14. CONSTITUTION OF SELECTION BOARD:

(1) The Authority shall constitute such Selection Boards for recruitment and promotion as prescribed below[16]:

Table: I (Selection Board for EG-10 & above)

Sr. No.	Selection Board	Constitution of Board for EG-10 & above
1.	Secretary of the concerned Division / Chairman of the Board	Chairman
2.	Director General	Member
3.	Additional Director General	Member
4.	Director Human Resource	Member
5.	Concerned Additional Director (HR)	Secretary

Table: II (Selection Board for EG-09)

Sr. No.	Selection Board	Constitution of Board for EG-09
1.	Director General	Chairman
2.	Additional Director General	Member
3.	Deputy Director General concerned	Member
4.	Director Human Resource	Member
5.	Concerned Additional Director (HR)	Secretary

[15] In Regulation 13, sub-regulation (6), after the word “remain”, the word “temporary” added ibid
[16] Regulation 14 (1) TABLE I, II, III, IV & V substituted ibid

Table: III (Selection Board for EG-07& EG-08)

Sr. No.	Selection Board	Constitution of Board for EG-07& EG-08
1.	Director General	Chairman
2.	Additional Director General	Member
3.	Deputy Director General concerned	Member
4.	Director Human Resource	Member
5.	Director Concerned	Member
6.	Concerned Additional Director (HR)	Secretary

Table: IV (Selection Board for EG-01 to EG-06)

Sr. No.	Selection Board	Constitution of Board for EG-01 to EG-06
1.	Additional Director General	Chairman
2.	Deputy Director General	Member
3.	Director Human Resource	Member
4.	Director Concerned	Member
5.	Concerned Additional Director (HR)	Secretary

Table: V (Selection Board for SG-01 to SG-11)

Sr. No.	Selection Board	Constitution of Board for SG-01 to SG-11
1.	Director Human Resource	Chairman
2.	Additional Director Concerned	Member
3.	Concerned Additional Director (HR)	Member
4.	Concerned Deputy Director (HR)	Secretary

(2) In case of recruitment and promotion the Selection Board shall follow all concerned orders and instructions that are not inconsistent with these Regulations.

(3) The recommendations of the Selection Board shall be binding, unless the Competent Authority has compelling reasons to reject the recommendations of the Selection Board, may revise the order of merit list for reasons to be recorded in writing[17].

15. APPOINTMENT IN OTHER THAN SERVICE GROUPS SPECIFIED FOR DIRECT RECRUITMENT:

The regular appointment in all service groups except SG-01, SG-05 and EG-01 shall be made only by promotion and transfer subject to the recommendations of the concerned Selection Board.

16. DIRECT RECRUITMENTS IN SG-01, SG-05, EG-01:

(1) Direct Recruitments shall only be made in SG-01, SG-05 and EG-01 subject to the provisions of these Regulations.

(2) In case of recruitments for SG-01 posts, the vacancies shall be preferably filled on local basis.

17. CONDITIONS OF RECRUITMENT OR INITIAL APPOINTMENTS:

(1) All recruitments on posts shall be subject to the conditions prescribed by the Authority as per Schedule-I.

(2) Provided that as and when necessary the Authority may amend or modify the Schedule –I but such amendment or modification shall be made to enhance the prescribed criteria for recruitment.

[17] Regulation 14 (2) & (3) substituted ibid

(3) In case of recruitments or appointment post-qualification experience shall be taken into consideration.

(4) No person other than a citizen of Pakistan shall be eligible for appointment in the Authority. Provided that this restriction may be relaxed where the person holds dual nationality or holds a Pakistan origin card subject to the law for the time being in force subject to the nature of service.

(5) No person who intends to or has married a foreign national shall be eligible for appointment in the Authority. Provided that the Authority may, relax such restriction subject to the nature of service.

(6) A person who intends to be recruited in the service must possess good physical and mental health. Provided that physical incapacitation must not be of a nature that may affect or interfere with the discharge of his duty.

(7) At the time of initial appointment a person shall furnish.-

a. a medical certificate of fitness in the form as prescribed in Schedule II;
b. if married, a marriage certificate indicating that his spouse is not a foreign national;
c. an undertaking as prescribed by the Authority;
d. character certificate;
e. declaration of assets;
f. undertaking, declaration, bond, affidavit, etc. as prescribed under other regulations for the time being in force; and
g. any other information required under any special or general order of the Authority.

(8) Provided that every person to be recruited or appointed shall be medically examined, by the Authorized Medical Officer, to determine his physical / mental fitness required for such post, if found to be medically unfit, shall not be appointed.

(9) A person at the time of initial appointment must declare his date of birth and produce evidence thereof e.g. matriculation certificate or secondary school certificate or birth certificate of the concerned Union Council / Municipal Administration of the concerned Local Government or in case PATA and FATA the authorized entity under any law for the time being in force. In the absence of prescribed proof of age such evidence which is acceptable to the Authority. If a person is unable to produce evidence of his age for reasons beyond his control, he shall state his age and make a declaration on the “Affidavit” that the age stated by him is correct. Case of such a person shall be referred to the prescribed Medical Board for opinion.

(10) The opinion of the Medical Board on the age shall be final and binding on such person.

(11) The date of birth recorded by the Authority at the time of initial appointment shall not be altered except in case of a clerical error.

(12) No person who is less than 18 years of age shall be recruited in service of the Authority.

(13) All vacant posts shall be filled on all-Pakistan basis in accordance with the merit. Provided that Provincial or regional quota as prescribed by the Federal Government, from time to time, shall be filled subject to production of original certificate of domicile.

(14) No person shall be eligible for initial appointment unless he produces certificate of character from the head of the academic institution last attended and letter of recommendation from two respectable persons, not his relations, who are well acquainted with his character and antecedents.

(15) Notwithstanding anything contained above, recruitment shall remain subject to screening and verification of character and antecedents of the person to be appointed to the satisfaction of the Competent Authority.

18. AD-HOC AND TEMPORARY APPOINTMENTS:

(1) In cases where the Competent Authority is of the opinion that it is necessary in the interests of the Authority to immediately fill a post falling vacant, may fill the post on ad-hoc basis after forwarding the requisition to the prescribed Selection Board through Human Resource Directorate, for a period not exceeding six months.

(2) The Competent Authority shall make all ad-hoc appointments subject to the conditions prescribed below.-

a. The person to be appointed is duly qualified in accordance with the prescribed criteria under the regulations and orders for the time being in force;

b. The appointment shall be made as per the prescribed procedure on merit determined by the objective criteria;
c. The appointment order / letter certifies that a requisition has been forwarded to the prescribed Selection Board through Human Resource Directorate; and
d. The appointment to be made subject to termination or revision.

(3) Provided further that ad-hoc appointment shall not confer any right on the person so appointed in the matter of regular appointment to the same post or service count towards seniority in the pay group.

19. TEMPORARY OR SHORT-TERM, POSTS:

(1) The Authority subject to discharge of its functions may create temporary post[s] for a duration not exceeding 12 months.

(2) In case where the Authority decided that a temporary post may continue for a duration exceeding 12 months it shall pass specific order as to the date of abolition of such post.

(3) Such temporary post[s] shall be filled by the Competent Authority for a specified period according to the conditions prescribed under clause (2) of Regulation 18.

(4) The Authority shall advertise all such posts in newspapers of nationwide circulation.

(5) The Authority shall have the power to revoke or terminate the service of any person[s] so appointed against such temporary post[s].

(6) Notwithstanding anything contained above the project post[s] for execution of any development, operation, maintenance scheme / arrangement shall not be construed as revision of the establishment.

(7) All project post[s] shall stand abolished on the completion of the project and no regularization shall be claimed or made pursuant to such project post[s][18].

20. CONDITIONS FOR APPOINTMENT ON TEMPORARY POST:

(1) Financial resources required for temporary post[s] shall be approved by the Authority prior to any appointment made on such post.

(2) The salary package for such post shall include pay and benefits as prescribed by the Authority.

(3) All appointments shall remain subject to minimum educational qualification, experience as prescribed in Schedule-I or the advertised eligibility criteria.

(4) Such appointments will be made for a short period not exceeding 12 months or such duration as determined by the Authority at the time of creation of post.

(5) Provided that the Authority may abolish any such post before 12 months or expiry of an extended duration.

(6) An appointed person or employee on a post abolished under clause (5) shall have no lien against such post for any financial benefit of any remaining period or count towards seniority as the case maybe.

(7) Provided that in case an employee of the Authority is appointed on a temporary post he shall have no lien against his substantive post / pay group after a period of 12 months.

(8) In case a temporary post is abolished before 12 months period the said employee shall revert to his post against which he holds a lien.

21. CONTRACT APPOINTMENT:

(1) Subject to upper age limit criteria, the Authority may fill a regular post or a temporary post or a project post on contract basis for a specified period initially for two years to be renewed

[18] Sub-regulation 19(6) &(7) added ibid

upon satisfactory performance. Provided that a fresh yearly contract to be executed, up to a maximum period of five years.

(2) Subject sub regulation (1) appointment on contract shall be made in accordance with the terms and conditions specified by the Authority from time to time, save in accordance with any other regulations of the Authority for the time being in force. Provided that Authority may on case-to-case basis, offer a special salary package for contract appointment or retainer-ship for a specified duration either made against a regular post or a temporary post or a project post[19].

22. APPOINTMENT OF CONSULTANTS:

(1) The Authority may appoint Consultants, as and when necessary, for discharge of its functions.

(2) The service of the Consultants] shall be subject to the terms and conditions of their respective contracts save in accordance with any other regulations of the Authority for the time being in force.

23. PROBATION:

(1) Subject to the terms and conditions of service all employees, on appointments under these Regulations, shall be deemed to be on probation for a period of one year[20].

(2) The period of probation may be curtailed by the Competent Authority. Provided that such curtailment shall not be more than two months, subject to reasonable and sufficient grounds in writing as it considers necessary.

(3) On the successful completion of the probation period, the Competent Authority shall, by specific order, terminate the probation and declare him to be eligible and fit for confirmation subject to any pending re-verification of degree, certificate, etc. as the case may be.

(4) In absence of an order under clause (3) of this Regulation the period of probation shall deemed to be terminated, unless extended otherwise for a period up to one year[21].

(5) In case of unsuccessful completion of the probation period of initial appointment, the Competent Authority shall not extend such period.

(6) If an employee fails to show satisfactory progress during the initial or the extended period of probation in case of:-

a. recruitment / initial appointment, he shall be discharged from the service; and
b. promotion, be reverted to the service or post from which he was promoted against which he holds a lien[22].

24. CONFIRMATION:

(1) An employee appointed on probation shall on satisfactory completion of his probation, be eligible for confirmation on a post as may be prescribed.

(2) An employee on promotion shall be eligible to be confirmed after rendering satisfactory service for a prescribed period.

(3) There shall be no confirmation of an employee appointed against any temporary post or vacancy.

(4) An employee, who during the period of his service was eligible to be confirmed but retires from service before being confirmed shall not, merely by reasons of such retirement, be refused confirmation or any benefit accruing there from.

[19] Regulation 21(1) & (2) substituted ibid
[20] Regulation 23(1) substituted ibid
[21] Regulation 23(4) substituted ibid
[22] Regulation 23(6) substituted ibid

(5) Confirmation of an employee shall take effect from the date of occurrence of permanent post in the Authority or from the date on which employee was due for confirmation whichever is later.

25. SENIORITY:

(1) For proper administration of service, the Human Resource Directorate shall cause and maintain common seniority list[s] EG-08 and above employees wherever one or more cadre are eligible for promotion against one EG-09 or EG-10 position[23].

(1A) The seniority list[s] of all cadres shall be circulated at least once a year to provide opportunity to employees to raise objections if any[24].

(2) Provided that nothing herein contained shall be construed as to confer any vested right to a particular seniority in such cadre or pay group as the case may be.

(3) Provided that seniority of an employee shall be subject to the length of continuous service in his respective service cadre and any sanctioned leave at the credit of the employee during such period shall not constitute a break in continuity of service.

(4) Provided further that for the purpose of existing incumbents the inter-se seniority shall remain unchanged on the commencement of these Regulations.

26. SENIORITY ON INITIAL APPOINTMENT:

(1) All employees initially appointed on the recommendations of the prescribed Selection Board through an earlier recruitment process shall be senior to those who shall be appointed subsequently.

(2) In case two or more employees are being recommended by the Selection Board, their inter se seniority shall be determined in order of merit assigned by the Selection Board.

(3) Provided that inter se seniority of the employees on training, as recommended by the Selection Board, shall remain subject to successful completion of training course from CATI or any other accredited institute.

(4) In case one employee, is being recommended by the Selection Board, his seniority shall be calculated from-

a. the date of recommendation by the Selection Board, if he was already appointed on the same post on ad hoc basis; or
b. the date of his appointment order if he was not already holding the same post.

(5) Notwithstanding anything contained above, the seniority on initial appointment shall be reckoned from the date of confirmation and upon substantive appointment to a permanent post[25].

27. SENIORITY ON PROMOTION:

(1) Seniority in service cadre or pay group to which an employee is promoted shall take effect from the date of regular appointment to a post in such pay group.

(2) Provided that an employee promoted to higher pay group on an earlier date shall be senior to those promoted on a later date.

(3) Provided that employees promoted to higher pay group in one batch shall, on their promotion to the higher pay group, retain their inter se seniority of the lower pay group.

[23] Regulation 25(1) substituted ibid
[24] Regulation 25(1A) shall be added ibid
[25] Regulation 26(5) substituted ibid

(4) Provided that employees eligible for promotion who were deferred while their juniors were promoted to the higher pay group shall, on promotion, take their seniority with the original batch.

28. SENIORITY ON APPOINTMENT BY TRANSFER:

(1) Seniority in a service cadre or pay group to which an employee is appointed by transfer shall take effect from the date of regular appointment in the service cadre or pay group to which he is being transferred **or** as prescribed by the Authority.

(2) Provided that all employees belonging to the same service cadre or pay group selected for appointment by transfer to a service cadre or pay group in one batch shall, on their appointment, take inter se seniority in the order of their date of regular appointment in their previous service cadre or pay group.

(3) Provided that all employees belonging to different cadres selected for appointment by transfer in a new cadre or when one cadre has been merged into another cadre shall take their inter se seniority in accordance with the common seniority list maintained in the Human Resource Directorate.

29. SENIORITY ON APPOINTMENT BY SELECTION:

(1) Seniority of service cadre or pay group of an employee who is appointed by selection shall be determined in order of merit assigned by the Selection Board in case of more than one employee.

(2) Provided that all existing employees of the same service cadre or pay group shall be senior to those who are appointed in such service cadre and pay group by selection process under Internal Job Placement.

30. INTER SE SENIORITY OF EMPLOYEES APPOINTED IN THE SAME CALENDAR YEAR:

(1) Employees appointed by initial appointment or promotion, shall take seniority from that date of their regular appointment[26].

(2) Provided that the provisions of these regulations shall not in any manner affect or impair the rights of the existing incumbents.

31. PROMOTION:

(1) Subject to minimum prescribed qualification and experience, promotions shall be made on posts reserved for such purpose.

(2) A post referred in clause (1) may either be a selection post or a non-selection post to which promotions shall be made as prescribed below;

a. In the case of a selection post, on the basis of selection on merit and suitability; and
b. In the case of a non-selection post, on the basis of seniority-cum- fitness:

Explanation: *Posts in EG-07 & above are selection posts and posts in EG-06 & below are non-selection posts.*

32. PROMOTION PROCEDURES:

(1) All promotions to higher pay groups in service shall be made by the Competent Authority on the recommendations of the prescribed Selection Boards.

[26] Regulation 30(1) substituted ibid

(2) The Selection Boards shall consider cases of employees eligible for promotion at least twice a year i.e., before 30th May and on 1st December each year[27].

(3) The employee eligibility for promotion shall be subject to requirements such as.-

a. prescribed minimum continuous length of service for promotion in next higher pay group shall be as follows;

i. Provided that in case of deficiency in the prescribed minimum continuous length of service in the lower pay group, half of the total service in the lower pay groups shall be counted towards the deficiency in prescribed length of service[28];

b. Performance Appraisal Reports (PAR) for minimum continuous length of service required for promotion in next higher pay group; Provided promotion of an employee shall not be denied on the basis of PAR which is not otherwise adverse or below average;

c. promotions to be made first and recruitment shall be made later in order;

d. promotions on technical and operational posts shall be within their own line of specialization or service cadre. The criteria for promotion in their case[s] shall always remain the technical qualifications and experience e.g. valid ratings criteria, etc. as prescribed by the Authority from time to time.

e. provided that promotion of an employee on post outside his service cadre may be done only on tenable selection post[s] prescribed by the Authority. provided that no employee shall be promoted on a post outside his service cadre[29].

33. GENERAL CONDITIONS FOR PLACEMENT OF CASE FOR PROMOTION IN SG-11 AND BELOW:

(1) For the purpose placement of case, for promotion on seniority cum fitness in prescribed posts in SG-11 and below, before the prescribed Selection Board following condition shall apply;

a. an employee to have been completed the prescribed length of service on posts in the same pay group and must possess the prescribed qualifications and experience for higher pay group; and

b. performance of such employee meets the criteria as prescribed by the Authority from time to time and;

c. has not been involved in any disciplinary case.

(2) Provided that promotion in SG-05, SG-07, SG-09 and SG-11 shall be subject to availability of vacancy[s] / post[s] in the service cadre.

(3) Provided that the time bound promotion to next higher pay groups SG-06, SG-08 and SG-10, on completion of prescribed minimum length of service in the lower pay group, shall take effect from the date of recommendation of the Selection Board[30].

34. GENERAL CONDITIONS FOR PLACEMENT OF CASE FOR PROMOTION IN EG-01 TO EG-06:

(1) For the purpose of placement of cases, for promotion on seniority cum fitness in prescribed posts in EG-01 to EG-06, before the prescribed Selection Board following condition shall apply;

a. an employee to have been completed prescribed years of service on post[s] in his existing pay group and possess the prescribed qualifications and experience required for promotion in the next higher pay group.

b. performance of such employee meets the criteria as prescribed by the Authority from time to time and;

c. has not been involved in any disciplinary case.

[27] Regulation 32(2) substituted ibid
[28] Regulation 32(3) (a) (i) substituted ibid
[29] Regulation 32(3) (b), (c) & (e) substituted ibid
[30] Regulation 33(3) substituted ibid

(2) Provided that promotion in EG-03 and EG-05 shall be subject to availability of vacancy[s] / post[s] in the service cadre.

(3) Provided that the time bound promotion to next higher pay groups EG-02, EG-04 and EG-06, on completion of prescribed minimum length of service in the lower pay group, shall take effect from the date of recommendation of the Selection Board[31].

35. GENERAL CONDITIONS FOR PLACEMENT OF CASE FOR PROMOTION IN EG-07 & ABOVE:

(1) For the purpose of placement of cases, for promotion in selection posts in EG-07 & above, before the prescribed Selection Board following condition shall apply;

a. an employee to have been completed prescribed years of service on post[s] in his existing pay group and possess the prescribed qualifications and experience required for promotion in the next higher pay group.
b. performance of such employee meets the criteria as prescribed by the Authority from time to time and;
c. promotions against selection posts shall be made on the basis of merit and suitability, seniority plays its part only when other things are equal.
d. has not been involved in any disciplinary case.

(2) Provided that promotion in EG-07, EG-09 and EG-10 shall be subject to availability of vacancy[s] / post[s] in the service cadre.

(3) Provided that the time bound promotion to next higher pay groups EG-08, on completion of prescribed minimum length of service in the lower pay group, shall take effect from the date of recommendation of the Selection Board[32].

36. PROMOTION OF EMPLOYEE ON DEPUTATION:

(1) An employee of EG-01 and above, on deputation to the Federal / Provincial Government, institution, foreign government, international agency or private organization abroad will be considered for promotion only on return of his services to the Authority after earning specified number of Performance Appraisal Report[s] and any other condition as specified.

(2) The Authorized Officer shall give intimation to the employee on deputation with an option to return to the Authority before his case is considered for promotion in accordance with the seniority list, if such employee fails to return he will not be considered for promotion.

37. PROMOTION OF EMPLOYEE ON LEAVE:

An employee on leave who meets the condition of qualified length of service and other specified conditions necessary for placement his case for promotion shall be considered by the concerned Selection Board.

38. PROMOTION TO BE DEFERRED:

(1) The promotion of an employee may be deferred due to reasons recorded in writing and to be conveyed including:-

a. Non- submission of the Performance Appraisal Report by an employee to the concerned officer[s]; or
b. Non- submission of the Performance Appraisal Report by the concerned officer; or
c. In case the prescribed Selection Board considers the record to be incomplete in any manner whatsoever; or

[31] Regulation 34(2) & (3) substituted ibid
[32] Regulation 35(2) & (3) substituted ibid

d. In case of pendency of a criminal case, involving moral turpitude, corruption, corrupt practices, misuse of authority, illegal monetary gain, money laundering, human trafficking, narcotics substance, offences under any special or general laws applicable in Pakistan; or
e. In case of pendency of disciplinary proceedings;
f. In case of any penalty pursuant to a disciplinary proceedings; or
g. In case employee's inter se seniority is subjudice.

(2) The employee whose promotion has been deferred will be considered for promotion as soon as the reasons of deferment cease to exist. The reasons stated above under sub regulation (1) do not warrant proforma promotion but employee will be considered under the upcoming Selection Board[33].

39. SUPERSEDED EMPLOYEES:

(1) An employee, who has been superseded by the Selection Board, shall be re-considered for promotion, after earning such number of Performance Appraisal Report[s] as prescribed by the Authority.

(2) An employee who is superseded shall be re-considered for promotion by the respective Selection Board[34] .

40. EFFECTIVE DATE OF PROMOTION OF AN EMPLOYEE:

(1) The Competent Authority shall approve the promotion of an employee from the date, on which the recommendation for promotion was made by the prescribed Selection Board.

(2) Notwithstanding anything contained above, the employee who dies or superannuates after the recommendation of the prescribed Selection Board shall be eligible for all the retirement benefits of the promotion post without assumption of the charge of such higher pay group / post.

41. TRAINING OF EMPLOYEES:

(1) An employee shall be required to undergo such training[s] for such period[s] as may be specified by the Authority from time to time.

(2) The Authority may require an employee to sign a bond on such terms and conditions as it may deemed necessary.

42. QUALIFICATION AND EXPERIENCE REQUIREMENT:

(1) The Selection Board at the time of promotion shall consider those employees, who possess the prescribed qualification, experience and training conditions attached to a selection post as per Schedule–I clause (3)[35].

(2) No promotion, on regular basis shall be made, unless the employee concerned has completed such minimum length of service and attended such training[s], as may be prescribed from time to time.

43. CONDITIONS FOR ACTING CHARGE POST:

(1) When the Authority considers it to be in the public interest, to fill a vacant post reserved for promotion, the Authority may appoint the most suitable employee belonging to a service cadre on acting / current charge basis, who may be otherwise eligible for promotion.

(2) Provided that acting / current charge appointment shall be made against posts which are likely to fall vacant for an initial period of 180 days or less.

[33] Regulation 38(2) substituted ibid
[34] Regulation 39(2) substituted ibid
[35] Regulation 42(1) substituted ibid

(3) Provided that the duration of such acting charge may be extended by the order of the Competent Authority for such duration as it may deem appropriate[36].

(4) Provided that the duration of such acting charge may by order of the Competent Authority be extended only for another period of six months.

(5) In case of posts falling vacant for period less than six months only current charge appointment may be made subject to the orders issued by the Competent Authority from time to time.

(6) All appointment on acting or current charge, as the case may be, shall be made by the Competent Authority.

(7) Acting charge appointment, shall not amount to appointment by promotion on regular basis or for any other purpose including seniority.

(8) Acting charge appointment shall not confer any right for regular promotion to the post held on acting charge basis.

44. CONDITIONS FOR ADDITIONAL CHARGE:

(1) If a post falls vacant upon condition other than retirement or promotion and it is expedient to fill the post, the Authority is of the opinion that no suitable employee of the same service cadre or pay group is available to fill the post, it may appoint, the most suitable employee of the same pay group to hold an additional charge.

(2) The duration of such additional charge shall not be more than six months. Provided subject to the order issued by the Authority such duration may be extend for period[37].

(3) Provided that beyond the specified duration or extension, as the case may be, if post remain vacant it shall stand relocated and the work of such post shall be distributed among the employees belonging to the same service cadre and pay group[38].

(4) Provided that such an employee shall be eligible for an additional charge pay as prescribed by the Authority.

(5) Provided that in case of a post reserved for recruitment, on the report of prescribed Selection Board, that no suitable person is available in the advertised category to fill the post and it is expedient to fill the post, the Authority may appoint, the most suitable employee on additional charge basis on that post, who may be otherwise eligible to hold such charge[39].

44A. CONDITION FOR OFFICIATING CHARGE:

If an employee is not available to hold a post for a short duration, being on leave or on duty abroad etc. the Competent Authority may appoint the most suitable employee to officiate on such post. Provided that the employee shall exercise all powers related to the post and shall be entitled for an admissible officiating charge allowance if such officiating charge period exceeds 30 days[40].

45. CONDITIONS FOR DEPUTATION:

(1) The Authority shall prescribe a deputation criterion for its regular employees in executive group who are required to be borrowed by other Federal Government Organizations or International Civil Aviation Organization and Regional Civil Aviation Organization / Agency.[41]

(2) The terms & conditions shall not be less favorable as compared to the entitlement under these regulations.

(3) The maximum period of deputation shall not exceed five years.

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[36] Regulation 43(1), (2) & (3) substituted ibid
[37] Regulation 44(2), after the word “periods”, the words “not more than six months” omitted ibid
[38] Regulation 44(3), the word “abolished”, the words “relocated” substituted ibid
[39] New sub regulation 44 (5) added ibid
[40] New Regulation 44A added ibid
[41] Regulation 45(1) substituted ibid

(4) Provided that the post vacated by an employee who has been transferred by deputation shall be filled in accordance with the procedure as determined by the Authority.

(5) An employee who has been confirmed against a permanent post shall retain his lien while on deputation and upon return shall be transferred against the same post or any vacant post of the same pay group[42].

(6) Provided that such lien shall be terminated upon appointment against a permanent post outside his service cadre.

46. TERMINATION OF SERVICE:

(1) The service of an employee may be terminated without notice.-

a. during the initial or extended period of his probation;
b. on the expiry of period of temporary appointment; or
c. if the appointment is made on ad-hoc basis it shall be terminated on the appointment of a person on the recommendation of the Selection Board.

(2) Provided that in case of probation after promotion, an employee will be reverted to the lower post against which he holds a lien.

(3) Provided that in ca/se, where an employee has been transferred from one service cadre to another he shall be transferred back to his original cadre.

(4) The Authority may abolish or cause reduction in strength of posts subject to service exigencies.

(5) Upon abolition of a post or reduction in the number of posts in a service cadre and if an employee[s] is required to be terminated, the employee[s] whose service has to be terminated shall ordinarily be the one, who is the most junior in such service cadre or pay group.

(6) Provided that in case of abolition of permanent post the employee who is otherwise entitled for retirement or service benefits shall be deemed to be eligible for all such benefits.

(7) Notwithstanding the provisions of sub-clause 1(a), but subject to the provisions of sub-clause 1 (b), the service of a person on temporary or contract appointment shall be liable to termination on a forty five days' notice or pay in lieu thereof or according to the terms and conditions of his contract.

(8) The service shall be terminated if the Authority is satisfied that it is expedient to terminate the service of an employee [s] on account of;

a. Prolonged or intermittent absence without permission of the leave sanctioning authority; or
b. Loss of confidence in the employee's professional competence or whose integrity assessment report is unsatisfactory ; or
c. Possible threat to the security and the interest of the Authority; or
d. Non satisfactory report on re-verification of degree, certificate, etc.

(9) Provided that termination in case of sub-clause 8 (i), (iii) and (iv) the Authority reserves its right to initiate disciplinary action against such employee in accordance with regulations for the time being in force.

47. REVERSION TO A LOWER POST:

[42] Regulation 45(5) substituted ibid

(1) An employee appointed to a higher pay group on ad-hoc, temporary or acting / current charge basis shall revert to his lower pay group / post against which such employee holds a lien, without notice, by the order of the Competent Authority[43].

(2) Provided that an employee promoted from a lower pay group / post to a higher pay group/ post shall be deemed to be on probation for such period as may be prescribed and shall revert by the orders of the Competent Authority, upon notice after assigning reasons thereof, at any time during the probation period.

48. RETIREMENT FROM SERVICE:

(1) An employee shall retire from service on attaining the sixtieth year of his age.

(2) An employee may opt to retire on such date after he has completed twenty five years of qualifying service and shall be entitled for pension and other retirement benefits as prescribed by the Authority.

(3) Provided that an employee may apply for retirement, with the approval of Director General, on such date after he has completed twenty years of qualifying service and shall be entitled to pension and other retirement benefits as prescribed by the Authority.

(4) Provided that on retirement from service, the date on which entitlement to pay, allowances and other service benefits cease to continue shall be determined by the Authority.

49. LAST DATE FOR PAY PURPOSE:

(1) The last date for pay purpose, in case of pre-mature retirement, resignation, termination, removal from service or death, shall be the date on which the entitlement to pay, allowances and other benefits cease to continue as determined below.-

a. in case of resignation, the date shall be either the date of expiration of the notice period or such other date as the Authority may permit. Such employee shall continue to perform his duty during the period of notice of resignation or otherwise, except when resignation takes effect upon completion of any sanctioned leave. Earned leave shall be granted during the period of notice of resignation as determined by the Authority;
b. in case of a temporary or contract appointment, the date shall be that specified in the appointment letter;
c. in case of termination, the date shall be indicated in the notice of termination;
d. in case of dismissal or removal, the date shall be the date of the order of dismissal or removal from service;
e. in case of death, the date shall be the actual date of death or the date on the death certificate; and
f. in case of incapacitation while in service, upon the date of decision of the Medical Board to discharge such employee.

50. EMPLOYEE BEING UNFIT FOR SERVICE:

(1) If the Authority requires an employee to appear before an Authorized Medical Officer for examination, if it appears that such employee is suffering from a disease, or such incapacitation or invalidation or disability on account of any major surgery, accident or terrorist attack or law and order situation, which renders him unfit for the proper and efficient discharge of his duties or service or having dangerous disease[s] which is communicable and is likely to endanger the health of other employees[44].

(2) If the Authorized Medical Officer certifies, that such employee requires a period of absence from duty for the purpose of his recovery, the Authority may grant him leave, including extra-ordinary leave, as if the employee had himself applied for such period as recommended by the Authorized Medical Officer.

[43] Regulation 47(1) substituted ibid
[44] Regulation 50(1) substituted ibid

(3) If the Authorized Medical Officer after examining the employee certifies that such employee is permanently incapacitated due to any disability and is unable to perform his duties,

the finding of the Authorized Medical Officer shall be communicated to the employee immediately[45].

(4) The employee within fourteen days of receipt of such official intimation may apply to the Authority for a review of his case by a Medical Board.

(5) The Authority shall immediately constitute a Medical Board the members of such Board shall not include the Authorized Medical Officer who had issued the certificate in the first instance. If the reviewing Medical Board certifies that the employee is permanently incapacitated due to any disability for further service or the employee fails to apply for review the Authority may require him to retire or discharge from service, as the case may be[46].

(6) In case the Medical Board holds that employee is fit for service he shall be reinstated forthwith and the period of his absence will be treated as duty.

51. EMPLOYMENT AFTER RETIREMENT:

A retired employee shall not ordinarily be re-employed unless such re-employment on contract / retainer is necessary in the public interest and subject to the prevalent policy of the Authority.[47]

52. PRIVATE EMPLOYMENT:

(1) An employee may seek any private employment during leave preparatory to retirement or after retirement from service.

(2) Provided that, where employment is sought while on leave preparatory to retirement, he shall obtain prior approval of the Authority.

53. PAY:

(1) Applicable pay group[s] in the Authority may be revised from time to time.

(2) An employee shall on first appointment to a pay group in a time scale draw the minimum of that pay group and admissible allowance[s] if any unless the Competent Authority for reasons to be recorded, fixes his initial pay at a stage in that pay group.

(3) Subject to the regulations for the time being in force an employee shall begin to draw the pay & admissible allowances attached to his post with effect from the date when he obtains necessary medical fitness certificate and assumed duties and shall cease to draw as soon as he ceases to hold such post.

(4) The pay groups prescribed under these Regulations shall be applicable to all employees of the Authority from the commencement of these Regulations.

54. PAY DURING TRAINING COURSES:

(1) An employee shall be deemed to be on duty during an authorized course of training or instructions in Pakistan or abroad and shall be entitled to draw the pay and admissible allowances attached to the pay group.

(2) Provided that employee on training or instructions course abroad shall only be entitled to draw pay and allowances in Pak rupees in addition to any travelling and daily allowance as prescribed for foreign training.

55. REWARDS, INCENTIVES AND RECOGNITION CERTIFICATES:

[45] Regulation 50(3) substituted ibid
[46] Regulation 50(5) substituted ibid
[47] Regulation 51 substituted ibid

(1) The Authority may specify any scheme for rewards, incentives, including one time monetary benefit etc. for its employees in recognition of their extra-ordinary service record or performance.

(2) Provided that the Authority may grant as and when deem appropriate performance based bonus[s] to employees who are performing duties in Director General or Additional Director General Secretariat over and above their service entitlements[48].

56. ALLOWANCES:

All eligible employees shall be entitled to such compensatory and prescribed allowances at such rates as may be determined by the Authority from time to time.

57. SPECIAL QUALIFICATION ALLOWANCE:

All eligible employees shall be entitled for special qualification allowance at such rates as may be determined by the Authority from time to time[49].

58. PERSONAL STAFF ALLOWANCE:

All eligible employees shall be entitled for personal staff allowance at such rates as may be determined by the Authority from time to time.

59. MEDICAL ALLOWANCE:

All eligible employees shall be entitled to receive medical allowance as prescribed by the Authority from time to time.

60. HOUSE RENT ALLOWANCE:

All eligible employees shall be entitled to receive house rent allowance at such rates as may be determined by the Authority from time to time.

61. UTILITY ALLOWANCE:

All eligible employees shall be entitled to receive utility allowance at such rate as the Authority may determine from time to time.

62. TRAVELLING AND DAILY ALLOWANCE ENTITLEMENT:

All eligible employees shall be entitled to such travelling and daily allowance as determined by the Authority from time to time.

63. ADDITIONAL CHARGE ALLOWANCE:

An employee who holds an additional charge of an equivalent pay group post, for a period not less than 30 days shall be entitled to an additional charge allowance equivalent to 20% of the basic pay provided that it shall not exceed 20% of the mid-stage of the pay scale attached to the pay group.

64. ACTING OR CURRENT CHARGE ALLOWANCE:

An employee who holds an acting or current charge of a higher post, for a period not less than 30 days shall be entitled to acting or current charge allowance equivalent to 20% of the basic pay provided that it shall not exceed 20% of the mid-stage of the pay scale attached to the pay group.

[48] Regulation 55 substituted ibid
[49] Regulation 57 substituted ibid

65. ANNUAL INCREMENT:

The annual increment will accrue on 1st December and shall be prescribed under the regulations for the time being in force.

66. SUBSISTENCE GRANT:

An employee, who has been placed under suspension in accordance with provisions of efficiency and discipline regulations, shall be entitled to subsistence grant as determined from time to time by the Authority.

67. PERFORMANCE APPRAISAL REPORT:

(1) All employees shall be responsible to the Authority for the proper discharge of their duties.

(2) The Authority shall assess employees' performance and conduct in order to ensure accountability and professional development by performance appraisal reports. Such reports shall deem to be one of the criteria for promotion of an employee for his career development and progression in service.

(3) Provided that this Regulation shall not apply to temporary employees unless otherwise prescribed by the Authority.

68. RECORD OF SERVICE AND APPRAISAL REPORT:

(1) The service record and performance appraisal report of every employee shall be maintained and recorded in the form and manner as specified by the Authority.

(2) An employee shall not have access to his performance appraisal reports. Provided that such employee shall be informed of adverse remarks, if any, relating to remedial effect in order to give him an opportunity to explain his position.

(3) A service book / record, containing events relating to the service including a leave account, shall be maintained in respect of all employees in such form and manner as specified by the Authority.

(4) The identification marks of the employee shall be given in the service book / record and a passport size photograph and finger prints of both hands of the employee shall be affixed in the service book / record.

(5) All entries in the service book / record shall be initialed by, the Human Resource Directorate.

69. LEAVE:

An employee while in service shall be entitled to leave in accordance with Chapter III of these Regulations.

70. PROVIDENT FUND, BENEVOLENT FUND AND GROUP INSURANCE:

All employees and their families shall be entitled to benefits of the general provident, benevolent and / or group insurance as prescribed by the Authority from time to time.

71. FINANCIAL AND OTHER ENTITLEMENTS FOR FAMILY OF A DECEASED EMPLOYEE:

Upon death of an employee while performing his duty, family of such deceased employee shall have financial and other entitlements as per Schedule VII of the Regulations[50].

[50] Regulation 71 substituted ibid

72. OMITTED[51]

72A. INTERNSHIP PROGRAMME:

(1) The Authority may offer internship programme for postgraduate degree holders in any discipline for duration up to three months, on payment of a stipend as specified by the Authority from time to time.

(2) The interns will be working on diverse range of assignments in Directorates of the Authority conveniently located near to their hometown so far as practicable.

(3) The placement within Directorate will be based upon the academic qualifications of interns by matching the broader academic disciplines and functional categorization of assigned task. The interns will be required to join the programme on full time basis and follow all instructions, orders of the Authority including observance of code of conduct, office working time and confidentiality requirements etc.

(4) The internship is in no way an offer of employment in service of the Authority[52].

[51] Regulation 72 omitted ibid
[52] Regulation 72A added ibid

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Chapter II

MEDICAL ATTENDANCE AND TREATMENT

73. DEFINITION:

For the purpose of this Chapter unless there is anything repugnant in the subject or context;

a. **"Authorized medical attendant"** means a registered Authorized Medical Officer or medical practitioner of any government hospital or panel hospital including military hospitals approved by the Authority from time to time;

b. **"Medical Attendance"** means an attendance in a hospital including all types of clinical procedures and tests for the purposes of diagnosis or treatment as considered necessary by the Authorized Medical Officer including consultation with a Specialist[s] as recommended by the Authorized Medical Officer and further treatment as advised by the Specialist[s];

c. **"Patient"** means an employee, whether serving or retired and his family who is entitled and requires medical treatment;

d. **"Family"** of an employee includes his spouse, dependent parents and children up to the maximum age of 21 years (including step children) but the age limit shall not be applicable in case of un-married or divorced daughter[s], special child or children provided that such persons are residing with the employee and are wholly dependent on him;

Explanation: *In case of dependent son above 21 years the employee shall be under obligation to provide a sufficient proof of his dependency due to un-employment or the ongoing professional education from an HEC recognized institute/ college or a University such as engineer, doctor, charted account, etc. before claiming any medical attendance and treatment*[53].

e. **"Residing with"** shall not be so construed as to exclude any member of the family of an employee wholly dependent upon him and not actually residing with him at place of his appointment or duty station or the spouse of an employee temporarily residing elsewhere;

f. **"Indoor treatment"** means the treatment of patient in Authority's health facility or consulting room or panel hospital;

g. **"Authorized Medical Officer"** includes the Chief Medical Officer, Senior Medical Officer and Medical Officer of the Authority ;

h. **"Panel hospital"** means a hospital approved by the Authority for treatment of its employees whether serving or retired as prescribed under Schedule -III;

i. **"Treatment"** includes indoor and outdoor treatment related to the use of all medical and surgical facilities available at the health facility or the consulting room of the Authorized Medical Officer or panel hospitals and includes:

   i) the application of such pathological, bacteriological, radiological and other methods as are considered necessary;
   ii) the supply of such medicines, vaccines, sera or other therapeutic substances as are essential for the recovery or for the prevention of serious deterioration in the condition of the patient;
   iii) such nursing care as is ordinarily provided to indoor-patients;
   iv) the specialist consultation pursuant to sub clause (ii) above;
   v) shifting of the patient for treatment or examination from residence to a hospital or from one hospital to another hospital in an ambulance of the Authority or hospital;
   vi) dental treatment.

[53] Regulation 73(d) substituted ibid

74. TREATMENT OF EMPLOYEES:

(1) All serving and retired employees and their families shall be allowed for medical treatment subject to their entitlement as determined by the Authority from time to time.

(2) Provided that treatment shall not include dentures, gold fillings, artificial teeth, plastic surgery for cosmetic reasons, contact lenses, braces or as determined by the Authority from time to time.

(3) All employees shall be entitled to free-of-charge medical attendance.

(4) If the Authorized Medical Officer is of the opinion that the case of a patient is of a serious or special nature so as to require medical attendance of a specialist person other than himself, he may with the approval of senior medical officer present, send the patient to the nearest specialist or a panel hospital, by whom, in his opinion, medical treatment is required.

75. OUTDOOR TREATMENT OF SERVING AND RETIRED EMPLOYEES:

The procedure for outdoor treatment of serving and retired employees and their families shall be in accordance with the instructions issued by the Authority from time to time.

76. REIMBURSEMENT AMOUNT TO AN EMPLOYEE:

(1) The Authority shall reimburse the amount to an employee incurred on;

a. treatment in non-panel hospital as per entitlement; or
b. treatment by a non- panel specialist as per entitlement.

(2) Reimbursement claims under clause (1) shall be subject to prior approval of the Authorized Medial Officer and production of original prescriptions and receipts duly verified by the Authorized Medical Officer except in case of medical emergencies and accidents.

(3) Notwithstanding anything contained above, no treatment shall be allowed except with prior production of valid service card of self or / and family, as the case may be.

(4) The Authority shall pay diet cost of the entitled patient directly to the panel hospital while indoor treatment. If an employee incurs such expense he shall be entitled for per day medical diet allowance as the Authority may direct from time to time.

(5) Upon production of necessary proof of purchase of medicine for prolonged illness the employee may request the Authority to reimburse cost incurred in excess of any amount beyond three months admissible medical allowance. Provided that from the next month the Authority may discontinue his medical allowance and reimburse the total cost of medicine.

77. ENTITLEMENT FOR RETIRED EMPLOYEES:

(1) A retired employee and his family shall have treatment entitlement as applicable to serving employees of the same pay group.

(2) Provided that cost of medicines if incurred while admitted in the hospital shall be reimbursed subject to the production of original prescription and receipt duly verified by the Authorized Medical Officer.

(3) Notwithstanding anything contained above, no medical attendance shall be allowed except with prior production of valid retirement card of self or/and family entitlement card, as the case may be.

(4) The Authority shall pay diet cost of the entitled patient directly to the panel hospital while indoor treatment. If an employee incurs such cost he shall be entitled to an amount equivalent to per day medical diet allowance as the Authority may direct from time to time.

78. ENTITLEMENT OF WARD AND ROOM IN CASE OF INDOOR TREATMENT:

(1) The serving and retired employees and their family shall have the accommodation entitlement subject to their respective basic pay groups as provided in the Table given below:

Sr. No.	Pay Group (PG)	Group	Entitlement of accommodation
1.	SG-01 to SG-04	Support Staff	General Ward
2.	SG-05 to SG-11	Technical and Administration Staff	Semi Private Room
3.	EG-01 to EG-04	Executive	Private Room
4.	EG-05 to EG-06	Executive	Deluxe Room
5.	EG-07 and above	Executive	VIP Room

(2) The above entitlement shall be applicable if the Medical Attendant is of the opinion that patient requires indoor treatment and care.

(3) Notwithstanding anything contained above if the condition of an employee or his family member is serious and he is or has been retained in intensive care unit, the entitlement period shall commence when the Medical Attendant is of the opinion that it is safe to shift the patient to a room or a ward, as the case may be.

79. CONSTITUTION OF MEDICAL BOARD:

(1) The Authority may constitute a Medical Board[s] as and when necessary, in such manner as it may deem appropriate. Such board may include;

a. Senior / Additional Director Medical Services / his nominee as its President;
b. Specialist concerned as its Member;
c. Additional Director HR / his nominee as its Member;
d. Representative of Head of the Unit as its Member; etc.

80. TREATMENT OF AN EMPLOYEE WHILE BEING OUT OF STATION:

(1) When an employee falls sick while on out station duty or leave where an Authorized Medical Officer is available, he will immediately report to him for treatment.

(2) If condition referred in clause (1) is not complied for any valid reason, he may receive treatment from any Authorized Medical Attendant but shall inform in writing the concerned Airport Manager / Head of Unit within two days of its occurrence.

(3) In case the illness prolongs beyond two days the employee shall report to the nearest panel hospital and inform the Airport Manager / Head of Unit concerned in writing.

(4) In case of non-availability of a panel hospital the employee shall forward all the medical documents to the Authorized Medical Officer under intimation to his concerned unit for further instructions. The opinion of Authorized Medical Officer shall have precedence over the medical advice given by the panel hospital.

81. TREATMENT WHILE ON FOREIGN TRAINING:

(1) Employees on authorized foreign training shall be provided with coverage of health insurance plan of the recipient foreign organization. No re-imbursement for medical treatment obtained abroad in such cases shall, therefore, be admissible.

(2) In case the recipient foreign organization has no health insurance scheme for foreign trainee, the Authority at its own expense shall arrange a suitable health insurance plan for the period of stay during training abroad.

(3) If an employee falls sick while on sanctioned training or duty abroad without coverage of health insurance, he may opt for medical treatment at his own cost. The cost of treatment shall be reimbursed to such employee if his claim is approved through the Authorized

Medical Officer upon production of all relevant supporting documents duly authenticated by Pakistan Embassy / Mission abroad. In all such cases the employee shall inform the Authorized Medical Officer of the HQ at first available opportunity about the nature of sickness and treatment received for such illness, unless this condition is waived off by the Competent Authority for valid reasons.

(4) The Authority may also arrange treatment abroad on the advice of Authorized Medical Officer in accordance with the prescribed procedure for major operative treatment and/or other special cases for which adequate treatment within the country may not be available.

82. ANNUAL MEDICAL EXAMINATION OF EMPLOYEES:

(1) All employees shall be medically examined annually by Authorized Medical Officer to ascertain their physical fitness for retention in service at the cost of Authority.

(2) An employee may be called upon any time, to appear before a Medical Board duly constituted, for examination of his continued physical fitness to perform duty.

(3) The employee will not perform any duty if so ordered after a date has been set for his medical examination by Authorized Medical Officer and until he has been declared fit by the Medical Board.

(4) The period of absence from duty shall be treated as leave on medical grounds. The expenses incurred for such examination will be paid by the Authority.

83. MEDICAL CERTIFICATION:

The Authorized Medical Officer or the Medical Board shall issue such medical certificate[s] as prescribed under these Regulations or under Schedule IV.

Chapter III

LEAVE

84. RIGHT TO LEAVE:

(1) Leave cannot be claimed as a matter of right and the leave sanctioning authority may refuse or revoke leave of any kind.

Explanation: *"leave sanctioning authority" means officer authorized to sanction leave of an employee.*

(2) Leave will not be granted to employees under suspension.

85. AUTHORITY EMPOWERED TO SANCTION LEAVE:

(1) All applications for leave or for extension of leave shall be addressed to the leave sanctioning authority.

(2) Leave may be sanctioned by the Authorized Officer[s] to whom such powers have been delegated by the Authority. The Human Resource Directorate shall regulate leave accounts of all employees.

(3) The Chairman of the Board may sanction leave other than casual leave to the Director General. The Director General may avail himself casual leave, as prescribed, under his own authority.

86. LEAVE APPLICATION, ITS SANCTION, ETC:

(1) In case where all applications for leave cannot be granted to run simultaneously, the leave sanctioning authority shall sanction leave after taking into consideration the following conditions for deciding the priority of the applications.-

a. how many applicants can for the time being be relieved from duty;
b. whether any of the applicant was last recalled compulsorily from leave; and
c. whether any of the applicant was required to make adjustment in the timing of their leave on the last occasion.

(2) Provided that an employee in case of medical leave shall have to submit a medical certificate of the Authorized Medical Officer for the grant of such leave.

(3) No employee who has been granted leave on medical certificate shall return to duty without producing a medical fitness certificate as prescribed under Schedule V.

87. COMMENCEMENT AND TERMINATION OF LEAVE:

(1) Leave ordinarily begins from the date on which such leave has been granted and ends on the day preceding the date on which an employee has been directed to resume his duty.

(2) Saturdays, Sundays, Public holidays and other Gazatted holidays or the vacation may be prefixed as well as suffixed to any leave, subject to any limit of absence on leave prescribed under each category of leave.

88. WHEN LEAVE EARNED:

Service rendered by an employee in the Authority qualifies him to earn leave in accordance with these Regulations.

88A.ENCASHMENT OF EARNED LEAVE:

(1) An employee on retirement or superannuation shall be entitled to en-cash his accumulated earned leave credit up to three hundred and sixty-five days, if the remaining accumulated leave credit is available above three hundred and sixty-five days.

(2) Notwithstanding anything contained above, entitlement of leave preparatory to retirement under Regulation 100 shall remain unaffected[54].

89. LEAVE ON FULL PAY:

(1) The maximum period of leave on full pay that the Authority may grant at one time shall not be more than the following days:-

a. Without medical certificate_____120 days;
b. With medical certificate_____180 days;
c. On medical certificate from leave account in entire service_____365 days.

90. LEAVE TO BE APPLIED, ETC., IN TERMS OF DAYS:

(1) An employee shall be under obligation to apply leave in terms of days.

(2) The Authorized Officer shall also sanction leave of an employee in terms of days.

91. CARRY FORWARD OF EXISTING LEAVE:

(1) All leave credit in the account of an employee from the date of commencement of these Regulations, shall be carried forward and be deemed as leave on full pay in accordance with the following criteria:-

a. Leave on average pay:

i. 1 month_____30 days
ii. 1 day_____1 day

b. Leave on half average pay:

i. 1 month_____60 days
ii. 1 day_____2 days

(2) Notwithstanding the effect of numbers of days in one calendar month, each month shall deem to be of 30 days.

(3) Provided that after commencement of these Regulations the earned leave shall be encashed as per conditions specified herein.

92. EXTRAORDINARY LEAVE (LEAVE WITHOUT PAY):

(1) The Authority at its discretion may grant extraordinary leave without pay, on grounds prescribed by the Authority up to a maximum period of three years at one time, to an employee in continuous service for a period not less than ten years.

(2) An employee who has not completed ten years of continuous service in the Authority, extraordinary leave without pay for a maximum period of one year may be granted at the discretion of the Authority.

[54] New Regulation 88A added ibid

93. STUDY LEAVE:

(1) The study leave may be granted at the discretion of the Authority up to a maximum period of three years at one time, to an employee in continuous service for a period not less than ten years subject to conditions prescribed under Schedule VI.

(2) An employee who has completed more than five years of continuous service in the Authority, leave without pay for a maximum period of two years may be granted at the discretion of the Authority.

94. CASUAL LEAVE:

(1) An employee shall not claim casual leave as a matter of right and such leave shall not be treated as absent from duty.

(2) Casual leave shall not exceed maximum period of 20 days in a calendar year and in addition each employee will also be allowed to avail himself of any gazette holiday[s]. However, casual leave shall not be granted for more than 06 days at any time, except under special circumstances.

(3) Provided that casual leave shall not be combined with any other kind of leave or joining time except when granted in continuation or combination of special leave.

(4) No employee may leave his station during casual leave or holidays except with the permission of the Authorized Officer.

95. SPECIAL LEAVE:

(1) Special leave shall be granted on full pay, when applied by a female Muslim employee, in case of death of her husband, for a period not exceeding one hundred and thirty days.

(2) Such leave shall commence from the date of death of her husband and may be sanctioned on production of the death certificate issued by the concerned authority along with an application for special leave.

(3) Such certificate may be furnished to the Authorized Officer within sixty days of the application under clause (2).

(4) Provided that such leave shall not be debited to her leave account.

96. MATERNITY LEAVE:

(1) Maternity leave shall be granted on full pay, outside the leave account of a female employee to the extent of ninety days in all from the date of its commencement (as specified in the application for leave) or forty-five days from the date of her confinement, whichever be earlier.

(2) The pay during maternity leave shall, remain unaffected except an increment which accrues during such period shall take effect from the reporting date.

(3) Provided that such leave may not be granted for more than three times in the entire service of the female employee and for confinement beyond the third one, the female employee shall apply for leave from her leave account.

(4) Maternity leave may be granted in continuation of or in combination with any other kind of leave including extraordinary leave as may be due and admissible to a female employee.

97. DISABILITY LEAVE:

Disability leave shall be granted on full pay, outside the leave account up to a maximum of seven hundred and twenty days on the recommendation of the Medical Board to a regular employee disabled by injury or accident or terrorist attack etc. while on duty.

98. QUARANTINE LEAVE:

(1) Leave under this regulation shall be deemed as extra leave and where the exigencies of service are compelling the concerned Directorate or unit may substitute the employee on such leave by another employee on current charge.

(2) An employee may be granted such leave outside his leave account subject to the recommendation of the Authorized Medical Officer. Such leave shall be deemed as duty with full pay and allowances of the post held by him before proceeding on such leave.

99. LEAVE EX-PAKISTAN:

(1) The leave sanctioning authority may grant or refuse leave ex-Pakistan on full pay to an employee.

(2) In case the request for leave ex-Pakistan has been accepted the employee shall be entitled to pay.

(3) The leave pay shall be payable in Pak Rupees.

(4) Provided that ex-Pakistan leave shall not be granted for more than one hundred and twenty days at a time.

100. LEAVE PREPARATORY TO RETIREMENT:

(1) The maximum period of leave preparatory to retirement shall not be more than three hundred and sixty-five days.

(2) Such leave shall be on full pay.

(3) An employee prior to superannuation or who opts for voluntary retirement on completion of 25 years of qualifying service shall deemed to be qualified for pension and shall be granted leave preparatory to retirement equal to entire leave credit in leave account on full pay subject to condition under clause(1).

(4) Provided that an employee who does not exercise the option within the specified period shall be deemed to have opted for encashment of LPR[55].

101. POWER TO REFUSE LEAVE PREPARATORY TO RETIREMENT, ETC:

(1) Under ordinary circumstances leave preparatory to retirement shall not be refused to the entitled employees.

(2) All orders refusing leave preparatory to retirement to an employee and recalling employee from leave preparatory to retirement shall be subject to the decision of the leave sanctioning authority.

102. ENCASHMENT OF REFUSED LEAVE:

(1) Under special circumstances the Authority shall have the power to refuse leave preparatory to retirement to an employee. Provided that such employee shall be entitled to receive lump-sum leave pay for the refused period.

(2) The payment of leave pay in lieu of such refused leave may be made to the employee either in lump-sum at the time of retirement or may, at his option, be drawn by him month-wise for the period of leave so refused.

(3) In case an employee whose leave preparatory to retirement has been refused or proceeds on leave preparatory to retirement dies before availing partially or wholly such leave his family shall be entitled to lump-sum payment equal to the period falling short or equivalent to three hundred and sixty five days.

[55]New Regulation 100(4) added ibid

103. PROCEDURE FOR ENCASHMENT OF LEAVE PREPARATORY TO RETIREMENT:

(1) An employee may, fifteen months before the date of superannuation or voluntary retirement on completion of 25 years of qualifying service, shall in writing inform the leave sanctioning authority his intention to either;

a. avail such leave preparatory to retirement; or
b. encash his leave credit which shall not be more than three hundred and sixty five days subject to conditions for leave encashment under Regulation 89.

(2) The employee shall submit the option under clause (1) to the leave sanctioning authority who may accept the option and issue formal orders.

(3) In lieu of such leave, pay may be claimed for the actual period of such leave.

(3a) Provided that amount of leave encashment, before leave preparatory to retirement being a pensionary benefit shall not be subject to deduction of income tax/ withholding tax[56].

(4) For the purpose of payment in lieu of such leave:-

a) the rate of pay shall be the rate admissible at the time the leave pay is drawn;
b) the leave pay shall include the "personal pay" as admissible.

104. IN-SERVICE DEATH, ETC:

(1) If an employee dies, or declared permanently incapacitated or disabled by a Medical Board, while in service, a lump-sum payment equal to full leave pay up to three hundred and sixty five days out of his leave credit shall be made to his family as defined for the purposes of family pension or, as the case may be, to the employee.

(2) For the purpose of lump-sum payment under clause (1), the "personal pay" shall be included in the leave pay where admissible.

105. REASONS NEED NOT BE SPECIFIED, ETC:

(1) In case leave is due and admissible to an employee it shall not be necessary to specify the reasons for the applied leave under the prescribed regulations.

(2) Leave applied on medical certificate shall not be refused. Provided that the leave sanctioning authority may, at its discretion, secure a second medical opinion of the Authorized Medical Officer or Medical Board, as the case may be, to medically re-examine such employee.

106. RECALL FROM LEAVE:

(1) If an employee is recalled on duty compulsorily on the recommendation of the concerned Directorate he may be granted a single return fare plus daily allowance subject to approval of DG CAA on submitting cogent reasons, as admissible from the station where he is spending his leave to the place where he is required to report for duty.

(2) In case the employee is recalled on duty and his remaining leave is cancelled, the fare then admissible shall be for one way journey only.

107. OVERSTAY AFTER SANCTIONED LEAVE:

(1) Unless the leave of an employee is extended by the leave sanctioning authority, an employee who remains absent after the end of his leave shall not be entitled to pay for period of his absence from duty and double the period of such absence shall be deducted from his leave account, without prejudice to any disciplinary action that may be initiated against him.

[56] New Regulation 103(3A) added ibid

(2) If there is insufficient credit in the leave account, the unauthorized absence shall be adjusted against future leave.

108. COMBINATION OF LEAVE:

(1) One form of leave may be combined with joining time or with any other form of leave otherwise admissible to the employee. Combination of leave in any case shall not exceed 120 days.

(2) Notwithstanding the above leave preparatory to retirement shall not be combined with any other form of leave.

109. EMPLOYEE ON LEAVE NOT TO JOIN DUTY WITHOUT PERMISSION BEFORE ITS EXPIRY:

Unless the employee has been duly permitted by the leave sanctioning authority, shall not return to duty before the expiry of such leave period.

110. LEAVE DUE MAY BE GRANTED ON ABOLITION OF POST:

(1) When the service of an employee has been terminated by abolition of a permanent post, such employee shall be entitled to avail the option to encash his leave credit subject to the maximum limit of three hundred and sixty five days.

(2) The grant of leave in such cases shall be deemed to have also extended the duration of the post and tenure of the incumbent employee, except in cases of superannuation.

111. MANNER OF HANDING-OVER CHARGE WHEN PROCEEDING ON LEAVE EX-PAKISTAN:

(1) An employee proceeding on leave ex- Pakistan shall handover the charge of his post and shall sign the charge relinquishment report as prescribed.

(2) If leave ex-Pakistan has been sanctioned on medical grounds, the employee shall take abroad with him a copy of the medical statement of the Authorized Medical Officer or Medical Board, as the case may be.

112. ASSUMPTION OF CHARGE ON RETURN FROM LEAVE:

(1) An employee, on return from leave, shall report to the leave sanctioning authority before assuming duty.

(2) Such employee shall take charge of the same post or to which he is directed by the Competent Authority.

(3) If such employee is directed to take charge of a post at a station other than that from where he proceeded on leave, travel expenses as on transfer shall be payable to him.

113. HUMAN RESOURCE DIRECTORATE TO MAINTAIN LEAVE ACCOUNT:

(1) Leave account of an employee shall be maintained as part of his service book/ record subject to these Regulations.

(2) The Human Resource Directorate shall maintain the leave accounts of all employees as if they have been maintaining such accounts immediately before the commencement of these Regulations.

114. LEAVE TO LAPSE WHEN EMPLOYEE AVAILS GOLDEN HANDSHAKE SCHEME:

Leave credit in account of an employee who avails voluntary golden handshake scheme shall be governed by the conditions prescribed for such scheme.

115. PAY DURING LEAVE:

(1) Pay during leave shall be at the same rate as pay drawn on the day immediately before the beginning of the leave.

(2) Subject to these Regulations, an employee shall be entitled to revised leave pay if a general revision in pay of employee takes place or an annual increment accrues during such period of leave.

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Chapter IV

GENERAL PROVISIONS

116. LIABILITY OF THE EMPLOYEE TO SERVE ANYWHERE:

(1) All employees shall be liable to serve anywhere in connection with the affairs of the Authority.

(2) Provided that, where an employee is appointed to serve in a post outside his service cadre, his terms and conditions of service as to his pay shall not be less favorable than those to which he would have been entitled if he had not been required to serve so.

117. POSTING:

The Competent Authority may post an employee from one post to another equivalent post in the same cadre/trade to which he belongs[57].

118. CHANGE OF ADDRESS:

An employee shall on joining the service inform to the Human Resource Directorate his correct and verifiable permanent and present residential address. Upon any change in his addresses he shall immediately inform the said Directorate.

119. ABSENCE FROM DUTY:

Unless the Competent Authority otherwise determine in view of any special circumstances, an employee shall cease to be in the employment after five years of continuous absence from duty, elsewhere than on deputation.

120. WORKING HOURS:

(1) All employees shall remain at the disposal of the Authority.

(2) The normal working week for employees in full-time service of the Authority shall be 48 hours, excluding time for prayer and for meals.

(3) Subject to exceptions as prescribed in Working Hours Regulations, daily duty time shall be 8 hours for all employees.

(4) No employee shall be allowed to exchange duties without prior approval of the Authority.

(5) The Authority shall fix the weekly working rosters for all employees subject to service exigencies according to their respective cadre[s].

(6) Notwithstanding anything contained above an employee shall be under obligation to remain present on duty whenever directed by the Authority on account of service exigencies.

(7) Any violation of provisions of this regulation shall be misconduct.

121. ATTENDANCE AND LATE COMING:

(1) All employees shall be present on duty at the time specified by the Authority.

(2) The attendance of employees shall be marked daily according to the method specified by the Authority from time to time.

[57] Regulation 117 substituted ibid

(3) The Authority may specify different hours for attendance subject to service exigencies and Working Hour Regulations for the time being in force.

(4) All employees are required to sign the attendance register, shall record the time (hour and minute) of assuming and leaving the duty either manually or electronically as the case may be.

122. SERVICE AND FAMILY CARD AND PERMITS:

(1) All serving and retired employees shall comply with all orders and- instructions relating to the service and family cards either with or without any photograph as may be specified from time to time.

(2) The service and family cards shall be non-transferable.

123. APPEAL AND REVIEW:

(1) An employee aggrieved by any order relating to the terms and conditions of his service shall prefer an appeal or review in the manner as prescribed within thirty days of such order

(2) Where no right of appeal or review exists under the prescribed regulations, the aggrieved employee may file a representation to the Competent Authority through proper channel within thirty days of such grievance[58].

124. CODE OF CONDUCT:

All persons in employment of the Authority shall be under obligation to comply with the prescribed code of conduct for the time being in force.

125. COMPLIANCE OF SAFETY PROCEDURES:

All employees shall be bound to observe all safety orders issued by the Authority from time to time. A violation of safety order shall be misconduct and the employee concerned shall be liable for a disciplinary action under the prescribed Regulation for the time being in force.

126. UNIFORM AND LIVERIES SERVICE:

(1) The Authority may from time to time specify the application of uniform and liveries for all or any set of its employees.

(2) The condition of uniform under clause (1) shall only be applicable to employees of pay group EG-08 and below.

127. DELEGATION OF POWERS:

The Authority may delegate by order any or all of its powers and functions under these Regulations to the Director General, who may further re-delegate such powers to the concerned officer[s] in a manner consistent with the provisions of these Regulations.

128. RESIGNATION:

(1) No employee other than the Director General or a person on deputation from the Federal Government or a Provincial Government or an agency, department, organization or institution shall leave or discontinue his service in the Authority except:-

a. after giving one months' notice in writing of his intention to do so to the appointing authority in case of temporary employees; and
b. after giving three months' notice in writing of his intention to do so to the appointing authority in case of regular employees; or

[58] Regulation 123 substituted ibid

c. in case of immediate resign payment in lieu of notice period shall be made by the employee.

(2) If an employee leaves or discontinues his service in the Authority in contravention of the provisions of clause (1) above, it shall be misconduct and such employee shall be liable to a disciplinary action. In addition such employee shall pay as compensation to the Authority a sum equal to his prescribed pay for the period of notice or for the period that falls short of the prescribed period of notice.

(3) Provided that the Authority may, for reasons to be recorded in writing, waive, either wholly or in part the requirement to pay such compensation.

(4) The Authority reserves its right to reject such request of resignation, for the reasons to be recorded in writing.

(5) Provided that till such time the resignation of an employee is accepted or is relieved from his duty, will continue to be in the employment of the Authority and shall remain subject of these Regulations.

(6) The Competent Authority may permit an employee to withdraw his resignation before its acceptance on the following conditions, such as;

a. the resignation of the employee is due to some compelling reasons which did not involve any reflection on his integrity, efficiency or conduct; and
b. the request for withdrawal of resignation is due to a material change in the circumstances which originally compelled him to tender resignation.

129. COMMENCEMENT OF SERVICE:

The service of an employee in the Authority shall commence by reporting to the concerned officer within the period specified in his initial appointment letter.

130. POWER TO AMEND REGULATIONS AND SCHEDULES:

The Authority may amend or modify these Regulations and Schedules from time to time.

131. REMOVAL OF DIFFICULTIES:

(1) If any difficulty arises in giving effect to any of the provisions of these Regulations, the Authority may make such order, not inconsistent with the provisions of these Regulations as may appear to be necessary for the purpose of removing the difficulty.

(2) All orders and instructions related to terms and conditions of service issued by the competent authority and in force immediately before the commencement of these Regulations shall, in so far as such orders or instructions are not inconsistent with the provisions of these Regulations, be deemed as orders or instructions made under these Regulations.

132. APPLICATION OF FEDERAL GOVERNMENT REGULATIONS:

(1) The Authority may by specific orders apply any Federal service rule[s], as and when necessary, which is not inconsistent to the Ordinance or Rules or Regulations made there under.

(2) Provided that nothing contained in these Regulations shall operate in derogation to any right of a contract employee or a consultant as set out in the terms and conditions of the contract.

133. POWER TO RELAX THESE REGULATIONS:

The Authority shall not relax the provisions of these Regulations except for the interest of all employees of the Authority:-

134. POWER TO AMEND SCHEDULE:

The Authority may amend, modify or change any Schedule for carrying out the purposes of these Regulations from time to time[59].

135. POWER TO ISSUE ORDERS AND INSTRUCTIONS:

(1) The Director General may on the recommendation of the concerned Directorate, make such orders or issue instructions as it may deem appropriate for carrying out the purposes of these Regulations from time to time.

(2) Such orders and instructions shall not be inconsistent with these Regulations. In case of any inconsistency between the order/ instructions and the Regulations, the Regulations shall prevail[60].

[59] New Regulation 134 added ibid
[60] New Regulation 135 added ibid

SCHEDULE - I

(*See Regulation* 8(2))

METHOD OF APPOINTMENT

1) The appointment to the posts shall be made by promotion or direct recruitment.

2) For ;
   a. "The post of SG-05 will be filled by direct recruitment and promotion
   b. 25% of the posts of SG-05 to be filled by promotion".
   c. "The post of EG-01 will be filled by direct recruitment[61]".

CONDITIONS FOR PROMOTION

3) Promotion to posts in column 1 below shall be made by prescribed board from amongst the candidates who hold the posts on regular basis who possess the qualifications, experience and training as prescribed in CAAO. (To be prescribed by CAAO in format given below)

Post & Service Group	Condition of eligibility			Remarks
	Education	Experience	Training	

QUALIFICATIONS/CONDITIONS FOR TRANSFER

4) Omitted
5) Omitted[62]

QUALIFICATIONS/CONDITIONS FOR SELECTION UNDER INTERNAL JOB PLACEMENT (IJP) REGULATIONS

6) Appointments by selection under internal job placement shall be made according to the prescribed regulations (CAAO to be prescribed by Authority).

QUALIFICATIONS, EXPERIENCE AND AGE LIMITS FOR DIRECT RECRUITMENT

7) A candidate must possess the educational qualifications and experience and must be within the age limits as mentioned against the post concerned in the schedule to this CAAO. (To be prescribed in CAAO).

Designated Post	Pay Group	Qualifications and experience	Age limit Min/Max
1	2	3	4

Unless otherwise provided, the experience prescribed for initial appointment will be the post qualification.

Provided that the maximum age limits will be relaxed by 3 years in the case of candidates belonging to Scheduled Castes, Buddhist Community, recognized tribes of the Tribal Areas, Azad Kashmir, and Northern Areas (Districts of Gilgit, Skardu and Diamir), in accordance with the instructions issued by the Director General.

[61] Clause 1) and 2) of the Schedule-I substituted ibid
[62] Clause 4) and 5) of the Schedule-I omitted ibid

SCHEDULE-II

(*See Regulation 17(7) (i)*)

FORM OF MEDICAL CERTIFICATE

I,_____ do hereby certify that I have examined Mr. / Mrs./ Ms. _____ a candidate for employment in the Authority and confirm that he / she has no disease (communicable or otherwise) constitutional weakness or bodily infirmity except_____.

I consider / do not consider this a disqualification for employment in the Authority. Mr. / Mrs. / Ms._____'s age according to his/her own statement is _____years, and by appearance, about_____ years.

(Name & Designation of the Medical Attendant/Officer)

Signature of the Candidate **(Seal of the Medical Attendant/Officer)**

SCHEDULE-III

(See Regulation 73(h))

PANEL HOSPITAL

To be prescribed in a separate CAAO. This list of panel hospitals shall be reviewed and circulated at least bi-annually by the Competent Authority.

SCHEDULE-IV

(See Regulation 83)

FORM OF MEDICAL CERTIFICATE

_____
Name and Signature of applicant

MEDICAL CERTIFICATE FOR EMPLOYEES RECOMMENDED FOR LEAVE OR EXTENSION

I,_____, after careful personal examination of the case, hereby certify that whose name and signature is given above, is suffering from _____ and I consider that a period of absence from duty with effect from _____ is absolutely necessary for the restoration of his health.

Dated, the _____

Authorized Medical Attendant

SCHEDULE-V

(See Regulation 86 (3))

FORM OF FITNESS CERTIFICATE

_____
Name and Signature of applicant

FITNESS CERTIFICATE

I,_____, after careful personal examination of the case, hereby certify that whose name and signature is given above, his health is fully restored from such _____illness or ailment and is fit to resume its duty with immediate effect.

Dated, the _____

Authorized Medical Attendant

SCHEDULE-VI

(See Regulation 93 (1))

CONDITIONS FOR GRANT OF STUDY LEAVE

(1) Study leave may be granted to an employee[s] for study in relevant fields of duty or service cadre in furtherance of objectives and functions of the Authority. The employee on such study leave shall undertake any special course, including a degree, diploma, certification, etc. course subject to prior intimation and approval of the Authority.

(2) These regulations are not intended to meet the cases of employees deputed to other countries at the instance of Authority, either for the performance of special duties imposed on them or for the investigation of specific problems connected with their technical duties.

(3) The regulations shall apply to all employees.

(4) Study leave may be taken either in or outside Pakistan. It may be granted to an employee of the Authority once in a service, in accordance with Regulation 93 subject to the conditions that the leave sanctioning authority can make internal arrangements to carry on his work in his absence.

(5) Study leave should not ordinarily be granted to employees who have less than five years' service. Such leave shall not be granted to employees within three years of the date of superannuation or the date of which they have the option of retiring.

(6) The study leave should be granted with due regard to the service exigencies. In no case should the grant of this leave in combination with leave other than extra-ordinary leave or leave on medical certificate, involve an absence of an employee for more than 28 months from regular duties, or exceed two years in the entire service of an employee; nor should it be granted with such frequency as to remove him from contact with his regular work or to cause difficulties in the concerned Directorate owing to his absence on leave.

(7) Provided that the period of three years may be extended to four years on the merit of each case for obtaining a Doctorate, subject to the condition that the extension should not be available for scholars who fail to complete the courses within the prescribed time limit.

(8) Provided that the limits of absence from regular duties prescribed above include the period of vacation if any.

(9) Extraordinary leave may not be taken in conjunction with study leave.

(10) An employee whose study leave is combined with any other kind of leave should be required to take his period of study leave at such a time as to retain at its conclusion, a balance of other previously sanctioned leave sufficient to cover the period spent in returning to duty.

(11) When an employee has been granted a definite period of study leave and finds subsequently that his course of study will fall short of the sanctioned period to any considerable extent, his absence from duty should be reduced by the excess period of study leave unless he produces the approval of the leave sanctioning authority to be deemed as ordinary leave.

(12) All applications for study leave should be submitted with the Human Resource Directorate's certificate to the head of the concerned Directorate through the prescribed channel, and the course or courses of study contemplated and any examination which the candidate proposes to undergo should be clearly specified therein. If the course of study is outside Pakistan the Director General may also forward to the Embassy of Pakistan or directly a copy of the approved program of study. If it is not possible for the employee to give full details as above, in his original application, or if after leaving Pakistan he wishes to make any changes in the program which has been approved in Pakistan, he should submit particulars as soon as possible to the Authority through Embassy of Pakistan or directly. In such cases, he should not unless prepared to do so at his own risk, commence the course of study, nor incur any expenses in connection therewith, until he receives approval of the Authority to the course through the Embassy of Pakistan or directly.

(13) Employees on leave outside Pakistan who wish to convert part of their leave into study leave or to undertake a course of study during leave, should before commencing study and before incurring any expenses in connection therewith, submit a program of their proposed course of study to the Authority through Embassy of Pakistan or directly. The program should be accompanied by an official syllabus of the course, if one is available and by any documentary evidence that the particular course or examination has the approval of the Higher Education Commission in Pakistan.

(14) No course of study will be recognized as qualifying for the grant of study leave for any other purpose unless it has been approved in at least broad outline by the Authority in accordance with paragraph 12 and 13 above.

(15) A study leave will be granted subject to Regulation 94 for the period spent in pursuing a definite course of study at a recognized institution or in any definite course tour or inspection of any special class of work, as well as for the period covered by any examination at the end of the course of study.

(16) Provided that an employee admitted in the Ph. D course shall be allowed full pay during study leave subject to the condition that the Ph. D shall be in the relevant field of duty or service.

(17) Study leave will be admissible for any period of vacation. A period during which an employee interrupts his course for his own convenience cannot be considered as vacation. Study leave will be given at the discretion of the Authority. In the case of an employee retiring from service without returning to duty after a period of study leave, it will be converted into ordinary leave to the extent of the ordinary leave standing to his credit on the date of retirement. Any balance of the period of study leave mentioned which cannot be so converted will be excluded in reckoning service for pension.

(18) Employees granted study leave are ordinarily required to meet the cost of fees paid for courses of study.

(19) On completion of a course of study, a certificate on the proper form (which may be obtained from the Embassy of Pakistan), together with certificates of examinations passed or of special study shall when the study leave has been taken outside Pakistan, be forwarded to the Authority supported by proper certificates of attendance.

(20) Study leave may be counted as service for promotion and pension if sanctioned against the leave at the credit of the employee.

(21) On an application for study leave outside Pakistan being sanctioned by the Authority, it shall inform the Embassy of Pakistan of the particulars of the case. It will be necessary for each employee concerned to place himself in communication with the Embassy, who will arrange any details and issue any letters of introduction that may be required.

SCHEDULE-VII[63]

(See Regulation 71)

FINANCIAL AND OTHER ENTITLEMENTS FOR FAMILY OF A DECEASED EMPLOYEE

Item	***In service Death***	***Security / law and order related death while in service***
Lump sum grant	***SG-01 to SG 11*** — ***Rs. 1.5 Million*** ***EG-01 to EG 04*** — ***Rs. 2.5 Million*** ***EG-05 to EG 06*** — ***Rs. 3.0 Million*** ***EG-07 and above*** — ***Rs. 3.5 Million***	*a. Upto Rs. 10 million according to the following pay groups.-* ***SG-01 to SG 11*** — ***Rs. 5 Million*** ***EG-01 to EG 04*** — ***Rs. 7 Million*** ***EG-05 to EG 06*** — ***Rs. 8 Million*** ***EG-07 and above*** — ***Rs. 10 Million*** *b. Rs. 1 million to the employee in-capacitated and released from service for having became invalid as a result of injury in encounters / bomb blast, roits/ watch & ward duty or terrorist activity.* *c. Rs. 1 million to the employee in-capacitated as a result of injury in accidents as stated in para b above but are still serving in the Authority.*
Pension	*100% pension to families of a deceased employees as per their length of service and last pay drawn. In case of less than 10 years service of deceased employee rate of minimum 10 years will be applicable.*	*100% pension to families of a deceased employees as per their length of service and last pay drawn. In case of less than 10 years service of deceased employee rate of minimum 10 years will be applicable.*
Accommodation	*Retention of Authority accommodation or payment of rent for hired house till the age of superannuation.*	*Retention of Authority accommodation or payment of rent for hired house till the age of superannuation.*
Education	*Free education to all children up to graduation in any public/ government institution including expenses of tuition fee books related material and living allowance etc.*	*Free education to all children up to graduation in any public/ government institution including expenses of tuition fee books related material and living allowance etc.*
Employment	*Employment for the post in SG-01 to SG-10 on five years contract without advertisement to the wife or son or daughter of deceased employee, which may further be extendable to the age of superannuation or regularization.*	*Employment for the post in SG-01 to SG-10 on five years contract without advertisement to the wife or son or daughter of deceased employee, which may further be extendable to the age of superannuation or regularization.*
Marriage grant	*Marriage grant amounting to Rs 0.8 million of wedding of one daughter to the family of deceased employee.*	*Marriage grant amounting to Rs 0.8 million of wedding of one daughter to the family of deceased employee.*
Health	*Free health facilities as per the entitlement of deceased employee during service.*	*Free health facilities as per the entitlement of deceased employee during service.*
Nomination of an officer as council	*An employee of EG-01 to- EG-04 may be nominated by the Authority as council who will be responsible for finalization/provision of all the*	*An employee of EG-01 to- EG-04 may be nominated by the Authority as council who will be responsible for finalization/provision of all the facilities*

[63] Schedule VII added ibid

	facilities under the package to the families of employees who die in service within one month of the incident.	*under the package to the families of employees who die in service within one month of the incident.*
Prerequisites for facilitation of family of deceased employee	*In case of in service death of employee, the following pre-requisite must immediately be fulfilled by the Competent Authority, without any delay.-* *a. immediate submission of pension case;* *b. option for anticipatory pension [80 % of the total pension];* *Besides as a pro-active approach the competent Authority must observe the following practices regarding their employees.-* *c. upto date list of family members of each employee for pension purpose be maintained before hand;* *d. nomination of GP fund must be ensured for each employee in his/her life.*	*In case of in service (security related) death of employee, the following pre-requisite must immediately be fulfilled by the Competent Authority, without any delay.-* *a. immediate submission of pension case;* *b. option for anticipatory pension [80 % of the total pension];* *Besides as a pro-active approach the competent Authority must observe the following practices regarding their employees.-* *c. upto date list of family members of each employee for pension purpose be maintained before hand;* *d. nomination of GP fund must be ensured for each employee in his/her life.*
GP Fund	*Only payable amount of GP fund shall be paid to the deceased employee's family.*	*Only payable amount of GP fund shall be paid to the deceased employee's family.*

ORDER

(Under Regulation 127)

REG-001-HRXX-2.0 - In exercise of the powers conferred under Regulation 127 of the Civil Aviation Authority Employees (Appointment, Promotion, Transfer and other Service Terms and Conditions) Regulations 2014 (Revised Version-2019), the Civil Aviation Authority vide its Board decision dated 01st August, 2019 is pleased to order delegation of its powers and functions to the Director General except the powers to modify or amend these Regulations.

It is further directed that the Director General may re-delegate any powers and functions to the concerned officer in a manner consistent with the provision of these Regulations.

Secretary of the Board

(Seal)

In exercise of the power conferred by section 27 of the Pakistan Civil Aviation Ordinance, 1982 (XXX of 1982) read with section 12 of the said Ordinance, the Civil Aviation Authority with the approval of the Board during its 192nd Meeting held on April 8th, hereby makes the following amendment in regulations: -

i. **Civil Aviation Authority Employees (Appointment, Promotion, Transfer and other Service Terms & Conditions) Regulations 2014.**

Secretary of the Board

(Seal)

CIVIL AVIATION AUTHORITY EMPLOYEES (APPOINTMENT, PROMOTION, TRANSFER AND OTHER SERVICE TERMS AND CONDITIONS) AMENDMENT REGULATIONS

CSRG-001-HRXX-1.0 - In exercise of the power conferred by section 27 of the Pakistan Civil Aviation Ordinance, 1982 (XXX of 1982) read with section 12 of the said Ordinance, the Civil Aviation Authority with the approval of the Board during its 192nd held on April 8th 2022, hereby makes the following amendment in regulations, namely: -

1. SHORT TITLE, EXTENT, APPLICATION AND COMMENCEMENT:-

(1) These regulations shall be called the Civil Aviation Authority Employees (Appointment, Promotion, Transfer and other Service Terms and Conditions) Amendment Regulations 2022.

(2) These regulations shall come into force with effect from the date of approval of the CAA Board in its meeting 192nd held on April 8th, 2022.

2. AMENDMENT OF REGULATION 73:- In regulation 73, sub -regulation (d), shall be substituted and read as follows. -

"Family" of an employee includes his spouse, dependent parents and children up to the maximum age of 21 years (including step children) but the age limit in case of un-married daughter[s] shall be up to the maximum age of 26 years;

3. AMENDMENT OF REGULATION 74:- In regulation 74, after sub -regulation (1), **Explanation -1 and Explanation -2** shall be added and read as follows. -

Explanation -1; In case of spouse serving / retired from Government Organization, he/she shall be entitled for medical treatment from Authority provided that he/she is not availing medical facilities from the parent organization;

Explanation -2; Provided that parents of serving employee shall be entitled for medical treatment if they are not availing medical facility from any other source;

4. AMENDMENT OF REGULATION 77:- In regulation 77, sub -regulation (1), shall be substituted and read as follows. -

(1) A retired employee and his/ her spouse shall be entitled to medical treatment equivalent to pay group in which he/she has retired.

5. AMENDMENT OF REGULATION 88A:- The regulation 88A shall be omitted.

6. <u>AMENDMENT OF SCHEDULE VII READ WITH REGULATION 71:</u>- In Schedule VII, sub -row (Health), shall be substituted and read as follows. –

Health	Medical facilities as per entitlement of deceased employee during service. **Explanation:** Medical attendance /treatment shall be provided to the family of Deceased Employee till the time of Superannuation.	Medical facilities as per entitlement of deceased employee during service. **Explanation:** Medical attendance /treatment shall be provided to the family of Deceased Employee till the time of Superannuation.

CIVIL AVIATION AUTHORITY EFFICIENCY AND DISCIPLINE REGULATIONS, 2014 (REVISED VERSION - 2019)

REG-002-HRXX-2.0 - In exercise of the powers conferred by Section 27 of the Pakistan Civil Aviation Authority Ordinance, 1982 (XXX of 1982), the Authority is pleased to make the following Regulations as per decision taken at the 179th meeting of the Board held on the 01st August, 2019 for speedy disposal of efficiency and discipline cases and matters ancillary thereto:-

1. SHORT TITLE, COMMENCEMENT, EXTENT AND APPLICATION:

(1) These Regulations shall be called the "Civil Aviation Authority (Efficiency & Discipline) Regulations, 2014 (Revised Version-2019)".

(2) These Regulations shall come into force at once.

(3) These shall be applicable to all employees of the Authority[64].

(4) Nothing contained in these Regulations shall affect any decision taken or order made by the Competent Authority, before the commencement of these Regulations, unless specified otherwise.

(5) Notwithstanding the above provisions, the Authority may exclude wholly or in part from the operation of these regulations any person or group of persons.

(6) Provided that if any doubt arises with reference to the application of any or all provisions of the prescribed Regulations, the matter shall be referred to the Director General whose decision thereon shall be final.

2. DEFINITIONS:

In these Regulations, unless there is anything repugnant in the subject or context: -

a. **"Accused"** means an employee against whom an action has been initiated under regulations 6[65];

aa. **"Appointment"** includes all appointments whether by recruitment, promotion, and /or contract[66];

b. **"Authority"** means the Authority, constituted under Section 3 of the Ordinance;

c. **"Authorized Officer"** means an officer authorized by the Competent Authority for the purpose of these Regulations and if no officer is so authorized, the Competent Authority itself;

d. **"Chairman"** means the Chairman of the Authority;

e. **"Charge"** means a formal charge sheet issued to the accused;

f. **"Competent Authority"** means the appointing authority duly designated by the Authority;

g. "**Censure**" official expression of displeasure/disapproval and an official warning[67];

h. **"Director General"** means the Director General of the Authority;

i. **"Employee"** includes all employees engaged for rendering service to the Authority whether:-

[64] Regulation 1(3) substituted by the CAA Board in its Meeting held on August 1, 2019
[65] Regulation 2(a) substituted ibid
[66] Regulation 2(aa) added ibid
[67] Regulation 2(g) substituted ibid

i. an employee as defined in the Civil Aviation Authority Employees (Appointment, Promotion, Transfer and Service Terms and Conditions) Regulations, 2014 (Revised Version-2019);

ii. on contract;

iii. on temporary basis; and

iv. on ad-hoc basis.

j. **"Gender and Number"** in these Regulations means:-

i. Words importing the masculine gender shall be taken to include the feminine; and

ii. Words in singular shall include the plural and the words in plural shall include the singular;

k. **"Interpretation committee"** means committee constituted under Civil Aviation Authority Employees (Appointment, Promotion, Transfer and Other Service Terms and Conditions) Regulations, 2014 (Revised Version-2019).

l. **"Misconduct"** include conduct prejudicial to good order or service discipline or contrary to the Civil Aviation Authority Employees (Code of Conduct) Regulations, 2014 (Revised Version-2019) or unbecoming of a public servant and a prudent person or engage in corrupt practices or any act by an employee to bring or attempt to bring political or other influence directly or indirectly or affecting the functions or objectives of the Authority or unauthorized disclosure, communication or production of official internal correspondence of the Authority in any form whatsoever or any matter relating to the appointment, promotion, transfer, penalty or other conditions of service of an employee as per regulation 6[68];

m. **"Ordinance"** means Pakistan Civil Aviation Authority Ordinance, 1982 (XXX of 1982);

n. **"Penalty"** means, a penalty specified under these Regulations[69];

o. **"Schedule"** means schedule attached to these Regulations.

3. INTERPRETATION:

Wherever a clarification is required, the interpretation committee shall be the final authority to interpret any provision of these Regulations and for all supplementary instructions and orders issued in connection with these Regulations[70].

4. AUTHORITY TO IMPOSE MINOR PENALTY:

(1) The Authorized Officer as specified by the Authority shall have the power to impose minor penalty.

(2) Provided that such officer may also initiate inquiry proceeding before issuing the show cause notice containing specific charges to the accused.

5. AUTHORITY TO IMPOSE MAJOR PENALTY:

(1) The Competent Authority as specified by the Authority shall have the power to impose major penalty.

(2) Provided that in all cases where penalty required to be imposed is not within the competence of the Authorized Officer the case shall be forwarded to the Competent Authority with his written recommendations.

6. GROUNDS FOR INITIATION OF DISCIPLINARY PROCEEDINGS:

(1) When an employee in the opinion of the Authorized Officer.-

[68] Regulation 2(l) substituted ibid
[69] Regulation 2(n) substituted ibid
[70] Regulation 3 substituted ibid

a. is inefficient or has ceased to be efficient; or
b. displays negligence or who knowingly does anything detrimental to the interest of the Authority or in conflict with its instructions, orders, regulations, rules, Ordinance, etc.; or
c. commits a breach of discipline; or
   i. has submitted fake/ bogus educational credentials, domicile and other documents at the time of appointment or at any time while in service of the Authority; or[71]

d. guilty of misconduct; or
e. is corrupt or may reasonably be considered as corrupt, because:-

   i. he or any of his dependents or any other person through him or on his behalf, is in possession of pecuniary interest or property disproportionate to his known sources of income; or
   ii. he has a reputation of declaring fellow employees corrupt without any substantial evidence; or[72]
   iii. he has a persistent reputation of being corrupt; or
   iv. there are complaints against him of monetary or financial corruption or any unlawful gain substantiated by evidence;

f. is engaged or is reasonably suspected of being engaged, in subversive activities, or is reasonably suspected of being associated with others engaged in subversive activities and his retention in service is therefore prejudicial to the national security or he is guilty of disclosure of service related sensitive information by any means whatsoever to any unauthorized person; or
g. has entered into plea bargaining under any law for the time being in force and has returned the assets or gains acquired through corruption or corrupt practices voluntarily; or
h. is found to have been appointed or promoted on extraneous grounds in violation of the regulations for the time being in force, the Competent Authority upon inquiry may notwithstanding anything contained in terms & conditions of service of such employee, by order in writing dismiss or remove such employee from service, compulsorily retire from service or reduce him to lower post or pay group or impose one or more penalties as prescribed in Regulation No. 7.
i. habitual absences without leave or habitual late attendance; or
j. has been indulged in any political activity, including forming a political, social, trade, religious, ethnic or linguistic association and has joined as a member or an office-bearer; or
k. acts in a manner prejudicial to the interest of the Authority; or
l. propagate sectarian creeds or take part in sectarian controversy or indulge in sectarian partiality or favoritism; or
m. indulges in provincialism, parochialism, nepotism, victimization and willful abuse of power against any individual by reason of his designation/ charge; or[73]
n. is engaged directly or indirectly in any trade, business or occupation (on his own account) or undertake any other employment while in service; or
o. has made his recourse to the press for vindication; or
p. has committed to judicial lock up or any prison for more than four calendar months from the date of his arrest; provided that it is established during the inquiry that the employee is involved in crime; or
q. is suspected of commission of any offence or conduct which has violated the provisions of any special or general laws including Ordinance, or Rules or Regulations, instructions or orders made there under.[74]

7. PENALTIES:

Following are the minor and major penalties:-

[71] Regulation 6(c) (i) added ibid
[72] Regulation 6(e) (ii) substituted ibid
[73] Regulation 6(m) substituted ibid
[74] Regulation 6(q) substituted ibid

A. MINOR PENALTIES;

(1) Censure; provided that censure will not be construed as a justification for deferment of promotion of regular employee;

(2) Withholding, for a specific period of one year or not more than two years, promotion of regular employee or increment etc., otherwise than for unfitness for promotion or financial advancement in accordance with the Regulations; Provided that the Authority through its order declares withholding of the increment without cumulative effect;

Provided that an order of withholding the increment shall deem to have been made from the date of issuance of such order with a prospective effect[75].

(3) Recovery from pay and other payable dues of the whole or any part of any pecuniary loss caused to the Authority by negligence or breach of orders.

(4) The penalties shall also be applicable mutatis mutandis to all contract employees.

B. MAJOR PENALTIES;

(1) For regular employee;

a. Reduction to one or two lower stages in a time scale with cumulative effect as specified by the Competent Authority in the penalty order[76];

i. Reduction to the next lower pay group for a period of one year and not more than three years and to be reverted to his original position on completion of the penalty period as if no penalty was imposed or as specified by the Competent Authority in the penalty order;

ii. Reduction to the next lower pay group for a period of three years and not more than five years and to be considered for promotion upon completion of penalty period as specified by the Competent Authority in the penalty order[77];

b. Compulsory retirement;

c. Removal from service; and

d. Dismissal from service;

(2) For contract employee;

a. Termination of contract with all admissible benefits; or

b. Termination of contract without benefits; or and

c. Termination of contract barring him from future employment in any government organization or department.

(3) Provided that compulsory retirement or removal or dismissal from service shall disqualify an employee for future employment in the Authority.

Explanation - I: *In this Regulation removal or dismissal from service does not include the discharge of an employee from service in case of unsatisfactory performance during the period of probation after recruitment;*
Explanation - II: *Employees appointed against temporary or ad-hoc posts or engaged under a contract in accordance with the terms of the service contract.*

(4) In case of major penalty of dismissal or removal or compulsory retirement from service or reduction to lower pay group or pay scale of an employee shall be in addition to;

a. recovery of amount embezzled or misappropriated by an employee; or

[75] Regulation 7(A)(1) &(2) substituted ibid
[76] Regulation 7(B)(1) (a) substituted ibid
[77] Regulation 7(B)(a) (i) & (ii) added ibid

b. liability to any punishment to which an employee may be liable for an offence[s] under any law for the time being in force committed by him while in the service of the Authority.

(5) An employee whose integrity assessment report is unsatisfactory or is revoked or withdrawn, after giving him a right of hearing, the Competent Authority may impose any prescribed penalty as it may deem fit in the circumstances of the case.

8. PROCEDURES FOR CONVICTED EMPLOYEE UNDER ANY OTHER LAW:

(1) Where an employee has been convicted by a court of law and sentenced to imprisonment or fine, the Competent Authority shall examine the facts and the grounds on which the order convicting such employee was passed by a court of law.

(2) Where on examination the Competent Authority finds that order of imprisonment or fine is based on:-

a. established charges of corruption or moral turpitude it shall pass an order for dismissal / removal of delinquent employee from service with effect from the date of his conviction by a court of law; and[78]

b. charges other than corruption or moral turpitude it may, in the light of the facts and circumstances of the case, decide as to whether it is a fit case for taking disciplinary action under these Regulations and it may impose any penalty authorized by these Regulations as it may deem fit in the circumstances of the case.

9. ACTIONS TO BE TAKEN BEFORE INITIATION OF INQUIRY:

(1) The following procedure shall be observed;

a. in order to initiate any inquiry against an employee, the Authorized Officer may require him to proceed on leave or suspend him with the approval of the Competent Authority till the finalization of his case or till such time as the Competent Authority may decide otherwise.

b. Provided that where the Competent Authority is the Chairman of the Authority powers of the Competent Authority under this clause shall be exercised by the Director General.

c. The Authorized Officer shall serve an explanation under Schedule–I to the concerned employee to explain his position and the Authorized Officer after receipt of his reply shall decide to:-

i. accept the reply of explanation and not to proceed any further; or

ii. issue him show cause notice as prescribed under Schedule-II in case he confesses or sufficient documentary proof is available regarding his misconduct for dispensing with the inquiry proceedings. The Authorized Officer shall give reasons to be recorded in writing that there is no need of holding an inquiry; or

iii. hold an inquiry in accordance with Regulation 10; or

iv. If the Authorized Officer considers that the offence committed lies in the realm of national security, Competent Authority shall be immediately informed for initiation of action under law against the concerned accused. In such cases no opportunity of show cause may be given where the Competent Authority is satisfied that in the interest of security of Pakistan or any part there of it is not expedient.

10. INQUIRY PROCEDURE:

(1) The following procedure shall be observed when it is decided to hold an inquiry against an employee under these Regulations:-

a. In case where an employee is accused of subversion, corruption, involvement in criminal case or misconduct, the Authorized Officer may require him to proceed on leave or suspend him with the approval of the Competent Authority. Provided that

[78] Regulation 8(2)(a) substituted ibid

suspension period shall not exceed more than 90 days, unless extended otherwise by the Competent Authority for reasons to be recorded in writing. Provided that where the Competent Authority is the Director General, he may delegate his powers to the Director Human Resource[79];

b. The Authorized Officer shall decide whether in the light of facts of the case or in the interest of justice an inquiry should be conducted through an inquiry officer or the inquiry committee. If he so decides, the procedure indicated in Regulation 11 shall apply;

c. The Competent Authority or Authorized Officer, as the case may be, will constitute an inquiry committee or authorize an inquiry officer through a written order to establish the authenticity of the allegations / charges or otherwise and specify the character of information required from that inquiry[80];

d. The Competent Authority or Authorized Officer as the case may be shall ensure service of the inquiry order along with charge sheet to the accused employee[s] and the inquiry officer or the inquiry committee;

e. The accused within a reasonable time, which shall not be less than seven days or more than 14 days from the day the charge[s] is communicated to him, to put in a written defence and to state at the same time whether he desires to be heard in person or otherwise;

f. The inquiry officer or the inquiry committee, as the case may be, shall inform the accused, complainant (if any) and their witnesses to appear before the inquiry officer or the inquiry committee, as the case may be, on the date, time and place fixed in the notice;

g. The inquiry officer or the inquiry committee, as the case may be, shall conduct inquiry of facts related to charge[s] and may examine such oral or documentary evidence in support of the charge[s] or in defence of the accused as may be considered necessary and the accused shall be entitled to cross examine the witnesses against him;

h. The inquiry officer or the inquiry committee, as the case may be, shall hear the case from day to day and no adjournment shall be given except for special reasons to be recorded in writing. However, every adjournment, with reasons thereof shall be reported forthwith to the Authorized Officer. Provided that no adjournment shall be for more than a week;

i. Where the inquiry officer or the inquiry committee, as the case may be, is satisfied that the accused is hampering or attempting to hamper the progress of the inquiry a warning shall be given to the accused and if the accused in any way act in disregard of the warning, finding to that effect shall be recorded and inquiry proceeding shall be completed in such manner as deemed proper in the interest of substantial justice;

j. The inquiry officer or the inquiry committee, as the case may be, shall submit findings, opinion and recommendations pursuant to the inquiry proceeding to the Authorized Officer;

k. If there is sufficient documentary evidence against the accused regarding his involvement in misconduct or corruption and the Authorized Officer decides that it is not necessary to have an inquiry conducted through an inquiry officer or the inquiry committee; he shall:-

   i. by order in writing, inform the accused of the action proposed to be taken against such accused along with the grounds of actions; and

   ii. give him a reasonable opportunity of showing cause against the action within seven days or within such extended period as the Authorized Officer may determine;

[79] Regulation 10(1)(a) substituted ibid
[80] Regulation 10(1)(c) substituted ibid

l. Provided that no such opportunity shall be given where the Competent Authority is satisfied that in the interest of security of Pakistan or security of any important operational equipment or installation of the Authority or any part thereof it is not expedient to give such opportunity;

m. Where an inquiry is made under Regulation 8 Director Human Resource on his behalf may recommend the Competent Authority to remove an employee from his post or service with or without any service benefits;

n. If the employee is involved in any offence under the Prevention of Anti National Activity Act, 1974 (VII of 1974) or the **Private Military Organizations (Abolition** and **Prohibition) Act, 1973** (IV of 1974) his case shall be referred by the Directorate of Human Resource to the Director General for lodging criminal complaint against such employee in addition to the penalties imposed under these Regulations;

o. The inquiry committee after completion of inquiry proceedings shall submit its report along with findings, opinion and recommendations as per Schedule-III to the Authorized Officer or Competent Authority within thirty days of the initiation of inquiry or within such extended period as allowed by the Competent Authority;

p. On receipt of the report of the inquiry officer or the inquiry committee, as the case may be, or, where no such officer or committee is appointed, on receipt of the explanation of the accused, if any, the Authorized Officer shall determine whether the charge[s] has been proved or otherwise. If it is recommended by the inquiry officer or the inquiry committee, as the case may be, to propose to impose minor penalty[s] if agrees to such recommendations, he shall pass an order in accordance to give effect to such recommendation;

q. If it is proposed or recommended by the inquiry officer or the inquiry committee to impose a major penalty[s] or the Authorized Officer disagree with the recommendation of the inquiry committee, in such circumstances the Authorized Officer shall forward the case to the Competent Authority along with the charge and statement of allegation served on the accused, the explanation of the accused, the findings and recommendations of the inquiry officer or the inquiry committee, if appointed, and his own recommendations regarding the major penalty to be imposed. The Competent Authority shall pass such orders as it may deem appropriate in accordance with the procedures prescribed under these Regulations.

11. PROCEDURE TO BE OBSERVED BY THE INQUIRY OFFICER OR INQUIRY COMMITTEE:

(1) Where an inquiry officer or the inquiry committee is appointed, the following procedure shall be observed by the inquiry officer or the inquiry committee, as the case may be:-

a. frame a charge and communicate it to the accused together with statement of allegations explaining the charge and any other relevant circumstances which are proposed to be taken into consideration;

b. require the accused within a reasonable time, which shall not be less than seven days or more than 14 days from the day the charge is communicated to him, to put in a written defence and to state at the same time whether he desires to be heard in person;

c. shall inquire into the charge and may examine such oral or documentary evidence in support of the charge or in defence of the accused as may be considered necessary and the accused shall be entitled to cross examine the witnesses against him;

d. shall hear the case from day to day and no adjournment shall be given except for special reasons to be recorded in writing. However, every adjournment, with reasons thereof shall be reported forthwith to the Authorized Officer. Provided that no adjournment shall be for more than a week;

e. if satisfied that the accused is hampering, or attempting to hamper, the progress of the inquiry a warning shall be given to the accused and if the accused in any way act in

disregard of the warning, finding to that effect shall be recorded and inquiry proceeding shall be completed in such manner as deems proper in the interest of substantial justice;

f. shall submit findings, opinion and recommendations pursuant to inquiry proceeding to the Authorized Officer within thirty days of the initiation of inquiry or within such extended period as allowed by the Authorized Officer.

12. POWERS OF THE INQUIRY OFFICER OR INQUIRY COMMITTEE:

(1) For the purpose of an inquiry under these Regulations, the inquiry officer and the inquiry committee shall have the powers of a civil court under the provisions of the Code of Civil Procedure, 1908 (Act V of 1908) in respect of the following matters, namely:

a. summoning and enforcing the attendance of any person relevant to the case;
b. examining him on oath;
c. requiring the discovery and production of any document;
d. receiving evidence on affidavits; and issuing commissions for the examination of the witnesses or documents.

(2) The proceedings under these Regulations shall be deemed to be judicial proceedings within the meaning of Section 193 and 228 of the Pakistan Penal Code (Act XLV of 1860).

13. REGULATION 9, 10 NOT TO APPLY IN CERTAIN CASES:

Nothing in Regulation 9 and 10 shall apply to a case:-

a. where the accused is dismissed or removed from service or reduced in lower pay group, on the ground of misconduct which has led to a sentence of fine or of imprisonment in any court of law; or

b. where the Competent Authority which dismisses or removes such employee from service, or to reduce an employee in lower pay group, is satisfied that, for reasons to be recorded in writing, it is not reasonably practicable to give the accused an opportunity of showing cause.

14. REVISION:

(1) The Competent Authority may call for the record of any case pending before or disposed of by the Authorized Officer and pass such order in relation thereto as it may deem fit.

(2) No order under clause (1) shall be passed in respect of an accused unless the Authorized Officer has informed the accused or such employee in writing of the grounds on which it is proposed to make the order and has been given an opportunity of showing cause against it, including an opportunity of personal hearing if requested by the accused or is otherwise necessary in the interest of justice, in particular, when the Competent Authority finds reasonable justification to pass order to impose or enhance the penalty as the case may be.

15. ACTION IN RESPECT OF EMPLOYEES REQUIRED TO PROCEED ON LEAVE OR SUSPENDED:

If an accused is required to proceed on leave or suspended in pursuance of an order under clause (a) of sub-regulation (2) of Regulation 8 is not dismissed, removed from service, reduced in lower pay group or compulsorily retired, he shall be required to rejoin duty. The period of such leave or suspension shall be treated as duty on full pay.

16. PROCEDURE OF INQUIRY AGAINST PERSON ON DEPUTATION TO THE AUTHORITY:

When a person, is serving on deputation in the Authority, incase circumstances exist to initiate disciplinary proceedings against such person under these Regulations, the Authority shall forward a

report with supporting documents on the basis of which disciplinary proceedings are proposed against such person to his parent department or organization, and if it deems necessary, it may with the approval of the such parent department or organization place him under suspension or send him on leave. On receipt of report from the Authority, such parent department or the organization shall take action as prescribed under its relevant Rules or Regulations for the time being in force.

17. PENDING PROCEEDINGS TO CONTINUE:

For the removal of doubts, it is hereby provided that all proceedings pending immediately before the commencement of these Regulations against an employee shall deemed to be pending under these Regulations.

18. INDEMNITY:

No suit, prosecution or other legal proceedings shall lie against the Competent Authority or any Authorized Officer or inquiry officer or members of the inquiry committee for anything which is done in good faith or intended to be done under these Regulations, Instructions and Orders made there under from time to time.

19. POWER TO ISSUE ORDERS AND INSTRUCTIONS:

(1) The Director General may on the recommendation of concerned Directorate, make such orders or issue instructions as it may deem appropriate for carrying out the purposes of these Regulations from time to time.

(2) Such orders and instructions shall not be inconsistent with these Regulations. In case of any inconsistency between the order/ instructions and the Regulations, the Regulations shall prevail[81].

20. REMOVAL OF DIFFICULTIES:

If any difficulty arises in giving effect to any of the provisions of these Regulations, Director General may make such order, not inconsistent with the provisions of these Regulations, as may be necessary for removing any such difficulty.

21. APPLICATION OF FEDERAL GOVERNMENT REGULATIONS:

Where these Regulations do not contain any provision covering any specific matter relating to the Efficiency and Discipline, the Authority may under specific order apply Federal Government rules that are not inconsistent with the provisions of the Ordinance, Rules, Regulations and Orders made there under.

22. RELAXATION OF REGULATIONS:

The Authority shall have the powers to relax any provision of these Regulations, except provision related to imposition of penalty, with reasons to be recorded in writing.

23. APPLICATION OF EFFICIENCY AND DISCIPLINE ORDERS:

All orders, directives and instructions presently in force on matters related to efficiency and discipline shall remain in force unless inconsistent or contrary to the provisions of these Regulations.

[81] Regulation 19 substituted ibid

[See Regulation 4]
Competent Authority and Authorized Officer
To be specified by the Authority

SCHEDULE-I

[See Regulation 9(c)]

To: Mr. _____
EG / SG._____BPS (In case of officials on deputation) _____,
Designation _____,
Directorate / Unit_____.

Subject: **EXPLANATION**

1. It has been observed / reported that you have committed the following acts of commissions and omissions, which calls for issuance of this explanation letter as to why disciplinary proceedings / action may not be taken against you for the same. Details of allegation[s] together with the specific charges are as under:

a. _____
b. _____
c. _____
d. _____
e. _____

2. You are hereby directed to submit your reply to the undersigned within seven (07) days of the receipt of this letter, as to why disciplinary proceeding /action as aforesaid may not be initiated against you.

3. If you fail to submit your written submission in defence within aforesaid period, it shall be presumed that you have admitted the truth of all charges and accepted the charges, whereby the case shall be decided ex-parte decision against you on the basis of available record / evidence.

Name and Designation
Authorized Officer

Encl: (Copies of Evidentiary material, if any)

Copy to:

1. Concerned Directorate
2. Personal File
3. Case File
4. Office Copy

SCHEDULE-II

[See Regulation 9 (c)(ii)]

SHOW CAUSE NOTICE

Whereas, you

a. Name: _____,
b. Designation: _____
c. Directorate/ Unit: _____
d. Place of Posting: _____

while serving as _____ are accused of having committed the following acts, which constitute:-

a. Inefficiency
b. Misconduct
c. Unauthorized absence
d. Corruption
e. Committal of an offence Or any other law for the time being enforced (write whatever is applicable) under Regulation 6 of Civil Aviation Authority (Efficiency and Discipline) Regulations, 2014 (Revised Version-2019):

2. By reasons of the above you appear to be: -

a. Inefficient or has ceased to be efficient within the meanings under the provisions of Civil Aviation Authority (Efficiency and Discipline) Regulations, 2014 (Revised Version-2019); or
b. Guilty of misconduct within the meanings under the provisions of Civil Aviation Authority (Efficiency and Discipline) Regulations, 2014 (Revised Version-2019); or
c. Corrupt or may reasonably be considered as corrupt within the meaning under the provisions of Civil Aviation Authority (Efficiency and Discipline) Regulations, 2014 (Revised Version-2019); or
d. Absent from duty without prior sanctioned leave for a consecutive period of seven days or is guilty of habitually absent from duty without prior approval of leave under the provisions of Civil Aviation Authority (Efficiency and Discipline) Regulations, 2014 (Revised Version-2019); or
e. Have committed an offence under the …… or any other law for the time being in force within the meanings under the provisions of Civil Aviation Authority (Efficiency and Discipline) Regulations, 2014 (Revised Version-2019); or
f. …….
g. …….

3. AND WHEREAS, I, _____(Name & Designation)_____ , being Authorized Officer, under the provision of these Regulations, have decided in terms of provision 9 of these Regulations, that it is not necessary to have an inquiry into the above charges conducted through an inquiry officer or the inquiry committee.

4. NOW, THEREFORE, you are hereby called upon to show cause as to why one or more penalties as prescribed in provision 7 of these Regulations may not be imposed upon you on the above grounds.

5. Your written reply to this Show Cause Notice should reach the undersigned within seven (07) days of its receipt by you. Failing which it shall be presumed that you have no defence to offer, and ex-parte decision may be taken. If you want to be heard in person, you may mention the same in your reply and the opportunity of personal hearing shall be given in due course.

Name and Designation
Authorized Officer

SCHEDULE-III

[See Regulation 10]

SPECIMEN – INQUIRY PROCEEDINGS

Statement of the Accused	No. _____ Name _____ S/O _____ Appointment / Designation _____ Religion _____ Sect _____ Caste _____ Resident of _____ _____ Serving in _____ Since _____ having been duly sworn states:- The above statement has been read over to the accused in the language he understands and signs it as correct. Date: _____ _____ (Signature & Designation of Accused) **Witness No. 1**. Same as above. **Witness No. 2**. Same as above.
Statement of the Witness(es)	**Question No. 1**. _____ **Answer No. 1**. _____ **Question No. 1**. _____ **Answer No. 1**. _____
Questions by the Inquiry Officer / Committee	**OR the Accused declines to cross examine the witness**

Cross Examination by the Accused to the Witness No. 1 & 2 etc.	**FINDINGS OF THE INQUIRY COMMITTEE** (Findings shall be recorded giving brief statement of facts) **OPINION OF THE INQUIRY COMMITTEE** (Opinion shall be recorded based on the findings) **RECOMMENDATIONS OF THE INQUIRY COMMITTEE** Date: _____ _____ (Signature & Designation President Inquiry Committee) **REMARKS BY THE COMPETENT AUTHORITY / AUTHORIZED OFFICER** Date: _____ _____ (Signature & Designation)

PROCEEDINGS OF INQUIRY

INSTRUCTIONS

1. The proceedings of inquiry (officer / committee) will be held in accordance with relevant provision of these Regulations or any other order / instruction issued in this behalf from time to time by the Authority.
2. The inquiry officer or the inquiry committee should conduct all inquiries in accordance with these Regulations and shall record proceeding relating to relevant facts.
3. The inquiry officer and members of the inquiry committee should remain present throughout the proceedings.
4. Full particulars of the accused and witness(es) including Employee number, designation, name, age, directorate/ unit, father's name, religion, sect, caste, residential address (temporary / permanent) should be recorded.
5. Before recording statement of a witness, the inquiry officer or the inquiry committee should tell him that he is to tell the committee true facts, as known to him relating to the matter before the committee.
6. After recording statement of the witness, it will be read back to him in the language which the witness understands, by the inquiry officer or the inquiry committee and signature / thumb impression of the witness thereon taken as an acceptance of statement as correct (thumb impression will be attested by the inquiry officer or the inquiry committee). Date of recording the statement will also be mentioned.
7. Questions by the inquiry officer or the inquiry committee to the witness(es) and the answers thereto shall be recorded.
8. Cross examination by the accused or he declines to cross examine the witness shall be recorded.
9. Findings of the inquiry officer or the inquiry committee shall be recorded giving brief statement of the facts.
10. Opinion of the inquiry officer / committee shall be recorded based on the findings.
11. **Exhibits (1, 2, 3 etc.)**

    a. Documentary evidence(s), if any.
    b. List of witness(es)

12. Recommendations of the inquiry officer or the inquiry committee for award of penalty or otherwise.
13. Remarks by the Competent Authority or Authorized Officer.
14. **Inquiry Committee Proceedings**

    a. Proceedings of inquiry committee composed as under:-

    i. Presiding Officer: _____

    ii. Members: a. _____

    b. _____

    b. Assembled at *(Place)* on *(date)* by the order of *(Authority Ordering)* vide *order / letter number and date*

    c. To inquire; *subject and terms of reference of the inquiry*

    d. Signatures of the Presiding Officer and members of the inquiry committee.

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CIVIL AVIATION AUTHORITY EMPLOYEES APPEAL REGULATIONS, 2014 (REVISED VERSION-2019)

REG-003-HRXX-2.0 -In exercise of the powers conferred by Section 27 of the Pakistan Civil Aviation Authority Ordinance, 1982 (XXX of 1982), the Authority is pleased as per decision taken at the 179th meeting of the Board held on the 01st of August, 2019 to make the following regulations namely:-

1. SHORT TITLE, COMMENCEMENT, EXTENT AND APPLICATION:

(1) Notwithstanding the above provisions, the Authority may exclude wholly or in part from the operation of these Regulations any person or group of persons.

(2) These Regulations shall be called the "Civil Aviation Authority Employees (Appeal) Regulations, 2014 (Revised Version-2019)".

(3) These Regulations shall come into force at once.

(4) These shall apply to all employees of the Authority except where otherwise prescribed, but shall not apply to the following:-

a. a person who is employed on contract basis; to be governed by terms and conditions of his contract; and
b. a person who is serving on deputation or re-employed after retirement.
c. employees who are ad-hoc or temporary, or on work charge basis.

(5) Nothing contained in these regulations shall affect any decision taken or order made by the Competent Authority before the commencement of these regulations unless specified otherwise.

2. DEFINITIONS:

In these Regulations, unless there is anything repugnant in the subject or context: -

(1) **"Appellate Authority"** means

a. the Competent Authority in cases relating to discipline where the order is made by the Authorized Officer under the Efficiency and Discipline Regulations, 2014 (Revised Version-2019);
b. in all other cases officer next above the rank against whose order the appeal is preferred.

(2) **"Authority"** means the Civil Aviation Authority, constituted under Section 3 of CAA Ordinance, 1982;

(3) **"Authorized Officer"** means as defined in the Efficiency and Discipline Regulations;

(4) **"Appeal"** means appeal made under these Regulation;

(5) **"Appellant"** means an employee who is preferring an appeal under these Regulation;

(6) **"Chairman"** means the Chairman of the Authority;

(7) **"Competent Authority"** means the appointing authority as specified from time to time;

(8) **"Director General"** means the Director General of the Authority;

(9) **"Petition"** means a petition for appeal under these Regulations;

(10) **"Representation"** means written submission by an employee along with all relevant documents ;

(11) **"Ordinance"** means the Pakistan Civil Aviation Authority Ordinance, 1982 (XXX of 1982).

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Chapter I

RIGHT OF APPEAL

3. APPEAL AGAINST AN ORDER IMPOSING PENALTY:

(1) An employee aggrieved from an order to impose upon him any penalty passed by the Competent Authority or Authorized Officer as the case may be, may prefer an appeal against such order within 30 days before the prescribed appellate authority.

(2) Provided that where the penalty is imposed by an order of the Chairman, the employee shall have no right of appeal. Such an employee may file a review of such order before the Chairman.

(3) Provided further that no appeal or review shall lie on matters relating to the determination of fitness of an employee to hold a particular post or to be promoted to a higher pay group.

(4) The appellate authority shall have the powers to confirm, set aside, vary or modify the order in respect of which an appeal has been preferred.

(5) Provided that where the Competent Authority is the Director General, the powers of the Authority under this clause shall be exercised by the Director of Human Resource.

(6) Provided further that the decision of the appellate authority shall be final and shall not be called in question before any court of law.

4. APPEAL AGAINST AN ORDER OTHER THAN AN ORDER IMPOSING A PENALTY:

(1) An employee aggrieved by an order of the Competent Authority or Authorized Officer shall within 30 days of such order, may prefer an appeal before the prescribed appellate authority incase if such order;

a. alters, modifies terms and conditions of service, pay, allowances, or gratuity, etc.;
b. interprets any regulation concerning service which makes an employee aggrieved;
c. reduces or forfeits gratuity admissible to him under the regulations governing gratuity; or
d. terminates or issues termination of service notice in contravention to any of the service regulations applicable.

(2) Provided that appeal or representation shall be made to the appellate authority against supersession in matter of promotion other than on the ground of his suitability for promotion.

(3) Provided where the appeal has been decided by the Chairman, the employee may apply for review within 30 days of such decision

(4) The appellate authority shall have the power to condone any delay in preferring an appeal or review on its satisfaction that reason(s) stated are beyond the control of the appellant.

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Chapter II

PROCEDURE TO FILE AN APPEAL

5. MEMORANDUM OF APPEAL:

(1) The appellant preferring an appeal under these Regulations shall file a petition in accordance with the criterion prescribed in Schedule-I to these Regulations.

(2) Any petition filed in any other manner contrary to the prescribed form shall not be entertained by the appellate authority and shall be returned to the appellant with a direction to re-file such petition after removing the objections within one week of such direction.

(3) Provided that petition returned for removal of objections under clause (2) shall deemed to be filed within the limitation period if the appellant removes and re-file such petition within the specified limit.

6. PROCEDURE FOR SUBMISSION AND CONTENTS OF APPEAL:

(1) The appellant shall file a petition of appeal on his own behalf.

(2) The appellant shall file separate petition for each order against which he decide to prefer an appeal.

(3) The petition for appeal shall be accompanied by an attested copy of the order against which such appeal has been preferred.

(4) Every petition for appeal shall be in writing.

(5) Every petition shall contain considerable grounds and reasons of being feeling aggrieved by the order against which an appeal has been preferred.

(6) The petition shall not contain disrespectful or improper language.

(7) The petition shall be filed in the prescribed manner and end with a specific prayer.

(8) The appellant shall file an appeal petition through his concerned Directorate / Head of Unit.

(9) Every appeal petition shall be filed within a period of thirty days of the communication for each order against which appeal has been preferred.

(10) In case an appellant directly files an appeal petition to the appellate authority by circumventing the prescribed procedure through the concerned Directorate or Head of Unit, such act shall be deemed as misconduct.

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Chapter III

APPELLATE AUTHORITY

7. PROCEDURE FOR APPELLATE AUTHORITY:

(1) The appellate authority after giving reasonable opportunity of hearing to the appellant shall consider:-

a. Whether the procedure laid down in these Regulations has been complied with, and if not, whether such non-compliance has resulted in the failure of justice, or

b. Whether the findings of the Authorized Officer, or of the inquiry officer or the inquiry committee are warranted by the evidence on the record, or

c. Whether the penalty imposed is adequate, in-adequate or severe and may pass orders: -

i. setting aside, reducing, confirming or enhancing the penalty; or

ii. remand the case to the Competent Authority which imposed the penalty or to any Authorized Officer with such directions as it may deem fit in the circumstances of the case;

iii. provided that such other Authorized Officer to whom the case is remanded shall not be lower in rank to the Competent Authority in relation to the delinquent employee;

iv. the Appellate Authority shall not impose any enhanced penalty which neither such Competent Authority nor the Authorized Officer which made the order appealed against is competent in the case to impose;

v. no order imposing an enhanced penalty shall be passed unless the appellant is given an opportunity of making any representation which he may wish to make against such enhanced penalty.

(2) The order of the appeal shall be communicated to the appellant through his concerned Directorate/ Head of Unit.

(3) Every appeal petition shall be decided by the Appellate Authority within ninety days of its transmission under Regulation 10 from the concerned Directorate / Head of Unit.

8. TO GIVE EFFECT TO AN ORDER OF APPEAL:

The Competent Authority or Authorized Officer from whose order an appeal has been preferred under these Regulations shall give effect to any order made by the appellate authority.

9. WITHHOLDING OF APPEAL:

(1) The Competent Authority or Authorized Officer, not lower than the authority from whose order it is preferred, may withhold the petition of appeal if:-

a. the order against which an appeal has been preferred is non-appealable under the Regulations; or

b. it does not comply with the provisions of Regulation 6 above; or

c. it is not preferred within the time specified and no reasonable cause is shown for the delay; or

d. it is addressed to an authority to which no appeal lies under these Regulations; or

e. it is a repetition of appeal which has already been decided, and no new facts or circumstances are adduced which afford grounds for reconsideration of the case;

f. it contain disrespectful and scandalous language/words.

(2) Provided that, in case an appeal has been withheld, the appellant shall be informed of the reason(s).

(3) Provided further that an appeal withheld on account of failure to comply with provisions of Regulation 6 or clause (d) above, may be re-submitted within fifteen days of the date on which the appellant is informed of such withholding, and if the appellant re-submit the petition in a form which complies with these provisions or is addressed to the proper appellate authority, as the case may be, it shall not be withheld.

(4) No appeal shall lie against the withholding of an appeal by an authority competent to do so.

10. TRANSMISSION OF APPEAL:

(1) Every appeal which is not withheld under these Regulations shall be forwarded to the Appellate Authority within thirty working days.

(2) A list of appeals withheld under these Regulations shall be forwarded quarterly to the appellate authority with reason(s) for such withholding.

(3) An appellate authority may call for any appeal admissible under these Regulations but withheld by a subordinate authority and may pass orders thereon as it considers fit.

Chapter IV

RIGHT OF REPRESENTATION AND PROCEDURE

11. RIGHT TO FILE A REPRESENTATION:

(1) An employee aggrieved by the order or decision made by the Competent Authority with reference to his terms and condition of service may, move a representation as prescribed in Schedule-II to these Regulations.

(2) Any representation made by the employee under clause (1) above shall be made to the Authorized Officer.

12. AUTHORIZED OFFICER TO DECIDE REPRESENTATION:

After receipt of the representation made by an employee the Authorized Officer within thirty days may decide the representation and shall give reasons.

13. SECOND REPRESENTATION:

(1) If not satisfied by the decision of the Authorized Officer an employee may file representation before the Competent Authority.

(2) Provided, if the Authorized Officer is the Director General the employee shall file representation to the Chairman of the Board.

14. EXISTING APPEALS AND REPRESENTATIONS:

All appeals and representations pending immediately before commencement of these Regulations shall deemed to be appeals and representations duly filed under these Regulations.

15. APPEARANCE OF COUNSEL:

No party to any proceedings under these Regulations shall be represented by an advocate or legal counsel.

16. INDEMNITY:

No suit, prosecution or other legal proceedings shall lie against the Competent Authority or Authorized Officer for anything which is done in good faith or intended to be done under these Regulations, instructions and orders made there under from time to time.

SCHEDULE-I

(Prescribed Format see Regulation 5)

To CAA Appeal Regulations-2014 (Revised Version-2019)

Dated: __/___/_____

To,

The Appellate Authority of CAA

a. Name_____
b. Designation/ post;_____
c. SG/ EG;_____
d. Directorate;_____
e. Employee Number;_____
f. CNIC Number;_____
g. Additional proof of his employment in Authority;_____
h. Aggrieved by the Order of_____
i. Major penalty/ Minor penalty;_____
j. Dated_____

Contents of Petition;

a. Contain all material statement and facts;
b. Grounds of Appeal and arguments;
c. Along with a specific prayer;
d. In case of Appeal Petition under Regulation 3 following documents shall be filed as annexure:-
   i. charge sheet;
   ii. reply of the accused to the charge sheet;
   iii. Show Cause Notice;
   iv. reply of the accused to the Show Cause Notice;
   v. recommendations/order of the 'Authorized Officer' or 'Competent Authority', as the case may be, regarding the imposition of penalty upon the accused;
   vi. notification of the penalty
e. In case of Appeal Petition under Regulation 4 following documents shall be filed as annexure:-
   i. attested copy of the order;
   ii. any other proof or evidence on record;

Form of Petition;

a. Typescript on standard size pages;
b. Every petition shall be authenticated by the signature of appellant, and submitted by the appellant on his own behalf;
c. Every petition and all accompanying documents shall be in English or accompanied by a translation into English;

Transmission of the Petition;

a. Appellant shall file three sets of petition with his concerned Directorate;
b. The two sets for the Appellate Authority and one set shall be returned to the appellant with the stamp of his concerned Directorate along with the receiving date.

SCHEDULE -II

(Prescribed Format see Regulation 11)

To CAA Appeal Regulations, 2014 (Revised Version-2019)

Dated: __/___/_____

To,

The Authorized Officer

Subject: Representation against Order, decision, etc.

Dear Sir,

a. Short description of all relevant and material facts.

b. Specific grievance.

c. How it effects the right of employee.

d. Evidence, if any, etc.

Name of the Employee

Designation/ post;

SG/ EG_____

Directorate;_____

Employee Number;_____

CNIC Number;_____

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CIVIL AVIATION AUTHORITY (CODE OF CONDUCT) REGULATIONS, 2014 (REVISED VERSION-2019)

REG-004-HRXX-2.0 - In exercise of the powers conferred by Section 27 read with Section 12 of the Pakistan Civil Aviation Authority Ordinance, 1982 (XXX of 1982), the Authority is pleased to make the following Regulations as per decision taken at the 179th meeting of the Board held on the 01st August, 2019 to set out principles and standards of conduct and integrity from person in the employment of Civil Aviation Authority namely:-

Part I

PRELIMINARY PROVISIONS

1. SHORT TITLE, COMMENCEMENT, EXTENT AND APPLICATION:

(1) These Regulations shall be called the "Civil Aviation Authority (Code of Conduct) Regulations, 2014 (Revised Version-2019)".

(2) These Regulations shall come into force at once and shall be applicable to all persons in the employment of the Authority, whether on duty or on leave, within or outside Pakistan, while on training, study leave, on deputation with any other organization including an agency, institution or college or retired employees of the Authority.

(3) Nothing contained in these Regulations shall affect any decision taken or order made by the Competent Authority, before the commencement of these Regulations, unless specified otherwise.

2. DEFINITIONS:

In these Regulations, unless there is anything repugnant in the subject or context: -

a. **"Authority"** means the Civil Aviation Authority, constituted under Section 3 of the Ordinance;

b. **"Beneficial interest"** means the gains or benefits from the financial interests;

c. **"Code"** means the Code of conduct prescribed under these regulations;

d. **"Conflict of interest "** means situation or circumstances where employee has private or personal interest that is sufficient to influence his capacity to perform his official duties judiciously, honestly and impartially;

e. **"Conduct"** means the general, moral, ethical behavior, good order of the employee while in service of the Authority;

f. **"Good order"** means standard of conduct and discipline expected from an employee;

g. **"Director General"** means the Director General of the Authority;

h. **"Employee"** includes a person engaged for rendering service to the Authority whether.-

   i. an employee as defined in the Civil Aviation Authority Employees (Recruitment/ Appointment, Promotion, Transfer and Service Terms and Conditions) Regulations 2014 (Revised Version-2019); or

   ii. employed on contract; or

   iii. on temporary basis; or

   iv. on ad-hoc basis.

i. **"Family"** includes

   i. Spouse[s], child, or step child or children of the employees;

   ii. Parents of the employee and of his spouse[s] when residing with or wholly dependent upon the employee;

   iii. Provided that wife legally separated from an employee, or a child or step-child who is no longer dependent upon him, or incase the employee has lost the custody of his child or children, by process of law shall not be deemed as family of the employee;

j. **"Gender and Number"** in these Regulations means:-

   i. Words importing the masculine gender shall be taken to include the feminine; and

   ii. Words in singular shall include the plural and the words in plural shall include the singular.

k. **"Interpretation committee"** means committee constituted under Civil Aviation Authority Employees (Appointment, Promotion, Transfer and Other Service Terms and Conditions) Regulations, 2014 (Revised Version-2019).

l. **"Official gifts**" means gifts other than diaries, calendars, pens, pins, emblems or other tokens of modest intrinsic value;

m. **"Ordinance"** means the Pakistan Civil Aviation Authority Ordinance, 1982 (XXX of 1982);

n. **"Person"** means any individual, firm, partnership, association, group, entity incorporated or not;

o. **"Pecuniary interest"** means any direct or beneficial or financial interests in shares, securities, debt obligations, proprietary or partnership interest, rents, mortgages, compensations or any other payments received for which employee has no plausible justification;

p. **"Property"** includes movable and immovable, tangible and intangible property whether residential, commercial, urban, rural or in any form whatsoever;

q. **"Public"** includes general public and clients /customers of the Authority;

r. **"Schedule"** means schedule prescribed under these Regulations.

3. INTERPRETATION:

Wherever a clarification is required, the interpretation committee shall be the final authority for the interpretation of these Regulations and for all supplementary instructions and orders issued in connection with these Regulations.

Part II

STANDARD OF CONDUCT

4. GENERAL CONDUCT OF EMPLOYEES:

(1) All employees shall follow and self-enforce highest standard of conduct, good order and discipline.

(2) All employees shall strive to continuously improve their professional competence and their ability to serve the Authority.

(3) All employees shall strive to maintain dress code as prescribed by the Authority from time to time, personal grooming and cleanliness which is deemed reasonable and appropriate.

(4) Every employee shall without restricting, be under obligation to conduct himself in a manner prescribed by these Regulations and must.-

a. maintain the highest level of integrity by:-

i. being honest;
ii. acting in a way which enhances trust and confidence;
iii. avoiding real and apparent conflicts of interest;
iv. not seeking improper influence;
v. reporting all improper and unethical conduct that comes in their knowledge;
vi. seeking efficient and lawful use of resources of the Authority;
vii. submitting themselves to appropriate scrutiny;
viii. accepting responsibility of their own actions and decisions;
ix. keeping transparency in their actions and decisions;
x. not using their official position or resources of the Authority for personal gain; and
xi. ensuring that their conduct does not bring in question their integrity.

b. maintain and enhance public confidence by:-

i. performing their duties conscientiously, honestly and impartially;
ii. performing their duties with diligence, efficiency and courtesy;
iii. discouraging any activity showing perceived influence;
iv. making decisions on merits and law relating to each case without bias, caprice, favoritism or self-interest;
v. acting fairly in all circumstances; and
vi. implementing law, rules, regulations, policies, orders, circulars, instructions, etc. equitably.

c. observe optimum behavior at work by:-

i. avoiding harassment and victimization of fellow employee[s] on ground of sex, provincialism, parochialism, etc.;
ii. avoiding discrimination and victimization of the public on grounds of sex, tribe, religion, political affiliations, nationality, ethnicity, marital status, disability, etc.;
iii. treating their officers, colleagues, associates, staff, etc. with courtesy and respect;
iv. dealing with the public courteously, fairly and promptly;
v. promoting equality and avoiding bias in their dealings with the public;
vi. not seeking, extracting or accepting any remuneration, illegal fee, reward or other favour for any act done or not done by virtue of his duty.

d. Adhere to the core values of the Authority namely Safety & Security, Commitment, Professional Excellence, Integrity and Customer Focus at all times.

5. ACCEPTANCE OF GIFTS AND REWARDS:

(1) No employee shall accept or permit any member of his family to accept any gift either directly or indirectly except for an official gift, they should courteously but firmly decline.

(2) All cases of acceptance or receipt of any gift including an official gift shall be reported to the Authority.

(3) No employee shall during his official dealings with any person including agent, supplier, manufacturer, contractor, consultant, etc. of the Authority shall accept any gift in whatsoever manner.

(4) No employee shall retain any discount or rebate granted in connection with any expenditure of the Authority. Any such financial interest is the property of the Authority and should be surrendered to the Authority.

(5) Gifts received from the representative of a foreign agency, organization or any other State, during official visits shall immediately be reported to the Authority by the concerned employee upon his return. The gift other than an official gift shall be deposited with the Authority or Director General for its prescribed disposal.

(6) No employee shall receive any cash reward other than the rewards and incentives sanctioned by the Authority. Provided that reward received from any foreign agency or organization the value of that.-

a. is not beyond Rs.50,000/- may be allowed to be retained by a recipient employee; and
b. in case value exceeds beyond Rs. 50,000/- may be allowed to be retained by a recipient employee subject to reimbursement of 50% of its additional value to the Authority.

(7) The amount received by an employee shall be deposited in a separate account and shall be used for the welfare of the employees.

(8) Provided that value of such deposited gifts shall be assessed by Directorate of Human Resource and Directorate of Finance and efforts shall be made to find out the value of the gift in the country of its origin otherwise its reasonable value within Pakistan shall be considered.

(9) Provided that if the assessed value of the deposited gift is not more than Rs. 10,000/- then it shall be returned to the recipient employee.

(10) All gifts which are fit for display shall be properly catalogued in the Human Resource Directorate of the Headquarters and their place of display shall be decided by the Director General. Provided that when a gift is not fit for display it shall be disposed of and amount shall be deposited in the account maintained for the welfare of the employees.

6. ACCEPTANCE OF FOREIGN AWARDS:

No employee shall receive or accept any foreign award except with the prior permission of the Authority. Provided that in-case an employee receives intimation from any foreign agency or organization of his nomination he shall immediately inform the Authority and upon approval may proceed for taking such award.

7. ABUSE OF AUTHORITY:

(1) No employee shall use his official position to obtain unwarranted privileges or personal benefits for which he is otherwise in-eligible.

(2) No employee shall while performing his duty, discriminate or exercise preferential treatment contrary to merits of each case.

(3) No employee shall engage in any activity that may impair his independence or impartiality with respect to his duty.

(4) No employee shall sublet or rent out his official residence whether allotted or hired for him by the Authority.

8. LIVING BEYOND MEANS:

All employees and their families shall lead modest and simple living proportionate to their position and income. They shall not indulge in extravagant or ostentatious display of wealth in any form whatsoever.

Explanation: *"modest and simple living" means maintaining a standard of living within the visible means of income as correctly disclosed in the income tax returns, annual statement of assets, liabilities and net worth and other documents relating to financial interests and connections.*

9. ILLEGAL GRATIFICATION OR BRIBE:

(1) No employee shall solicit or accept, directly or indirectly, a bribe from anyone.

(2) In case if employee found to be involved in such activity he shall be subject to disciplinary action in accordance with Efficiency and Discipline Regulations for the time being in force.

10. PUBLIC MEETINGS AND GATHERINGS:

(1) No employee shall attend any public or political meetings arranged for achievement of any cause other than for charitable purposes.

(2) No employee shall assist or take part in any demonstration directed against the decisions of the Authority or any rules, regulations, order, instructions etc. made there under.

(3) Notwithstanding anything contained above employee may, with the prior permission of the Authority.-

a. take part in fund raising activity for any public or charitable purpose;
b. take part in any gathering representing the Authority before any agency, organization, department in foreign country or otherwise;
c. arrange modest gatherings to celebrate his own or his family's achievements, etc.

11. PRIVATE LENDING AND BORROWING:

No employee shall indulge in private lending and borrowing of money from any private person, except within the immediate family.

12. SALE AND PURCHASE OF PROPERTY:

(1) All employees shall be under obligation to declare to the Authority their intention to enter into any transaction related to purchase or sale or disposal of any property whether movable or immovable , tangible or intangible exceeding in value of Rs. 2,100,000/-.

(2) The declaration made under clause (1) above shall be on the prescribed form as set out in Schedule- I providing details of legitimate ownership and state circumstances for such sale/disposal and purchase as the case may be.

(3) All employees shall be under obligation to declare sale receipt under clause (2) to the Authority in their annual declaration.

(4) Provided that employee on out station postings may dispose of any of his movable property to any other employee of value not exceeding of Rs. 500,000/- subject to provision of proof of such sale by sending a copy to the Authorized Officer to place the same in service book/ record.

13. BAR ON DOING BUSINESS, OCCUPATION OR TRADE:

(1) Notwithstanding anything contained in any other law, all employees shall be barred to conduct any business or commercial activity or to join any occupation or trade while in service of the Authority.

(2) This Regulation shall not apply to any sports activity at regional or national level.

14. INFLUENCING THE AUTHORITY:

(1) No employee shall form or become a member of any ethnic, social, trade, religious, etc. group or association or solicit fellow employee[s] for such membership.

(2) No employee shall solicits, provoke, incite others employees to disrupt, interfere, etc. with the administration or functions of the Authority or any Directorate/ Unit, which may result into an influence on any decision, order, or i--nstruction of the Authority.

(3) No employee shall propagate sectarian creeds or take part in any such controversies or indulge in such sectarian activities and favoritism as are likely to affect his integrity in the discharge of his duties or to embarrass the Authority or the Federal or Provincial Government or local administration or create feelings of discontent or displeasure amongst the employees in and amongst the people in general.

(4) Employee who is found to be involved in violation of these Regulations shall be liable for disciplinary action in accordance with efficiency and discipline regulations for the time being in force.

15. USE OF POLITICAL OR OTHER INFLUENCE ETC:

(1) No employee shall directly or indirectly approach any Federal or Provincial Government or any member of Senate, National or Provincial Assembly or any other political figure to influence the discharge of functions of the Authority.

(2) No employee shall influence the Authority by any means to support any claim whether related to finance or any other right arising in connection with his employment or terms and condition of his service or other employee[s].

(3) No employee shall approach directly or indirectly, any member of the Board or Director General or Directors or any public functionary or official for the above said purpose except through proper channel.

16. EXPRESSING OF VIEWS:

(1) No employee shall express views detrimental to the ideology or integrity of Pakistan.

(2) No employee shall be allowed to affix, distribute or post any notice, circular, literature or articles of any kind without the specific approval of the Authority.

17. EXPRESSING VIEWS IN MEDIA:

(1) No employee shall, except with the prior sanction of the Authority, participate in any broadcast or television programme or social blogs or social media or contribute in any article or write any letter, either anonymously or in his own name in any newspaper or periodical or social media.

(2) Provided that such sanction shall only be granted when such broadcast, television programme or such contribution or letter is made in official capacity of an employee to represent the Authority's view point to the public.

(3) Employee representing the Authority shall not make any statement or gesture that may be considered to jeopardize the integrity of the Authority, the security of Pakistan or friendly relations with foreign states or to offend public order or decency or morality or deemed as contempt of court, defamation or an incitement for commission of an offence.

18. PUBLICATION OF RESEARCH PAPERS, NEWSPAPER ARTICLES, REPORTS:

(1) All technical or professional employees may contribute research papers in recognized professional journals, subject to prior approval upon showing a formal request for contribution to such journal[s].

(2) Notwithstanding anything contained above no such research paper or article shall express any views of political or religious or ethnic nature, etc. that may be detrimental to the integrity or security of Pakistan or criticizing any law, rules, regulations, orders, instructions, policy, etc. of the Authority including sharing any information of a classified nature.

(3) Provided further that if such contribution from an employee is of a purely literary, artistic or scientific character a draft of a literary artistic or scientific article or book before its publication, shall be submitted to the Authority for a review of its contents, the Authority shall within two months of such submission review and by a formal order in writing may withhold such publication. Incase no express order is made employee shall be entitled to presume that the contents are reviewed.

19. DECLARABLE INTEREST:

(1) All employee shall upon entering the service of the Authority, make a declaration of assets to the Authority of all immovable, movable , tangible and intangible property including pecuniary interests in share certificates, securities, insurance policies and jewelry of his own or his family and such declaration shall include.-

a. real estate property, its improvements, acquisition costs, assessed value, and current fair market value;
b. personal property and acquisition cost;
c. all other assets such as investments, cash in hand or in banks, stock, bonds ,etc.;
d. worth of gold jewelry;
e. all financial liabilities; and
f. any other additional information as the Authority may by general or special order require.

(2) The declaration of asset shall be submitted to the Directorate of Human Resource, shall be the repository of the declaration of assets of all employees.

20. ANNUAL DECLARATION OF "DECLARABLE INTERESTS":

(1) All employees shall be under obligation to make annual declaration of assets including movable, immovable, tangible and intangible property before the annual performance appraisals.

(2) All annual declaration of assets shall be made on the prescribed forms issued by the Authority from time to time.

(3) The employee shall be under obligation to furnish such other additional information as required by the general or special order of the Authority from time to time.

21. CRIMINAL PROCEEDINGS OR CONVICTION:

(1) An employee who has been accused for commission of any offence under any law for the time being in force shall immediately report to the Authority except in case of arrest or detention along with the copy of an FIR, complaint, reference or other criminal proceedings of any nature whatsoever.

(2) Failure to inform the Authority about any such criminal proceedings shall be construed as misconduct on the part of an employee.

(3) Notwithstanding anything contained above if an employee gets convicted under any criminal proceeding the Authority may take any appropriate action as provided in the Civil Aviation Authority (Efficiency and Disciplinary) Regulations, 2014 (Revised Version-2019). If Authority is satisfied that such conviction of an employee may have serious adverse implications on the Authority's function, it may take all additional measures in the interest of the Authority.

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Part III

STANDARD OF DILIGENCE

22. STANDARD OF DILIGENCES:

(1) All employees shall perform their duties diligently by maintaining good order and discipline.

(2) All employees shall be under obligation to:

a. use their skills, knowledge and expertise to attain maximum results;
b. execute duties and assign responsibilities with optimum excellence within the required time;
c. dis-engage at once from any activity which may adversely affect their work performance;
d. always willing to work at any duty station; and
e. be all times punctual in terms of official hours at workplaces and official engagement.

23. DISCLOSURE OF INFORMATION:

(1) No employee serving or retired or pensioner shall disclose, directly or indirectly to any unauthorized person or entity associated with print or electronic media, any information acquired during their employment within the Authority and shall for all times not use such information in order to adversely affect the interest of the Authority.

(2) No employee serving or retired or pensioner shall disclose information not intended to make available in public domain such as docket, agenda, schedules, inquiries or investigation, audits and similar matters.

(3) No employee shall, except in accordance with any special or general order of the Authority, communicate directly or indirectly any official document or information to another employee not authorized to receive it.

(4) In case of any disclosure under clause (3) such employee shall be liable to disciplinary action in accordance with Efficiency and Discipline Regulations for the time being in force.

24. CONFLICT OF INTEREST:

(1) No employee of the Authority shall acquire any pecuniary or other interest that comes in conflicts or intends to come in conflict or has likelihood of coming in conflict with performance of his official duty.

(2) When an employee has a conflict of interest in relation to any matter that is before the Authority for consideration or determination or any matter that has reasonable probability to come before the Authority for consideration or determination, such employee shall immediately disclose the conflict of interest and shall refrain from taking part in the consideration or determination of the matter.

(3) Any person who without reasonable cause, fails to make declaration of his interest as required under these Regulations or who knowingly makes a false declaration or mislead in material particulars thereby affecting the decision or determination of the Authority, shall be deemed to have committed violation of the code of conduct and shall be liable to disciplinary action in accordance with Efficiency and Discipline Regulations for the time being in force.

25. WITHDRAWAL OR SEIZURE OF PROFESSIONAL LICENSE:

(1) All employees who have been appointed by virtue of a specific professional qualification or licence (e.g. engineers, doctors, pilots, etc.) shall immediately inform their Airport Manager or the Head of their Directorate or Human Resource Directorate in writing of any suspension, withdrawal or cancellation of professional licence.

(2) Any act of non-disclosure of information under clause (1) by an employee shall be liable for disciplinary action in accordance with Efficiency and Discipline Regulations for the time being in force.

26. IMPROPER OR UNAUTHORIZED USE OF PROPERTY OR EQUIPMENT:

(1) No employee shall misuse the property and equipment owned and controlled by the Authority save as provided under the Standing Operating Procedures for the time being in force.

(2) Any action of the employee that violates or disregards the prescribed procedure shall be subject to criminal liability and the Authority shall initiate a criminal proceeding against the responsible employee[s] for acts or omissions that may adversely affect the functions of the Authority or creates panic in the general public.

27. ABSENT WITHOUT LEAVE:

No employee shall be absent without leave and shall be under obligation to follow prescribed Leave Regulations for the time being in force.

28. PUNCTUALITY IN ATTENDANCE:

(1) An employee shall be punctual and regular in attendance except in case of unforeseen circumstances.

(2) In case an employee is habitually attending duty late, the Authority shall initiate disciplinary action in accordance with Efficiency and Discipline Regulations for the time being in force.

Part IV

STANDARD OF ETHICS

29. STANDARDS OF ETHICS:

(1) All employees in the service of the Authority shall conduct themselves in a manner which is ethical and reasonable.

(2) All employees shall;

a. perform their work with honesty, diligence, and responsibility;
b. observe all laws, rules, regulations, orders etc. and shall make all lawful disclosures under these Regulations to the Authority;
c. knowingly be not a party to any illegal activity, or engage in acts that are detrimental to the functions of the Authority;
d. respect and contribute to the legitimate and ethical objectives of the Authority;
e. disclose all material facts known to them that may adversely affect the function of the Authority;
f. be prudent in the use and protection of information acquired in the course of their duty;
g. not use information for any personal gain;
h. engage only in those activities for which they have the necessary knowledge, skills, and experience.

30. REPORTING OF FRAUD, THEFT AND ILLEGAL ACTIVITY:

(1) All employees shall be under obligation to remain alert and vigilant with respect to frauds, thefts and illegal activity committed by anyone anywhere related to the service and functions of the Authority. If any such activity comes to the knowledge of an employee, he shall immediately report such information to the Airport Manager or Head of Unit or to the relevant Security Officer who will be under obligation to take appropriate action.

(2) The employee's failure to report any such activity within his knowledge promptly shall be liable to disciplinary action in accordance with Efficiency and Discipline Regulations for the time being in force.

31. ACCEPTANCE OF HOSPITALITY:

(1) All employees shall ensure that any acceptance of hospitality on their part does not influence or reasonably be seen to influence them in discharge of their duty.

(2) All employees shall be under obligation to disclose all offers of hospitality, subscriptions, vouchers and facilitation arising out of commercial interests or contractual relations of the Authority in whatsoever manner.

(3) Any failure under clause (2) shall be deemed as misconduct on part of such employee who shall be liable for disciplinary action in accordance with Efficiency and Discipline Regulations for the time being in force.

32. PRODUCTION OF EVIDENCE:

(1) No employee shall give evidence before a public committee, any court of law except with the prior sanction of the Authority or any officer duly authorized by it.

(2) No employee while deposing or producing any evidence subject to clause (1) shall criticize the policies or decisions of the Federal Government and the Authority.

(3) This Regulation shall not apply to evidence given before any inquiry committee, inquiry officer, any other committee[s] established for the purposes of implementing the objectives of the Ordinance which has power to compel the attendance of any witness to give answers to questions put to them.

33. INTIMATION OF COURT PROCEEDINGS:

(1) An employee shall be under obligation to provide intimation to the Authority before instituting/filing or defending, court proceedings.

(2) Such intimation shall be provided to the Authority on the prescribed form as set out in Schedule -II.

(3) No employee shall recourse to any court of law without previous sanction of the Authority in order to vindicate his official acts or character from defamatory attacks.

(4) The Authority may after granting the sanction bear the cost of court proceeding if the employee intends to defend his bona-fide acts in the interest of the Authority.

34. TAKING PART IN POLITICAL ACTIVITIES:

(1) No employee shall take part in or subscribe in aid of, or assist in anyway any political party in Pakistan.

(2) No employee shall permit any person dependent on him for maintenance or under his care and control to take part in, or in any way assist, any anti national movement, or activity which is or tends to directly or indirectly subvert the Constitution of Pakistan.

(3) No employee shall canvass or otherwise interfere or use his influence in connection with or take part in any election to a legislative body, whether in Pakistan or elsewhere. Provided that an employee may exercise his right to vote; but if he does so, he shall give no indication of the manner in which he proposes to vote or has voted.

(4) No employee shall indulge in any political activity including forming a political association or a party.

(5) If any question arises whether movement or activity falls within the scope of this Regulation, the decision of the Director General thereon shall be final.

Part V

GENERAL PROVISIONS

35. VIOLATIONS OF THE CODE:

Any violation of these Regulations by an employee shall deem to be misconduct and shall be liable for disciplinary action under Civil Aviation Authority (Efficiency and Disciplinary) Regulation, 2014 (Revised Version-2019).

36. DECLARATION OF FIDELITY:

An employee on appointment shall sign the declaration of fidelity and secrecy on the form as set out in Schedule- III.

37. POWER TO ISSUE ORDERS AND INSTRUCTIONS:

With the prior approval of the Authority, the Director General in consultation with the Director Human Resource, make such orders or issue such instructions, as necessary for carrying out the purposes of these Regulations from time to time.

38. REMOVAL OF DIFFICULTIES:

If any difficulty arises in giving effect to any of the provision of these Regulations, Authority may make such order, not inconsistent with the provisions of these Regulations, as may appear to be necessary for the purpose of removing such difficulty.

39. POWER TO AMEND REGULATIONS:

The Authority shall have the power to amend or modify these Regulations from time to time.

40. UNDERTAKING:

All persons in the employment of the Authority including retired and pensioner shall be under obligation to sign a formal undertaking to strictly follow the code of conduct on the form as set out in Schedule-IV.

SCHEDULE-I

FORM
[See Regulation 12]

DECLARATION OF SALE/DISPOSAL OF PROPERTY

(A Separate CAAO to be issued by the Authority)

SCHEDULE-II

FORM
[See Regulation 33]

INTIMATION OF COURT PROCEEDINGS

SCHEDULE-III

FORM
[See Regulation 36]

DECLARATION OF FIDELITY

I _____S/O_____adult_____R/o_____

_____do hereby declare on oath as under:-

1. That, I as _____ of the Authority shall discharge my duties and perform my functions to the best of my ability and accordance to the Pakistan Civil Aviation Authority Ordinance, 1982 (XXX of 1982) and the Rules , Regulations made there under and shall always remain faithful to the cause of the Authority and I shall not directly or indirectly communicate or reveal to any person in any matter which shall be brought under my consideration or shall become known to me as an employee of the Authority except as may be required for due discharge of my duties as _____.

2. That, I shall not allow my personal interest to influence my official conduct or my official decisions or duty.

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3. That, I shall always preserve, protect and endeavor for the interest and up- bringing of the cause of the Authority and shall show due courtesy and attention to all orders and instructions issued from time to time by the Authority.

4. May Allah Almighty help and guide me (Ameen) *(in case of non- Muslim employee delete para 4).*

(Name of Declarant / Deponent)

SCHEDULE-III

FORM
[See Regulation 36]

DECLARATION OF FIDELITY[1]

(For Muslim Employees)

1. I _____S/D/O_____adult_____R/O _____do hereby declare on oath that I am a Muslim and believe in the Unity and Oneness of Almighty Allah, the Holy Quran being the last Book, the Prophet hood of Hazrat Muhammad (S.A.W.S) as the last of Prophets and that there is no Prophet after him.

2. That, I as _____ of the Authority shall discharge my duties and perform my functions to the best of my ability and in accordance with the Authority's applicable Ordinance and the Rules , Regulations made there under and shall always remain faithful to the cause of the Authority and I shall not directly or indirectly communicate or reveal to any person in any matter which shall be brought under my consideration or shall become known to me as an employee of the Authority except as may be required for due discharge of my duties as _____.

3. That, I shall not allow my personal interest to influence my official conduct or my official decisions or duty.

4. That, I shall always preserve, protect and endeavor for the interest and up- bringing of the cause of the Authority and shall show due courtesy and attention to all orders and instructions issued from time to time by the Authority.

5. May Allah Almighty help and guide me (Ameen).

(Name of Declarant / Deponent)

[1] Amendment approved in 194th meeting of CAA Board

SCHEDULE-III

FORM
[See Regulation 36]

DECLARATION OF FIDELITY[2]

(For Non- Muslim Employees)

1. I _____S/D/O_____adult_____R/O _____do hereby declare on oath that I as _____ of the Authority shall discharge my duties and perform my functions to the best of my ability and accordance to the Pakistan Civil Aviation Authority Ordinance, 1982 (XXX of 1982) and the Rules , Regulations made there under and shall always remain faithful to the cause of the Authority and I shall not directly or indirectly communicate or reveal to any person in any matter which shall be brought under my consideration or shall become known to me as an employee of the Authority except as may be required for due discharge of my duties as _____.

2. That, I shall not allow my personal interest to influence my official conduct or my official decisions or duty.

3. That, I shall always preserve, protect and endeavor for the interest and up- bringing of the cause of the Authority and shall show due courtesy and attention to all orders and instructions issued from time to time by the Authority.

(Name of Declarant / Deponent)

[2] Amendment approved in 194th meeting of CAA Board

SCHEDULE-IV

FORM
[See Regulation 40]

UNDERTAKING

I_____S/O_____Adult_____R/o_____

_____ do hereby declare on oath as under:-

That, I as _____ (Designation) of the Authority shall strictly follow the prescribed Code of Conduct in all times while in service or retired or as pensioner.

(Name of Deponent)

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CIVIL AVIATION AUTHORITY EMPLOYEES PAY AND PENSION REGULATIONS, 2014 (REVISED VERSION-2019)

REG-005-HRXX-2.0 - In exercise of powers conferred under Section 16 and 27 of the Pakistan Civil Aviation Authority Ordinance, 1982 (XXX of 1982),for vesting and utilization of "Civil Aviation Fund" in the Authority in order to meet charges in connection with its functions including payments of salaries and other remunerations to its employees, servants, experts, and consultants, the Authority is pleased to make the following Regulations as per decision taken at the 179th meeting of the Board held on the 01st August, 2019 to formulate the pay, pension and travelling and daily allowance regulations namely,

1. SHORT TITLE, APPLICATION AND COMMENCEMENT:

(1) These Regulations may be called as the Civil Aviation Authority Employees Pay, Pension and Travelling & Daily Allowance Regulations, 2014 (Revised Version-2019).

(2) These Regulations shall be applicable to all serving and retired employees of the Authority.

(3) These Regulations shall come into force at once.

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PART – I (PAY)

Chapter I

2. DEFINITIONS:

In these regulations, unless the context otherwise requires -

a. **"Basic Pay"** means the minimum and maximum scale of pay attached to a pay group but does not include any other type of pay such as special pay, technical pay, personnel pay, etc.;

b. **"Existing Basic Pay"** means minimum and maximum scale of pay attached to the existing pay group, including increment[s], but does not include any other type of pay such as special pay, technical pay, personnel pay etc.;

c. **"Existing Pay Group"** means the present pay group applicable to an employee of the Authority as on the 1st day of January, 2014 whether in a substantive or officiating capacity.

d. **"Existing emoluments"** means the sum of (i) existing basic scale of pay including increments attached to the pay group , (ii) ad-hoc allowance[s] (iii) dearness allowance[s] in addition to the entitled service and post allowances; and(iv) any other entitled payment categorized as pay;

Explanation: *emoluments for the purpose of gratuity shall not include service and post allowance[s].*

e. **"Pay group"** means the pay group in which employee is appointed substantively;

f. **"Pay"** means the amount drawn by an employee on monthly basis as-

i. the basic pay, other than special pay or pay granted in view of his personal qualifications, which has been sanctioned for a post held by him substantively or in an officiating capacity or to which he is entitled by reason of his position in a cadre;

ii. technical pay, special pay and personal pay; and

iii. any other emoluments which may be specifically classed as pay by the Authority.

g. **"Personal pay"** means additional pay granted to an employee of the Authority –

i. to save him from a loss in his substantive pay in respect of a permanent post other than a tenure post due to a revision of pay or due to any reduction of such substantive pay otherwise than as a disciplinary measure; or

ii. in exceptional circumstances, on other personal considerations i.e., after reaching the maximum basic scale of the pay attached to the pay group, etc.;

h. **"Presumptive pay"** means the pay to which an employee shall be entitled if he may have held the post substantively and had been performing its duties, but it does not include special pay unless an employee performs or discharges the work or responsibility, in consideration of the sanctioned special pay;

i. **"Revised pay structure"** in relation to any post specified in column 1 of the First Schedule means the pay specified against that post or the pay scale attached to a pay group specified in column 2 thereof, unless a different revised pay group or pay scale is notified separately for that post;

j. **"Revised emoluments"** means the pay attached to a pay group of an employee in the revised pay group and includes the revised allowances, if any, admissible to him.

k. **"Substantive pay"** means the pay inclusive of special pay sanctioned in lieu of higher time-scale of pay, other than special allowance, personal pay or emoluments classed as pay under these Regulations to which an employee is entitled on account of a post to which he has been appointed substantively or by reason of his substantive position in a cadre;

l. **"Schedule"** means a schedule under these Regulations;

m. **"Special Allowance''** means an addition of the nature of allowance, to the emoluments of a post or of an employee as specified in Schedule II of these Regulations[82];

n. **"Technical / Trade Allowance"** means the Allowance granted to an employee in consideration of the fact that he possesses technical/ trade qualifications in the relevant field from an accredited institute, university, etc. as specified in Schedule II of these Regulations;

o. **"Time scale pay"** means the pay which, subject to any conditions prescribed in these regulations, increases by periodical increments from a minimum to a maximum prescribed basic pay[83];

p. **"Temporary duty"** means absence of an employee from his place of duty under the order/ approval of the Competent Authority, for purposes in furtherance of functions of the Authority;

q. **"Identical time scale"** means the time scales when the minimum, the maximum, the period of increment and the rate of increment of the time-scales are identical;

r. **"Same time scale"** for the purpose of a post, same time-scale means if two posts are in identical time scale fall within a cadre, or a class having been created in order to fill all posts involving duties of approximately the same character or degree of responsibility, in the establishment of the Authority so that the pay of the holder of any particular post is determined by his position in the cadre or class and not by the fact that he holds that post;

s. **"Travelling and Daily allowance"** means a compensatory allowance for an employee for travelling, boarding and lodging expenses in case of a temporary duty, to be determined from time to time.

[82] Regulation 2(m) substituted by the CAA Board in its 179th Meeting held on August 1, 2019
[83] Regulation 2(n) & (o) substituted ibid

Chapter II

GENERAL CONDITIONS OF PAY

3. ENTITLEMENT OF AN EMPLOYEE FOR SERVICE PAY:

(1) An employee on commencement of his service shall be entitled to draw sanctioned pay attached to a pay group/post in which he is initially appointed or promoted as the case may be.

Provided that on the commencement of service in the Authority, the pay of an employee shall be protected as per his last pay certificate incase if such employee has served in any Federal or Provincial Government Department, Statutory Organization, etc., where the rendered service is pensionable[84].

(2) The Authority may from time to time revise by specific order, the prescribed scales of pay attached to the pay groups.

(3) An employee shall also be entitled to draw in addition to his basic scale of pay attached to his pay group the special allowance, personal pay, technical allowance, etc. as and when such employee becomes entitled in accordance with the applicable order for the time being in force.

(4) A person in employment of the Authority on contract shall be entitled to draw the pay approved by the Competent Authority or as per his last pay certificate in case of a retired judges, retired members of civil service and retired armed forces personnel, in accordance with these Regulations and terms of the contract, which shall not be less than the sanctioned pay approved for such pay group post.

(5) An employee on training after his initial appointment while on probation shall draw the entitled fixed running basic pay attached to his pay group with or without any premature increment[s] including the annual increment[s] as and when it accrues.

(6) A person on deputation in the Authority shall be entitled to draw pay in accordance with his last pay certificate in addition to a deputation allowance equivalent to the allowances of pay group and post which he holds during such period.

(7) A person on deputation shall also be entitled for all admissible allowances and ancillary benefits of the post.

4. COMMENCEMENT OF PAY:

The entitlement of pay shall commence on initial appointment from the date on being reported to duty in addition to any other allowance[s] or emolument[s] under prescribed orders issued from time to time.

5. FIXATION OF PAY:

(1) On initial appointment to a post, the pay of an employee shall be fixed at the minimum of the scale of pay approved for such pay group / post.

(2) Provided that upon initial appointment the Competent Authority on the recommendations of the Selection Board may fix the initial pay of an employee after grant of such number of not more than six premature advance increments on initial pay to offset the affect of condition stated.-

(a) in case the Competent Authority is of the opinion based on market analysis that suitable persons / candidate of requisite experience and qualification is not available or willing to

[84] Regulation 3(1) substituted ibid

join the service of the Authority on the minimum basic pay fixed for such pay group / post; and[85]

(b) in case the initial appointment is not an appointment on ad-hoc basis.

(3) Provided that due to service exigencies, if the Selection Board is of the opinion, that suitable person of requisite qualification and experience is not available on the minimum basic pay scale attached to the pay group, it may recommend to the Competent Authority for appointment on contract basis to meet the service exigencies.

(4) Provided that on initial appointment to a post, the pay of an employee shall be fixed at the minimum of the scale of pay approved for such pay group / post.

(5) Provided that on initial appointment to a post, the pay shall be protected if such employee prior to joining the service of the Authority has served in any Federal or Provincial Government Department, Statutory Organization, etc., where the rendered service is pensionable and if the last pay drawn by such employee is more than the pay scale offered by the Authority. Provided that pay of said employee shall be fixed on a next higher stage of the pay offered by the Authority[86].

6. FIXATION OF PAY OF EXISTING EMPLOYEE:

(1) The basic pay of an employee in service on the commencement of these Regulations shall be fixed in the prescribed revised basic pay scale attached to the pay group, as specified by the Competent Authority.

(2) Provided that on fixation of basic pay, an employee whose pay is fixed beyond the maximum scale shall be determined by treating the amount of his personal pay drawn on the commencement of these Regulations as part of his basic pay attached to the pay group and the amount beyond the maximum of the prescribed stage in the revised basic scale shall be allowed as personal pay.

7. FIXATION OF PAY ON PROMOTION:

(1) On promotion from a lower to higher pay group post, the basic pay shall be fixed at the corresponding stage that such employee occupied above the minimum scale of basic pay.

(2) Provided that if the pay of an employee after fixation in the next higher pay group is equal to or less than one increment of higher pay the employee shall be entitled to one premature increment[87].

(3) The corresponding stage for fixation of basic pay for an employee on promotion from a lower to higher pay group post whose pay was fixed beyond the maximum scale shall be determined by treating the amount of his personal pay drawn on the commencement of these Regulations as part of his basic pay scale in his lower pay group post and the amount beyond the maximum of the prescribed stage in the revised basic scale in the higher pay group post shall be allowed as personal pay.

8. ALLOWANCE ON ACTING OR CURRENT CHARGE:

Upon assuming the acting or current charge the employee shall be entitled to an amount equal to 20% of his pay as acting or current charge allowance provided that it shall not exceed 20% of the mid-stage of the pay scale attached to the pay group, as the case may be, in addition to his entitled pay attached to his pay group and other admissible service emoluments if any.

8A ALLOWANCE ON OFFICIATING CHARGE:

Upon assuming the officiating charge the employee shall be entitled for an officiating charge allowance subject to the condition if such officiating charge exceed for more than 30 days as specified in Schedule II of these Regulations[88];

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[85] Regulation 5(2) & and sub-clause 2(a) substituted ibid
[86] Regulation 5(4) & (5) added ibid
[87] Regulation 7(2) substituted ibid
[88] New Regulation 8A added ibid

9. ALLOWANCE ON ADDITIONAL CHARGE:

Upon assuming the additional charge the employee shall be entitled to an amount equal to 20% of his pay as additional charge allowance provided that it shall not exceed 20% of the mid-stage of the pay scale attached to the pay group, as the case may be, in addition to his entitled pay attached to his pay group.

10. ADMISSIBILITY OF PAY DURING TRAINING / COURSE:

(1) The Authority shall allow an employee to draw the pay attached to his pay group in addition to any other approved emolument whether categorized as pay or allowance during the period of his training or course etc.

(2) Subject to limitation of 30 days, where an employee is holding a current or acting or additional charge at the time when he is placed on training he shall draw the current or acting or additional charge allowance during the period of such course of instructions and training as if he is still holding such current or acting or additional charge. The current or acting or additional charge allowance shall be an amount equivalent to 20% of his pay in addition to the pay attached to his pay groupprovided that it shall not exceed 20% of the mid-stage of the pay scale attached to the pay group.

11. PAY OF TEMPORARY POST:

(1) The Competent Authority shall, when temporary post is created and is to be filled by a person who is not already an employee of the Authority, he shall be allowed salary subject to the terms and condition of his contract for a term/tenure as it may deem necessary.

(2) If the temporary post is to be filled by an employee of the Authority, his pay shall be fixed after taking into consideration the nature of duty/ work which has to be performed and the existing pay attached to the pay group of such employee.

12. CONDITIONS FOR FIXATION OF PAY OF TEMPORARY POST:

(1) The Competent Authority may at the time of fixation of pay, divide temporary posts into two categories;

a. posts created to perform the work for which no permanent posts exist in a cadre; and[89]

b. special posts created for the performance of special tasks unconnected with the ordinary work which is necessary in the interest of the Authority.

(2) The posts under sub- regulation (1) clause (a), employee shall be entitled to sanctioned pay attached to the pay group.

(3) For posts under sub-regulation (1) clause (b), employee shall be entitled to a special allowance in addition to the sanctioned pay, but the special allowance shall not exceed 20 % of the pay attached to the pay group, provided that it shall not exceed 20% of the mid-stage of the pay scale attached to the pay group.

13. REVISION OF THE EXISTING PAY SCALES:

(1) The Authority on the commencement of these Regulations in accordance with the Civil Aviation Authority Employees (Appointment, Promotion, Transfer and other Service Term and Conditions) Regulations has approved and introduced new pay groups.

[89] Regulation 12(1) & and sub-clause 1(a) substituted ibid

Table-I

Existing Pay Group	Revised CAA Pay Group	Service Group
PG-01	SG-01	Support Staff Group
PG-02	SG-02 SG-03	
PG-03	SG-04	
PG-04	SG-05 SG-06	T & A Staff Group
PG-05	SG-07 SG-08 SG-09	
PG-06	SG-10 SG-11	
PG-07	EG-01 EG-02	Executive Group
PG-08	EG-03 EG-04	
PG-09	EG-05 EG-06	
PG-10	EG-07 EG-08	
PG-11	EG-09	
-------	EG-10	

(2) The pay scale attached to the new pay groups have been specified in the First Schedule therein.

(3) The Authority shall have the power to revise the scale of pay attached to the pay group from time to time.

(4) Provided that the Authority may consider revision of scale of pay attached to the pay group, at least once in three years.

14. PRESUMPTIVE PAY OF THE POST:

An employee shall draw the presumptive pay of the post on which he holds the lien or suspended lien.

15. ABSORPTION OF PERSONAL PAY:

Unless the Authority otherwise decide, the personal pay shall be reduced to an amount by which the recipient employee's pay has been increased or revised. As soon as the increase become equivalent to the personal pay, it shall cease to be drawn.

Chapter III

ALLOWANCES AND INCREMENT

16. ENTITLEMENT OF ALLOWANCES:

(1) An employee in addition to his approved pay attached to the pay group shall be entitled to draw all service or/and allowances attached to the post, if any, subject to the conditions specified by the Authority from time to time.

(2) The Authority may specify the allowance entitlement criteria from time to time subject to the nature of duty, pay group and post.

(3) All allowances and benefits granted to eligible employees are prescribed in the Second Schedule[90].

(4) Provided that the Authority may from time to time revise, modify or discontinue any allowance[s] specified in the Second Schedule.

17. APPLICATION OF ANNUAL INCREMENT:

Notwithstanding anything contained in any procedural order, from time to time the Authority may specify the amount of annual increment on the pay in a ratio of fixed percentage of initial pay attached to the pay group.

18. DATE OF NEXT INCREMENT IN THE REVISED PAY SCALE:

(1) The annual increments in the revised basic pay scales shall accrue only on the first day of the month of December following the completion of six months of such service, at the relevant stage in the scale attached to the pay group, shall be counted for entitlement of an increment except in cases where the increment has been withheld or suspended under disciplinary proceedings.

(2) Provided that on attaining the maximum scale of pay attached to the pay group, any accrued increment shall be allowed as personal pay.

19. WITHHOLDING THE INCREMENT:

(1) The Authority through its order declares withholding of the increment as a penalty, the Competent Authority shall specifically declare that whether such withholding be;

a. With cumulative effect; or
b. Without cumulative effect.

(2) The declaration under sub-regulation (1) shall be made for the purpose of clarification that order withholding shall defer all future increments or it shall have an effect during the prescribed time causing loss to an employee of temporary nature. Provided that if the order does not contain declaration subject to sub-regulation (1) it shall be deemed that withholding of the increment has been made without cumulative effect.

(3) An order of withholding the increment shall deem to have been made after the date of issuance of such order. Provided that any order of withholding the increment made with retrospective effect shall be deemed to have a prospective effect.

Explanation: *The order to withhold the next increment implies that all the increment falling due during that period will be withheld because without getting the next increment an employee cannot get increment falling after the next increment.*

(4) In case of minor penalty of withholding an increment for a specified period shall not exceed two years without cumulative effect. The employee shall earn increment in the normal course

[90] Regulation 16(2) & (3) substituted ibid

during the period of penalty and on such expiry of the penalty, that employee shall be entitled for the pay which he may have drawn incase if no penalty had been imposed upon him.

(5) In case of major penalty of reduction to the lower stage, it shall not exceed two stages, in the time scale or reduction to lower pay group.

20. SERVICE WHICH COUNTS FOR INCREMENT:

(1) The following provisions prescribe the conditions under which the service shall be counted for increments in a time-scale:-

a. All duty in a post on a time-scale and periods of leave other than extraordinary leave shall count for increments in that time-scale.

b. If an employee holds a lien or a suspended lien against a post, the service in another post, whether in a substantive or acting or current charge or service on deputation, shall count for increment in that post.

c. If an employee is on acting or current charge on a post or holding a temporary charge on another post which does not carry less pay than the pay of his original post, then on an appointment to the lower post the service in the higher post counts for increments in the lower post. But such period of service in the higher post, which may be counted for increment in the lower post, shall be restricted to the period during which the employee may have held the lower post but for his appointment in the higher post.

d. Service of an employee on deputation within or outside Pakistan shall be counted for increments in the time-scale of the post in the Authority's service on which such employee holds a lien or a suspended lien.

e. If a probationer is confirmed at the end of probation exceeding twelve months he shall be entitled to claim the accrued increments retrospectively as if he may have received in an ordinary course.

f. The concession in count of increments may be given to all employees subject to order of the Authority from time to time.

21. TIME SCALE OF PAY:

The initial pay of an employee who is appointed substantively to a post on a time scale, the pay shall be regulated as prescribed by the Authority from time to time.

22. OMITTED[91]

[91] Regulation 22 omitted ibid

Chapter IV

GENERAL PROVISIONS

23. ESTABLISHMENT OF PAY AND PENSION COMMITTEE:

(1) On commencement of these Regulations, the Authority shall establish a pay and pension committee headed by the Director Human Resource, with members from Directorate of Finance, Audit, Legal and HR not below the designation of Additional Directors/ General Managers and may co-opt any other ex-officio member[s] as and when necessary.

(2) The committee shall meet annually two months before the end of each fiscal year in order to review existing emoluments given to employees who are in service or have been retired in the form of pay and allowances or pension respectively.

(3) The committee shall give its recommendations in writing for the revision of pay and pension, as the case may be on the basis of its review under sub-regulation (2) above for the approval of the Authority.

24. POWER TO CONSTITUTE SUB- COMMITTEE:

The Authority may constitute by order, one or more sub- committee[s], under the pay and pension committee, as may be necessary in furtherance of any of its functions.

25. DELEGATION OF POWERS:

(1) The Authority by a specific order may delegate any or all powers under these Regulations to its Chairman or the Director General in generality.

(2) In particular the Authority may by order delegate its powers to.-

a. sanction any ad-hoc relief in pay subject to the recommendation of the pay and pension committee;

b. revise or discontinue any service allowance[s] subject to the recommendation of the pay and pension committee;

c. revise pay scales attached to pay groups subject to the recommendations of the pay and pension committee;

d. determine the entitlement, terms and conditions for grant of travelling and daily allowances of its employees.

THE FIRST SCHEDULE

(See Regulation 13)
Pay scales

New Pay scale				
Pay Group	**Minimum pay**	**Increment**	**Maximum pay**	**Stages**
SG-01	9570	957	28710	20
SG-02 SG-03	11020 12760	1102 1276	33060 38280	20 20
SG-04	14790	1479	44370	20
SG-05 SG-06	16965 19430	1697 1943	50895 58290	20 20
SG-07 SG-08	22185 25375	2219 2538	66555 76125	20 20
SG-09 SG-10	29000 33060	2900 3306	87000 99180	20 20
SG-11	37700	3770	113100	20
EG-01 EG-02	42630 48285	4263 4829	127890 144855	20 20
EG-03 EG-04	54665 61915	5467 6192	163995 185745	20 20
EG-05 EG-06	70035 79170	7004 7917	210105 237510	20 20
EG-07 EG-08	89465 101210	8947 10120	268395 303610	20 20
EG-09	114410	11440	343210	20
EG-10	129340	12930	387940	20

***Revised Pay Scale as approved by CAA Board in its 173rd meeting held on 08th December, 2017**

THE SECOND SCHEDULE[92]

(See Regulation 16)
Allowances

Allowances admissible to all employees of EG-01 and above	
Regular Allowances:	
House Rent:	@ 80% of running basic pay
Medical Allowance:	@ 25% of running basic pay
Utility Allowance:	@ 25% of running basic pay
Entertainment Allowance:	EG-01 to EG– 02 Rs. 1,500/- EG-03 to EG– 04 Rs. 2,500/- EG-05 to EG– 06 Rs. 3,500/- EG-07 to EG– 08 Rs. 4,500/- EG-09 to EG– 10 Rs. 5,500/- EG-11 Rs. 10,500/-
Car Monetization Allowance;	EG – 07 & above as specified by the Authority from time to time
Fuel / Conveyance Allowance:	(EG – 01 to EG – 10, APMs are entitled for fuel allowance equivalent to 150 liters of Petrol if their entitlement under service pay group is lower than the entitlement) EG–01 to EG-02 amount equivalent to 150 liters of Petrol EG–03 to EG-04 amount equivalent to 175 liters of Petrol EG–05 to EG-06 amount equivalent to 225 liters of Petrol Fuel / Conveyance Allowance for employees in EG-07 to EG-10 is discontinued.
Driver's allowance:	APMs of EG – 01 & above Rs 6,000/- p.m , if his entitlement under service pay group is lower than this entitlement Driver Allowance for employees in EG-07 to EG-10 is discontinued.
Servant allowance:	EG-05- allowance equivalent to 50% of gross pay of SG-01. EG-06- to EG – 10 allowance equivalent to 100% of gross pay of SG-01.
Motor vehicle Maintenance Allowance:	@ 10% of minimum basic pay of the corresponding pay scale (EG – 01 to EG – 10 APMs are entitled for car maintenance allowance @ Rs. 4,000/= if his entitlement under service pay group is lower than this entitlement) Motor vehicle Maintenance Allowance for employees in EG-07 to EG-10 is discontinued.

[92] SECOND SCHEDULE substituted ibid

Trade Specific shall be subject to the applicable orders of the Authority for the time being in force	
Flying Allowance for.- a. Flight Inspectors (Qualified and certified Pilots / Flight Engineers), b. Calibration (Qualified and certified Pilots and Engineers) deployed on calibration duty	@ 150% of running basic pay – initial type rating of A/C @ 225% of running basic pay – 500 hours on A/C type or 5 years' experience @ 300% of running basic pay – 1000 hours on A/C Type or 10 years' experience
Airworthiness Allowance: (for Airworthiness Engineers)	EG-01 @ 30% of running basic pay EG-02 @ 40% of running basic pay EG-03-EG 04 @ 50% of running basic pay EG-05 and above @ 140% of running basic pay
Regulatory duty Allowance if not drawing any other trade specific allowance	@ 20% of running basic pay for EG-01 to EG-10
Non Practicing Trade specific Allowance for medical & legal officers; (Registered with PMDC and Bar Council as the case may be) and Accredited Charted Accountant Allowance	@ 20% of running basic pay for EG-01 to EG-10
Personal Staff Allowance to Director General and Additional Director General Secretariat if not drawing any other trade specific allowance	@ 20% of running basic pay for EG-01 to EG-10
Audit and Account Allowance:	@ 20% of running basic pay for EG-01 to EG-10
Facilitation/ Administration/ IT/ Human Resource/ Estates & Commercial/ Vigilance Allowance if not drawing any other trade specific allowance	@ 20% of running basic pay for EG-01 to EG-10
CNS/ E& M/ Civil Engineers Allowance if not drawing any other trade specific allowance	@ 20% of running basic pay for EG-01 to EG-10
Communication Operation Allowance	@20% of running basic pay for EG-01 to EG-10
Project Allowance:	EG-09 to EG-10 up to Rs. 80,000/ per month EG-07 to EG-08 up to Rs. 65,000/ per month EG-05 to EG-06 up to Rs. 45,000/per month EG-01 to EG-04 up to Rs. 30,000/per month allowance shall be admissible on PCAA infrastructural projects worth 3 billion and above. The allowance shall only be admissible to permanent employees who are posted on the project
ATC – Rating Allowance: (for ATC Officers only)	@ 20% of running basic pay for each ATC Rating; - TWR / GMC - AREA (Procedure) - AREA (Radar) - APP (Procedure) - APP (Radar) - ATCL OJTI (On Job Training Instructor)
Categorization Allowance: (for ATC Officers only)	Allowance will be subject to the applicable orders of the Authority for the time being in force
ATC Supervisor Allowance: (Manager Airside / Shift Managers)	Allowance will be subject to the applicable orders of the Authority for the time being in force

Other allowances shall be subject to the applicable orders of the Authority for the time being in force	
Instructional Allowance: (for Instructors at CATI only)	EG-09 to EG-10 up to Rs. 80,000/ per month EG-07 to EG-08 up to Rs. 65,000/ per month EG-05 to EG-06 up to Rs. 45,000/ per month EG-01 to EG-04 up to Rs. 30,000/ per month allowance shall be admissible to permanent employees who are posted as Instructors at CATI
Qualification Allowance:	LL.M/ CA / ACMA/ ACCA or similar qualification from recognized accounting bodies / Ph. D. Rs. 20,000/ p.m.
Disability Allowance	@ Rs. 10,000/ p.m.

Ancillary Grant and cost of equipment:

1. **EG-05 to EG–06**
   a. Cost of one Split A/C [energy saver], Refrigerator [energy saver] and laptop once in 5 years as determined by the concerned Directorate from time to time
   b. Rs. 60,000/- be paid as furnishing grant once in EG-05 to EG -06.

2. **EG-07 to EG-08**
   a. Cost of one Split A/C [energy saver], Refrigerator [energy saver] and laptop once in 5 years as determined by the concerned Directorate from time to time
   b. Rs.80,000/- be paid as furnishing grant once in EG-07 toEG-08
   c. cell phone minimum of 64 GB capacity
   d. one club membership

3. **EG-09 to EG-10**
   a. Cost of two Split A/C [energy saver], Refrigerator [energy saver] and laptop once in 5 years as determined by the concerned Directorate from time to time
   b. Rs. 115,000/- be paid as furnishing grant once in EG-09
   c. cell phone minimum of 64 GB capacity
   d. one club membership

4. **DDG**
   a. Cost of two Split A/C [energy saver], Refrigerator [energy saver] and laptop once in 5 years as determined by the concerned Directorate from time to time
   b. Rs. 120,000/- be paid as furnishing grant.
   c. cell phone minimum of 64 GB capacity
   d. one club membership

5. **DG / ADG**
   a. Locally manufactured car of 1600 c.c.
   b. Cost of two Split A/C [energy saver], Refrigerator [energy saver] and laptop once in 5 years, as determined by the concerned Directorate from time to time
   c. Rs. 400,000/- be paid as furnishing grant. Such amount shall not be admissible if DG / ADG avail CAA accommodation
   d. Smart cell phone minimum of 64 GB capacity

Allowances admissible to all employees of SG-01 to SG-11	
Regular Allowance:	
House Rent:	@ 80% of running basic pay
Medical Allowance:	@ 25% of running basic pay
Utility Allowance:	@ 25% of running basic pay
Fuel / Conveyance Allowance:	SG -01 to SG-02 amount equivalent to 50 liters of Petrol SG-03 to SG-04 amount equivalent to 65 liters of Petrol SG-05 to SG-06 amount equivalent to 75 liters of Petrol

	SG-07 to SG-08 amount equivalent to 85 liters of Petrol SG-09 amount equivalent to 95 liters of Petrol SG-10 amount equivalent to 105 liters of Petrol SG-11 amount equivalent to 120 liters of Petrol
Motor vehicle Maintenance Allowance:	@ 10 % of minimum basic pay of the corresponding pay scale or Rs. 1200/= whichever is higher.
Non-Regular Allowances:	
Project Allowance:	SG–10 to SG--11 up to Rs. 14,000/- per month SG–07 to SG--09 up to Rs. 12,000/- per month SG–04 to SG–06 up to Rs. 9,000/- per month SG--01 to SG--03 up to Rs. 7,000/- per month allowance shall be admissible on PCAA infrastructural projects worth 3 billion and above. The allowance shall only be admissible to permanent employees who are posted on the project.
Disability Allowance	@ Rs. 10,000/ p.m.
Qualification Allowance:	LL.M/ CA / ACMA/ ACCA or similar qualification from recognized accounting bodies / Ph. D. Rs. 20,000/- p.m.
Audit and Account Allowance:	@ 20% of running basic pay for SG-05 to SG-11
Non Practicing Trade specific Allowance for medical & legal staff; (Registered with PMDC and Bar Council as the case may be) and Accredited Charted Accountant	@ 20% of running basic pay for SG-05 to SG-11 [Special Allowance]
Facilitation/ Administration/ IT/ Human Resource/ Estates & Commercial/ ANS/ CNS/ REG/ Vigilance / DG/ADDG Secretariat if not drawing any other trade specific allowance	@ 20% of running basic pay for SG-05 to SG-11 [Special Allowance]
Washing Allowance:	SG-01 to SG–04 Rs. 2,000/- p.m. Admissible to liveried staff incase if not drawing any other uniform allowance.
Cash Handling:	SG-05 to SG -11 Rs. 3,500/- p.m.
Category of hard area allowances shall be admissible when an employee in SG-01 to SG-11 or EG-01 to EG-10 is performing duty in following areas:	
Special Category:	@ 60% of minimum basic pay of the corresponding pay scale at Parachinar, Khuzdar, Laram Qilla, Zhob, Dalbandin, Gawadar, Jiwani, Pasni, Pasni Radar, Ormara, Panjgur, Turbat, Sibi, Bannu & Lakpass.
Category – I	@ 40% of minimum basic pay of the corresponding pay scale at Gilgit, Skardu & Chitral
Category – II	@ 20% of minimum basic pay of the corresponding pay scale at Quetta, Moenjodaro, Sehwan Sharif, Jacobabad, Mirpurkhas, NDB Chore, SSR Rojhan, CVOR Bindo, Rawalakot, Saidu-Sharif, & D. I. Khan
Category – III	@ 15% of minimum basic pay of the corresponding pay scale at Cape Monze NDB, Muzaffarabad and Cherat Approach Control.
Heating & Warming Allowance: (At Special Locations)	Rs 3,000/ per month (from October to March)

PART – II (PENSION)

Chapter I

26. DEFINITIONS:

In these Regulations, unless the context otherwise requires.-

a. **"Child"** means child of the employee who, if a son, is under twenty one years of age and if a daughter, is unmarried and the expression 'children' shall be construed accordingly;

b. **"Date of retirement"** in relation to a permanent employee, means the afternoon of the day of the month in which the employee attains sixty years of age or prescribed for retirement under the terms and conditions governing his service;

c. **"Deputation"** means service of an employee when he receives pay with the sanction of the Competent Authority from a source other than the funds of the Authority;

d. **"Director Finance"** means the Director Finance of the Authority;

e. **"Employee in permanent employment"** means an employee who holds, substantively or provisionally a permanent post or who holds lien on such a post had the lien not been suspended;

f. **"Family"** for the purpose of entitlement of gratuity/ pension benefits under these Regulations includes the following relatives of the employee:

   i. wife or wives, in the case of a male employee;
   ii. husband, in the case of female employee (a female employee can exclude her husband from being a member of her family);
   iii. children of the employee
   iv. parents or legal heirs in case of unmarried employee

   Note: Omitted[93]

g. **"Medical Officer or Medical Authority"** means the authorized 'Medical Officer', 'Chief Medical Officer' of the Authority as the case may be;

h. **"Minor"** means a person who has not completed the age of eighteen years;

i. **"Pension"** includes gratuity except when the term Pension is used in contradiction to gratuity;

j. **"Pensioner"** means an employee who retires from the service of the Authority and is entitled to exercise an option to receive an amount either as.-

   i. 100% pension; or
   ii. 35% commutation and 65 % pension; or
   iii. 100% commutation.

k. **"Qualifying service"** means service rendered while on duty or otherwise which shall be taken into account for the purpose of pension and gratuities admissible under these Regulations;

l. **"Retirement age"** means when an employee is required to retire, or cease to be on leave, on attaining a specified age, the day on which he attains that age is reckoned as a non-working day, and the employee must retire, revert, or cease to be on leave (as the case may be) with effect from and including that day;

m. **"Retirement benefits"** includes pension or service gratuity, where admissible.

[93] NOTE in Regulation 26(f) omitted ibid

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Chapter II

GENERAL CONDITIONS

27. EMPLOYEE PENSION FUND:

(1) The existing pension fund (TRUST) of the Authority shall be deemed as the separate pension fund established and administered under these regulations for payment of pension benefits of Authority's retired or retiring employees[94].

(2) The administration of pension fund shall remain effective and functional in its present form, unless the Authority may otherwise specify by its orders.

28. CLAIMS FOR PENSION OR FAMILY PENSION:

Any claim for pension or family pension shall be regulated by the provisions of these Regulations in force at the time when an employee retires or is discharged or is allowed to resign from service or dies, as the case may be.

29. LIMITATION ON NUMBER OF PENSIONS:

(1) An employee shall not earn two pensions in the same service at the same time or by the same continuous service.

(2) An employee who, having retired on superannuation or retiring pension, is subsequently re-employed shall not be entitled to a separate pension or gratuity for the period of his re-employment.

30. PENSION SUBJECT TO FUTURE GOOD CONDUCT:

(1) Future good conduct shall be an implied condition of every grant of pension and its continuance under these Regulations.

(2) The Competent Authority may, by order in writing withhold or withdraw pension or part thereof, whether permanently or for a specified period, if the pensioner is convicted of a serious crime or is found guilty of grave misconduct or agitate controversial stance related to functions of the Authority in media or otherwise[95].

(3) Provided further that where a part of pension is withheld or withdrawn, the amount of such pension shall not be reduced below an amount per month as specified by the Authority.

(4) Where a pensioner is convicted of a serious crime by a court of law, an action under sub-regulation (2) shall be taken in the light of the judgment of the court relating to such conviction.

(5) If the Competent Authority considers that the pensioner is prima facie found guilty of grave misconduct or of agitating controversial stance related to functions of the Authority, it shall before giving any order under sub-regulation (2)[96];

a. serve upon the pensioner a notice specifying grounds for action proposed to be taken against him and calling upon him to submit his reply within fifteen days of the receipt of the notice; or file a representation under the applicable regulations; and

b. take into consideration the representation if any, submitted by the pensioner under sub-clause (a).

[94] Regulation 27(1) substituted ibid
[95] Regulation 30(2) substituted ibid
[96] Regulation 30 (5) substituted ibid

(6) An appeal against the order passed by the Competent Authority under sub-regulation (1) shall be filed in accordance with the Appeal Regulations for the time being in force.

Explanation: *The term "misconduct" shall have the meaning assigned to it under the applicable Efficiency and Discipline Regulations.*

31. RIGHT OF AUTHORITY TO WITHHOLD OR WITHDRAW PENSION:

(1) The Authority reserves the right to withhold or withdraw a pension or part thereof, either permanently or for a specified period, and may order recovery from pension of the whole or part of any pecuniary loss caused to the Authority, if under any disciplinary or judicial proceedings, the pensioner is found guilty of grave misconduct or negligence or corruption during the period of his service.

(2) Provided further that where a part of pension is withheld or withdrawn, the amount of such pension shall not be reduced below the amount per month as specified by the Authority.

(3) (a) The disciplinary proceedings referred to in sub-regulation (1) if instituted while the employee was in service, shall after the retirement of the employee, be deemed to be proceedings under this Regulation and shall continue and be concluded by the Competent Authority as if the employee is in service.

(b) Such proceedings if not instituted while the employee was in service before his retirement;

(i) shall not be instituted save with the sanction of the Authority;

(ii) shall not be in respect of any event which took place more than four years before such institution; and

(iii) shall be conducted by such Competent Authority and in such place as the Authority may direct and in accordance with the procedure applicable to disciplinary proceedings in which an order of dismissal from service could be made in relation to the employee during his service.

(4) No judicial proceeding, if not instituted while the employee was in service, shall be instituted in respect of a cause of action which arose, or in respect of an event which took place, more than four years before such institution.

(5) In case of an employee who has retired on attaining the age of superannuation or otherwise and against whom any departmental or judicial proceedings are instituted or where departmental proceedings are continued under sub-regulation (2);

a. The anticipatory pension not exceeding 80% of the maximum pension which have been admissible on the basis of the qualifying service up to the date of retirement of the employee; or if he was under suspension on the date of retirement up to the date immediately preceding the date on which he was placed under suspension, shall be sanctioned.

b. Such anticipatory pension shall be sanctioned during the period commencing from the date of retirement up to the date of conclusion of the disciplinary or judicial proceedings after passing of final order by the Competent Authority.

c. No gratuity shall be sanctioned to the employee until the conclusion of the disciplinary or judicial proceedings and issue of final order thereon.

d. Payment of anticipatory pension made under sub-regulation 5 (i) shall be adjusted against final retirement benefits sanctioned to such employee upon conclusion of such proceedings but no recovery shall be made where the pension finally sanctioned is less than the anticipatory pension or the anticipatory pension is reduced or withheld either permanently or for a specified period.

(6) Where the Authority decides not to withhold or withdraw pension but orders recovery of pecuniary loss from pension, the recovery shall not ordinarily be made at a rate exceeding one third of the pension admissible on the date of retirement of an employee.

(7) For the purpose of this Regulation:-

a. Disciplinary proceedings shall be deemed to be instituted on the date on which the show cause notice is issued to the employee or pensioner, or if the employee has been placed under suspension from an earlier date, on such date; and

b. Judicial proceedings shall be deemed to be instituted:

c. In the case of criminal proceedings, on the date which the complaint or report of a police officer, of which the competent court takes cognizance is made ; and

d. In the case of civil proceedings, on the date the plaint is presented in the court.

32. OMITTED[97]

33. EMPLOYMENT AFTER RETIREMENT OUTSIDE PAKISTAN:

(1) If a pensioner, who immediately before his retirement has been a Group 'C' employee, intends to accept any employment outside Pakistan, he shall obtain prior permission of the Authority for such acceptance and no pension shall be payable to a pensioner who accepts such an employment without permission in respect of any period for which he is so employed or such longer period as the Authority may direct.

(2) Provided that an employee who has been duly permitted by the Authority, to take up a particular form of employment outside Pakistan during his leave preparatory to retirement, shall not be required to obtain subsequent permission for his continuance in such employment after retirement.

[97] Regulation 32 omitted ibid

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Chapter III

QUALIFYING SERVICE

34. COMMENCEMENT OF QUALIFYING SERVICE:

(1) Subject to the provisions of these Regulations, qualifying service of an employee shall commence from the date he takes the charge of the post to which he is first appointed either substantively or in temporary capacity.

(2) Provided that temporary service is followed without interruption by substantive appointment in the same or other service cadre or post.

35. COUNTING OF SERVICE AS ON PROBATION:

Service on probation against a post if followed by confirmation in the same or another post shall be counted in the qualifying service.

36. COUNTING OF PERIODS SPENT ON LEAVE:

(1) All leave during service for which leave pay is payable and leave granted on medical certificate except extra ordinary leave shall be counted in the qualifying service.

(2) Provided that in the case of leave other than extraordinary leave granted on medical certificate the leave sanctioning authority may, at the time of granting such leave, allow the period of that leave shall to be counted in the qualifying service if such leave is granted to an employee;

a. due to his inability to join or rejoin duty on account of civil commotion; or
b. for enhancing his academic qualification specific to his trade[98].

37. COUNTING OF PERIODS SPENT ON TRAINING:

The time spent by an employee under training arranged by the Authority immediately after his appointment in the service, shall be counted in his qualifying service.

38. COUNTING OF PERIODS OF SUSPENSION:

Time passed by an employee under suspension pending inquiry into conduct, shall count as qualifying service where on conclusion of such inquiry, he has been exonerated or the suspension is held to be unjustified, in other cases the period of suspension shall not count unless the Competent Authority under applicable regulations makes specific order that the whole or part of suspension period shall be counted in the qualifying service[99].

39. FORFEITURE OF SERVICE ON DISMISSAL OR REMOVAL:

Upon order of dismissal or removal of an employee from service, the Authority shall forfeit the past service of such employee.

40. COUNTING OF PAST SERVICE ON REINSTATEMENT:

(1) An employee who is dismissed, removed or compulsorily retired from service, but is reinstated on appeal or review, his past service shall be counted as qualifying service.

(2) The period of interruption in service between the date of his dismissal, removal or compulsory retirement, as the case may be, and the date of reinstatement, and the period of

[98] Regulation 36(2) (b) substituted ibid
[99] Regulation 38 substituted ibid

suspension, if any, shall not count as qualifying service unless regularized as duty or leave by a specific order of the Competent Authority who has made the order for reinstatement.

41. FORFEITURE OF SERVICE ON RESIGNATION:

(1) Resignation from service, unless it is allowed to be withdrawn by the Competent Authority, shall forfeit his past service.

(2) Provided that resignation for taking up another appointment in any other government service or authority or department, in which service counts for the purpose of pension, shall not be deemed as resignation under sub-regulation (1).

(3) Where an order is passed by the Competent Authority allowing a person to withdraw his resignation and to resume duty period, interruption in service shall not be counted as qualifying service[100].

42. EFFECT OF INTERRUPTION IN SERVICE:

(1) An interruption in the service of an employee shall forfeit his past services, except in the following cases:

a. authorized leave of absence;
b. unauthorized absence in continuation of authorized leave of absence so long as the post of absentee is not filled substantively;
c. suspension, where it is immediately followed by reinstatement, whether in the same or a different post, or where the employee dies or is permitted to retire or is retired on attaining the age of superannuation while under suspension;
d. abolition of post;
e. loss of appointment due to reduction in approved establishment;
f. transfer of employee to any other non-qualifying service, except in case of resignation;
g. transit time from one appointment to another appointment to or from the service of the Authority; or
h. due to any other reason, provided that the interruption is not due to any fault or willful act of an employee of the Authority, such as, unauthorized absence, resignation or removal or dismissal from service.

(2) Notwithstanding anything contained in sub- regulation (1) the Competent Authority may, by order, commute retrospectively the periods of absence without leave as extra-ordinary leave.

43. CONDONATION OF INTERRUPTION IN SERVICE:

(1) An interruption between two spells of service rendered by an employee under the Authority shall be treated as condoned and the pre-interruption service treated as qualifying service.

(2) Nothing in sub- regulation (1) shall apply to interruption caused by resignation, dismissal or removal from service or for participation in a strike.

(3) The period of interruption referred to in sub- regulation (1) shall not count as qualifying service.

44. CONDONATION OF DEFICIENCY IN SERVICE:

(1) A deficiency in the qualifying service of an employee, not exceeding six months shall deemed to have been condoned[101].

(2) The authority competent to sanction pension may condone a deficiency in qualifying service of more than six months but less than a year, in following conditions:

[100] Regulation 41(3) substituted ibid
[101] Regulation 44(1) substituted ibid

a. the employee has died while in service or has retired under circumstances beyond his control, such as on invalidation/ disability or abolition of his post, and would have completed another year of qualifying service; if he had not died or retired; and[102]

b. the service rendered by him had been meritorious.

(3) Provided that a deficiency of full one year or more cannot be condoned.

(4) This Regulation shall not apply to an employee who have rendered less than five years of continuous service.

45. PERIOD OF DEPUTATION FROM THE AUTHORITY:

The period of deputation of an employee on service outside the Authority shall be counted in his qualifying service for the purpose of pension under these Regulations.

[102] Regulation 44(2) & and sub-clause 2(a) substituted ibid

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Chapter IV

EMOLUMENTS

46. CALCULATION OF EMOLUMENTS:

(1) If an employee immediately before his retirement or death while in service has been absenting from duty or on leave for which leave pay is payable or having been suspended, if he has been re-instated without forfeiture of service, the emoluments which he would have drawn if he was not absent from duty or suspended, shall be the emoluments for the purpose of this Regulation. Provided that any increase in pay (other than the increment referred to in sub- regulation (4)) which he has not actually drawn shall not form part of his emoluments.

(2) When an employee immediately before his retirement or death while in service has proceeded on leave of not more than thirty days for which leave pay is payable after having held a higher appointment whether in an acting or current charge, the benefit of emoluments drawn in such higher appointment shall be given only if it is certified that the employee would have continued to hold the higher appointment but for his proceeding on leave.

(3) When an employee immediately before his retirement or death while in service has proceeded on leave of not more than thirty days for which leave pay is payable after having held an additional charge the benefit of emoluments drawn in such charge shall be given only if it is certified that the employee would have continued to hold such charge but for his proceeding on leave.

(4) If an employee immediately before exercising option for encashment of leave preparatory to his retirement while in service had been holding acting or current or additional charge, the period of leave preparatory to retirement shall be deemed as duty on acting or current or additional charge as the case may be, the emoluments which he drew immediately before proceeding on such leave shall be the emoluments, in addition to ordinary increment as and when it accrues, for the purpose of this Regulation.

(5) If an employee immediately before his retirement or death while in service had been absent from duty on extra-ordinary leave or had been under suspension, the period whereof does not count as service, the emoluments which he drew immediately before proceeding on such leave or being placed or deemed under suspension shall be the emoluments for the purpose of this Regulation.

(6) If an employee immediately before his retirement or death while in service, was on earned leave, and earned an increment which was not withheld, such increment, though not actually drawn, shall form part of his emoluments.

(7) Provided that increment earned during the currency of the earned leave not exceeding one hundred and twenty days, or during the first one hundred and twenty days of earned leave where such leave was for more than one hundred and twenty days shall form part of the emoluments.

(8) Pay drawn by an employee while in service on deputation outside the Authority shall not be treated as emoluments but the pay which such employee may have been eligible to draw from the Authority if he had not been on deputation, shall alone be treated as emoluments.

(9) Employees of EG-08 and above shall be entitled to orderly allowance in addition to entitled pension.

Explanation: *the expression "emoluments" means the basic pay, special pay, personal pay and any other emoluments which may be specifically classed as pay by the Authority which an employee was receiving immediately before his retirement or on the date of his death and includes dearness allowance, incentive payment and any other allowance if such an allowance or allowances and payments are allowed to be counted as pay for the purpose of pension by the Authority.*

(10) Employees of EG 07 and above shall be entitled to orderly allowance in addition to entitled pension[103].

[103] New sub-Regulation 46(10) added ibid

Chapter V

CLASSIFICATION OF PENSION & ITS GOVERNING CONDITIONS

47. SUPERANNUATION PENSION:

A superannuation pension shall be granted to an employee who is retired on his attaining the age of sixty years.

48. RETIRING PENSION:

A retiring pension may be granted to an employee who opts for his retirement before the age of superannuation, after completing twenty five years of service or apply for retirement on completion of twenty years of service subject to approval of DG CAA in accordance with the applicable regulations governing the terms and conditions of service of the employees.

49. INVALID PENSION:

(1) Invalid pension may be granted if an employee retires after rendering more than five years and less than 10 years of service on account of any bodily or mental infirmity which permanently incapacitates him to discharge his duties while in service.

(2) An employee applying for an invalid pension shall submit a medical certificate of incapacity from the Medical Board of the Authority.

(3) Where the Medical Board of the Authority constituted under the terms and condition of service regulations declares an employee is fit for any other duty suitable with the nature of incapacitation he shall not be eligible for invalid pension except when there is no suitable post available for such employee.

50. COMPENSATION PENSION:

(1) If an employee is discharged from service due to the abolition of a permanent post, he shall have the option.-

a. to take compensation pension to which he may be entitled for the service he had rendered in case he is not offered another appointment on the same pay group.

(2) Provided that if an employee who is entitled to compensation pension accepts another appointment under the Authority and subsequently becomes entitled to receive a pension of any class, the service he rendered on the abolished post shall be counted as his qualifying service for the purpose of pension.

51. COMPULSORY RETIREMENT PENSION:

(1) An employee shall be compulsorily retired from service only on condition of imposition of a major penalty in accordance with the prescribed procedures under the disciplinary regulations for the time being in force.

(2) The Competent Authority may grant such pension or gratuity at a rate not less than two-thirds or equal to full pension as compensation pension admissible to him on the date of his compulsory retirement[104].

Explanation: *In this sub-regulation, the expression 'pension' includes gratuity.*

[104] Regulation 51(2) substituted ibid

52. COMPASSIONATE ALLOWANCE:

The Authority shall forfeit the pension and gratuity of an employee who is dismissed or removed from service. Provided that the Competent Authority may, if the case deserve special consideration, sanction a compassionate allowance not exceeding two-thirds of pension, or gratuity or both which would have been admissible in case of such employee if he had retired on compensation pension.

Chapter VI

AMOUNT OF PENSION

53. RETIREMENT ON COMPLETION OF QUALIFYING SERVICE:

(1) At any time after an employee has completed twenty five years of qualifying service, he may opt to retire from service. Provided that an employee shall give a notice in writing to the Competent Authority through his concerned Unit or Directorate, as the case may be, at least three months before the date on which he intends to retire.

(2) At any time after an employee has completed twenty years' of qualifying service, he may apply for retirement from service subject to the approval of DG CAA. Provided that an employee shall give a notice in writing to the Competent Authority through his concerned Unit or Directorate, as the case may be, at least three months before the date on which he intends to retire.

(3) Provided that where the employee giving notice under sub - regulation (1) is under suspension, it shall be in the discretion of the Competent Authority to withhold permission to such an employee to retire under this Regulation.

(4) An employee who has opted / applied for retirement under this Regulation and has given the necessary notice to that effect to the Competent Authority, shall be precluded from withdrawing his notice except with the specific approval of the Authority.

(5) Provided that request for withdrawal shall be made before the intended date of his retirement.

54. AMOUNT OF PENSION:

(1) lThe amount of pension that may be granted to an employee shall be determined by the length of qualifying service.

(2) Provided that fractions of a year may not be taken into account in the calculation of any pension admissible to an employee.

(3) Provided that full pension shall be admissible under these Regulations only in cases of approved satisfactory service rendered. If the service has not been thoroughly satisfactory, the Competent Authority may recommend such reduction in the amount as it deem appropriate.

(4) The amount of any pension shall not be reduced under this Regulation without giving a show cause notice to such employee against whom the proposed reduction in pension amount is recommended.

(5) In case of an employee's compulsory retirement under the Efficiency and Discipline Regulations, he shall be entitled to pension or gratuity as admissible under normal procedures and the certificate of 'thoroughly satisfactory service' shall not be required in his case.

(6) Provided that if an employee in a substantive and permanent capacity retires or is selected for discharge owing to the abolition of his permanent post after completing qualifying service of five years but less than ten years, he may be granted a gratuity not exceeding one month emoluments for each completed year of qualifying service. If such employee has been in service for twenty year or more but has only completed ten years of active service at the time of his retirement or discharge, as the case may be, he may be granted ordinary pension.

(7) In case a permanent employee who retires from service in the usual course, i.e., on attaining the age of superannuation or on being declared incapacitated for further service or who opts for retirement after completion of qualifying service, shall be entitled to pension in accordance with these Regulations.

(8) In case if an employee is discharged from service owing to the abolition of his post he is entitled to an ordinary pension on completion of qualifying service of ten years or more or to a gratuity not exceeding one month's emoluments for each completed year of qualifying service.

(9) The amount of pension of an employee who has the right to retire on a retiring pension should not be less than the amount to which he may have been entitled if he had exercised this right, notwithstanding the fact that the emoluments may be reduced by reason of his appointment to another post carrying lower pay, otherwise than as a penalty.

55. EXTRAORDINARY PENSION IN CASE OF INJURY OR DEATH DURING EXECUTION OF DUTY:

When an employee is injured, killed by injuries received during the execution of his duty, a pension or gratuity may be granted to him or to his family in accordance with Regulation 58 in addition to the pension and gratuity admissible under the normal procedure.

56. PENSION FOR INJURY OR DEATH IN COURSE OR CONSEQUENCE OF DUTY:

The classification of disabilities and the criteria for determining their attribution to service or duty along with the rate shall be determined by the Authority (prescribed CAAO shall be issued separately).

57. MINIMUM LIMIT OF INVALID PENSION:

In respect of an employee who retires on invalid pension in terms of these Regulations, the amount of invalid pension shall not be less than the amount of Family Pension.

58. GRATUITY:

(1) An employee who is otherwise not entitle to receive pension, shall be eligible to receive gratuity upon completion of qualifying service of more than five years and less than ten years, not exceeding one month's emoluments for each completed year .

(2) Provided that upon death or incapacitation of an employee while in service, the rate for calculation of gratuity in such case shall be one and a half month’s emoluments for each completed year of service.

(3) Provided that upon death or incapacitation of an employee while on duty due to security reason, the rate for calculation of gratuity in such case shall be two month’s emoluments for each completed year of service.

(4) The Authority may grant gratuity if an employee dies after completion of one year of qualifying service but before completing five years of qualifying service, the amount of gratuity shall be equal to six times of his emoluments.

(5) In calculating the length of qualifying service, fraction of year equal to 3 months and above shall be treated as a completed one half year and 9 months and above shall be treated as a completed one year and reckoned as qualifying service of an employee.

(6) Notwithstanding anything contained in this Regulation the gratuity of an employee, whose services have been terminated for an act, willful commission, or negligence causing any damage or loss to, or destruction of property belonging to the Authority shall be forfeited to the damage or loss so caused. Provided further that the gratuity payable to an employee may be wholly or partially forfeited if the services of such employee have been terminated for his misconduct or any other act of violence on his part or for any act of the employee which constitutes an offence involving moral turpitude subject to proceedings under Efficiency and Disciplinary Regulations for the time being in force initiated during his service.

59. PROCEDURE TO NOMINATE PERSON[S] TO RECEIVE GRATUITY:

(1) An employee shall, on his initial confirmation in a service shall make a nomination in form as may be prescribed, conferring on one or more persons the right to receive the gratuity payable under these Regulations. Provided that if at the time of making the nomination -

a. the employee has a family, the nomination shall not be in favour of any person or persons other than the members of his family, in order of priority provided in the definition; or

b. the employee has no family, the nomination may be made in favour of a persons or persons, or a body of individuals, whether incorporated or not.

(2) If an employee nominates more than one person under sub-regulation (1), he shall specify in the nomination the percentage of share payable to each of the nominees to cover the entire amount of gratuity.

(3) An employee may provide in his nomination the sub nomination of any nominee who pre-decease the employee, or who dies after the death of the employee but before receiving the payment of gratuity the right conferred on that nominee shall pass to such other person as may be specified in the nomination.

(4) Provided that if at the time of making the nomination the employee has a family consisting of more than one member the person so specified shall not be a person other than a member of his family.

(5) Provided further that where an employee has only one member in his family, and a nomination has been made in his favour, it is open to the employee to nominate alternate nominee or nominees in favour of any person or a body of individuals, whether incorporated or not.

(6) The nomination under this Regulation shall become invalid in the event of the happening of a contingency provided in the prescribed form.

(7) The nomination made by an employee who has no family at the time of making it, or the nomination made by an employee under sub-regulation (5) where he has only one member in his family shall become invalid in the event of the employee subsequently acquiring a family, or an additional member in the family, as the case may be.

(8) An employee may, at any time, cancel a nomination by sending a notice in writing to the authority mentioned in sub-regulation (10); Provided that he shall, along with such notice, send a fresh nomination made in accordance with this Regulation on the prescribed form.

(9) Immediately on the death of a nominee in respect of whom no special provision has been made in the nomination under sub-regulation (3) or on the occurrence of any event by reason of which the nomination becomes invalid in pursuance of sub-regulation(6), the employee shall send to the authority mentioned in sub-regulation (10) a notice in writing canceling the nomination together with a fresh nomination made in accordance with this Regulation on the prescribed form.

(10) Every nomination made (including every notice of cancellation, if any given) by an employee under this Regulation, shall be sent to the Directorate of Human Resource through his concerned Unit or Directorate.

(11) The Head of the concern Unit or Directorate shall immediately on receipt of the nomination referred to in sub-regulation (1) countersign it indicating the date of receipt and forward it to Directorate of Human Resource under his covering letter.

(12) Every nomination made and every notice of cancellation given by an employee shall, to the extent that it is valid, take effect from the date on which it is received by the authority mentioned in sub-regulation (11).

60. PERSONS TO WHOM GRATUITY IS PAYABLE:

(1) The gratuity payable under these Regulations shall be paid to the person[s] who has been nominated by an employee to receive the amount of gratuity.

(2) If there is no such nomination or if the nomination made does not remain effective due to cancellation or withdrawal by a notice in accordance with the specified procedure; the gratuity shall be paid to one or more surviving members of the family specified under these Regulations, in equal shares.

(3) If an employee dies after retirement without receiving the gratuity admissible under these Regulations amount the gratuity shall be disbursed to the family.

(4) Where gratuity is granted under these Regulations to a minor member of the family of the deceased employee, it shall be payable to the guardian on behalf of the minor.

61. DEBARRING A PERSON FROM RECEIVING GRATUITY:

(1) If a person, who in the event of death of an employee while in service is eligible to receive gratuity, is charged with the offence of murdering the employee or for abetting in the commission of such an offence, his claim to receive his share of gratuity shall remain suspended till the conclusion of the criminal proceedings instituted against him.

(2) If on the conclusion of the criminal proceedings referred to in clause (1), the person concerned –

a. is convicted for the murder or abetting in the murder of employee, his share of gratuity shall be payable to other eligible members of the family, if any; or

b. is acquitted of the charge of murdering or abetting in the murder of the employee his share of gratuity shall be payable to him.

62. LAPSE OF GRATUITY:

In case where an employee dies while in service, and leaves behind no family and or has not made any nomination or the nominee made by him does not exist, the amount of gratuity payable in respect of such employee shall remain with the pension fund trust of the Authority.

63. FAMILY PENSION:

(1) Without prejudice to the provisions contained in these regulations when an employee dies while in service or during execution of duty including security related death after completion of qualifying service, his family shall be entitled for the following extraordinary family pension;

a. in case of in service death 75% pension to the spouse or eldest son till the youngest child attains the age of 21 years. Normal family pension after that for life; and

b. in case of security related death full pension to the spouse or eldest son till the youngest child attains the age of 21 years and normal family pension after that for life.

(2) Death after retirement from service before the receipt of pension or compassionate allowance, the family of the deceased employee shall be entitled to receive all pension dues and after such disbursement shall be entitled to normal family pension.

(3) If an employee opted for 100% commutation and dies before receiving such amount, the family shall be entitled to normal family pension. The amount of pension shall be payable to the family subject to payment of commutation up to 25% of the full pension.

(4) The family for the purpose of payment of pension includes the following relations of the employee in the order of following priority: -

a. Wife or wives in the case of male employee.

b. Husband in the case of a female employee shall be entitled to the Family Pension only for ten years.
c. Legitimate children of the employee.
d. Widow or widows and children or deceased son of employee.
e. In case of an unmarried employee, father, mother, eldest surviving brother up to the age of 21 years, eldest surviving unmarried sister up to age of 21 years and eldest surviving widowed sister[105].

(5) The normal family pension shall be admissible to the spouse till her remarriage. In the case of death of spouse, such pension shall be admissible to the son, if any, until the youngest attains the age of 21 years and the unmarried daughter[s] if any, until they are married. If the son or daughter of an employee is suffering from any disorder or disability of mind or is physically crippled or disabled so as to render him unable to earn a living, the family pension shall be payable to such son or daughter for life.

(6) Provided that before allowing family pension for life to any such son or daughter, the Competent Authority shall satisfy that the handicap is of such a nature as to prevent him/her from earning his or her livelihood and the same shall be evidenced by a certificate obtained from the Chief Medical Officer of the Authority setting out as far as possible, the exact mental or physical condition of the child/ son/ daughter.

(7) Provided that person receiving the family pension as guardian of such son or daughter shall produce after every three years a certificate from the Authorized Medical Officer of the Authority to the effect that such son or daughter continues to suffer from disorder or disability of mind or continues to be physically crippled or disabled etc.

Explanation: *the disability for the purpose of first and second provision shall be restricted to the one which manifest itself before the retirement or death of the employee while in service.*

(8) The amount of family pension shall be fixed at monthly rates and be expressed in whole rupees and where the family pension contains a fraction of a rupee, it shall be rounded off to the next higher rupee, provided that in no case a family pension in excess of the maximum prescribed under this regulation shall be allowed.

Explanation: *For the purpose of this sub-clause, authorized pension on retirement includes all periodical enhancements in pension by the Authority.*

(9) In case of death of male pensioner or employee who had more than one wife, family pension shall be paid to the widows in equal shares.

(10) In case of the death of one widow, her share of the family pension shall become payable to her eligible child.

(11) Provided that if the widow is not survived by any child, her share of the family pension shall not lapse but shall be payable to the other widows in equal shares, or if there is only one such other widow, in full, to her.

(12) Provided further that on the share or shares of the family pension payable to such a child or children or to a widow or widows ceasing to be payable, such share or shares shall not lapse but shall be payable to other widow or widows and /or to other child or children otherwise eligible, in equal shares or if there is only one widow or child, in full to such widow or child.

(13) Where the deceased employee or pensioner is survived by a widow but has left behind eligible child or children from another wife who is not alive, the eligible child or children shall be entitled to the share of family pension which the mother would have received if she had been alive at the time of the death of the employee or pensioner.

(14) Provided that on the share or shares of family pension payable to such a child or children ceasing to be payable, such share or shares shall not lapse but shall be payable to the other widow or widows and/or to other child or children otherwise eligible in equal shares or if there is only one widow or child, in full, to such widow or child.

(15) Where family pension is granted under this Regulation to a minor, it shall be payable to the guardian on behalf of the minor.

[105] Regulation 63(4)(e) added ibid

(16) In case both wife and husband are employees and are governed by the provisions of these Regulation and one of them dies while in service or after retirement, the family pension in respect of the deceased shall become payable to the surviving husband or wife and in the event of the death of the husband or wife, the surviving child or children shall be granted the two family pensions in respect of the deceased parents, the surviving child or children shall be entitled to draw two family pensions at the rate specified by the Authority.

64. ENTITLEMENT OF FAMILY PENSION IN CASE OF COMMISSION OF AN OFFENCE:

(1) If a person, who in the event of death of an employee while in service, is eligible to receive family pension under these Regulation, is charged with the offence of murdering the employee or for abetting in the commission of such an offence, the claim of such a person, including other eligible member or members of the family to receive the family pension, shall remain suspended till the conclusion of the criminal proceedings instituted against him.

(2) If on the conclusion of the criminal proceedings referred to in clause (1) the person concerned:

a. is convicted for the murder or abetting in the murder of the employee, such a person shall be debarred from receiving the family pension which shall be payable to other eligible member of the family, from the date of death of the employee; or

b. is acquitted of the charge of murder or abetting in the murder of the employee, the family pension shall be payable to such a person from the date of death of the employee.

(3) The provision of clause (1) and (2) shall also apply for the family pension becoming payable on the death of an employee after his retirement.

Chapter VII

PAYMENT PROCEDURES FOR PENSION

65. PROCEDURE FOR GRANT OF PENSION AND GRATUITY:

(1) The procedure for the grant of normal pension, extraordinary pension, family pension and gratuity shall be such as may be prescribed by order[s] of the Competent Authority from time to time.

(2) Notwithstanding anything contained above, the guidelines issued for the payment of pension shall remain in force. In case of any inconsistency between such guidelines and these regulations, the provision of these Regulations shall have an overriding effect to the extent of any inconsistency.

66. PREPARATION OF LIST OF EMPLOYEE DUE FOR RETIREMENT:

(1) Each Unit and Directorate shall have a list prepared of all employees who are due to retire within the next 18 months after 1st January each year in accordance with order[s] specified from time to time.

(2) Such Directorate/ Unit shall send the copy of such list to the Director Human Resource who shall forward the same to Director Finance not later than the 31st January of that year in order to give intimation so as to process the cases of pension for timely payment in accordance with these Regulations.

(3) In the case of an employee retiring for reasons other than by way of superannuation, the concerned Directorate/ Unit through Human Resource Directorate shall promptly inform the Director Finance as soon as the fact of such retirement becomes known to them.

67. PREPARATION OF PENSION PAPERS:

(1) The Human Resource Directorate shall undertake the work of preparation of pension papers fifteen months before the date on which an employee is due to retire on superannuation. While doing so, the concerned officer of such Directorate shall consider service record of such employees and satisfy himself as regards to the correctness of the entries recorded therein.

(2) The Human Resource Directorate shall complete preparation of Pension Papers and forward the pension proposal along with all relevant documents to the Director Finance not later than four months before the date of retirement of the employee. Before forwarding the pension proposals, the Human Resource Directorate shall as far as possible ascertain and assess the Authority's dues payable by an employee who is due for retirement and intimate the same to the Director Finance at the time of forwarding the pension papers to them so that the dues are recovered before any such payment is sanctioned.

(3) If after the particulars of dues payable against the employee have been intimated to the Director Finance, any pending additional dues come to the notice of the Human Resource Directorate such dues shall be promptly reported to the Director Finance and Director Account.

68. INTIMATION TO DIRECTOR FINANCE REGARDING ANY EVENT HAVING BEARING ON PENSION:

If after the pension papers have been forwarded by the Human Resource Directorate to the Director Finance within the period specified in these regulations, any event occurs which has a direct bearing on the admissible amount of pension, the fact shall be promptly reported by the Human Resource Directorate to the Director Finance .

69. AUTHORIZATION OF PENSION AND GRATUITY:

(1) On receipt of Pension Papers referred to in these Regulations the Human Resource Directorate shall after applying the requisite checks, assess the amount of pension and gratuity and authorize the payment of same not later than one month of the date of the retirement of the employee.

(2) After authorization for payment of pension and gratuity the Director Finance shall arrange for preparation of pension and gratuity bill, subject to verification of the correctness of entries in the service book or record along with the service history maintained by the Human Resource Directorate.

70. RECOVERY OF EXCESS PAYMENT:

(1) The amount of pension/ gratuity granted to an employee if afterwards found to be in excess of his entitlement under these Regulations, he/she shall be called upon by the Director Finance to refund such excess.

(2) For this purpose the employee concerned shall be served with a notice by the Director Finance requiring him to refund the excess payments within a period of two months from the date of receipt by him of the notice. On his failure to comply with the notice, the Director Finance shall order that such excess payment shall be adjusted by short payment of pension in future in one or more installments as it may deem fit.

(3) Provided that if an employee opted for 100% commutation, the excess amount of payment under clause (1), shall be recovered as arrears of land revenue or through process of court.

(4) Provided that any process of refund shall not be instituted under this Regulation after lapse of three year from the date of retirement.

Chapter VIII

DUES OF THE AUTHORITY

71. RECOVERY AND ADJUSTMENT OF DUES OF THE AUTHORITY:

(1) It shall be the duty of every retiring employee to clear all dues of the Authority before the date of his retirement.

(2) Where a retiring employee does not clear the dues of the Authority and such dues are ascertainable.-

a. an equivalent amount of cash deposit may be taken from him; or
b. out of the pension/ gratuity payable to him an amount equal to that recoverable on account of ascertainable dues of the Authority shall be deducted there from.

72. UN-REALIZED AND UN-ASSESSED DUES OF THE AUTHORITY:

(1) If any of the dues of the Authority remain un-realized and un-assessed for any reasons, suitable cash deposit may be taken from the retiring employee or such portion of pension /gratuity payable to him as may be considered sufficient, may be withheld, till the outstanding dues are assessed and adjusted.

(2) The cash deposit to be taken or the amount of gratuity to be withheld shall not exceed the estimated amount of the outstanding dues plus twenty -five percent thereof.

(3) Effort shall be made to assess and adjust the recoverable dues of the Authority as early as possible.

(4) The dues of the Authority as assessed shall be adjusted against the cash deposit or the amount withheld from the gratuity or commutation and the balance, if any, shall be released to the retired employee.

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Chapter IX

PAYMENT OF PENSION AND GRATUITY

73. PAYMENT OF PENSION:

(1) Subject to the provisions of these Regulations, pension other than family pension shall become payable from the date on which an employee ceases to be borne on the establishment of the Authority.

(2) A pension fixed at monthly rates shall be payable on monthly basis before the first day of the following month.

(3) Family pension shall be payable for the day on which the pensioner dies.

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Chapter X

COMMUTATION OF PENSION

74. ENTITLEMENT OF COMMUTATION:

(1) An employee who is eligible to retire on attaining the age of superannuation or after 20 or 25 years' of qualifying service may commute his pension either wholly or partially.

(2) Provided that the employee shall be entitled for a special house building grant equal to commutation i.e., 35% to be disbursed at the time of retirement[106].

75. APPLICATION FOR COMMUTATION:

(3) On application of an employee exercising the option, the Authority subject to the conditions specified in the procedure sanction 100% or 35% commutation or such percentage as it may determine from time to time.

(4) Provided that an employee against whom judicial or a departmental proceeding has been instituted or a pensioner against whom any such proceeding has been instituted or continued, shall not be permitted to commute any part of his pension during the pendency of such proceedings.

(5) The amount payable on commutation and medical benefits shall be calculated in accordance with the following tables and formula:

Age next birthday	Rate	Age next birthday	Rate	Age next Birthday	Rate	Age next birthday	Rate
20	40.5043	32	31.3412	44	22.4713	56	14.5602
21	39.7341	33	30.5869	45	21.7592	57	13.9888
22	38.9653	34	29.8343	46	21.0538	58	13.4340
23	38.1974	35	29.0841	47	20.3555	59	12.8953
24	37.4307	36	28.3362	48	19.6653	60	12.3719
25	36.6651	37	27.5908	49	18.9841		
26	35.9006	38	26.8482	50	18.1329		
27	35.1372	39	26.1009	51	17.6526		
28	34.3750	40	25.3728	52	17.0050		
29	33.6143	41	24.6406	53	16.3710		
30	32.8071	42	23.9126	54	15.7517		
31	32.0974	43	23.1840	55	15.1478		

(6) For the purpose of calculation of medical benefit in case of commutation following procedure shall be applied;

a. Formula (Age factor given in the above table x (multiplied by) 12 x 20% of the gross pension = Medical benefit) for Group 'C' employees;

[106] Regulation 74 substituted ibid and sub regulation (2) shall come in to force on the date notiied later, upon specific approval of the CAA Board.

b. Formula (Age factor given in the above table x (multiplied by) 12 x 25% of the gross pension = Medical benefit) for Group 'A' and 'B' employee; and

c. Lump sum payment of hospitalization charges subject to fix rate as specified by the Authority from time to time.

(7) Provided that all pensioners shall be entitled for the medical allowance equivalent to 20% of the gross pension per month for Group 'C' employees and 25% of the gross pension per month for Group 'A' and 'B' or as specified by the Authority from time to time.

(8) Provided that the Authority may from time to time revise the commutation table under this Regulation on the recommendation of the pay and pension committee.

76. BENEFIT TO PENSIONERS:

(1) The Authority may increase pension and medical benefit subject to the recommendations of the pay and pension committee from time to time.

(2) Provided that the Authority, at the time of revision or ad-hoc increase in pay, shall also increase the pension in equitable ratio and which shall not be less favorable as compared to the current increase in the pension granted by the Federal Government.

77. POWER TO RELAX ANY REGULATION:

Where the Authority is satisfied that the operation of any of these Regulations causes undue hardship in any particular case, the Authority, may by order for reasons to be recorded in writing dispense with or relax the requirements of such regulation to such extent and subject to such exceptions and conditions as the Authority may consider necessary for dealing with the case in a just and equitable manner.

78. POWER TO AMEND THESE REGULATIONS:

The Authority shall have the power to amend, modify or revise these Regulations from time to time.

SCHEDULE-A

PART-I

CLASSIFICATION OF DISABILITY

CLASS 'A':

a. Loss of a hand and a foot or loss of use of two or more limbs.
b. Total loss of eye-sight.
c. Total loss of speech.
d. Total deafness both ears.
e. Paraplegia or hemiplegia.
f. Lunacy.
g. Very severe facial disfigurement.
h. Advanced cases of incurable disease.
i. Wounds, injuries or diseases resulting in a disability due to which a person becomes incapacitated.

Provided that wounds, injuries or disease of limb resulting in damage of nerves, joints, or muscles making the whole of limb useless would mean loss of that limb. Cases in which a partial function is retained will not be included in this class. However if the partial retention of function does not help in walking in case of leg or does not help in holding an object even with partial efficiency, it should be considered as total loss of function. Those cases will also be included in this class where the earning capacity of the employee has been totally impaired due to the invaliding disability.

CLASS 'B':

a. Loss of thumb or at least three fingers of hand.
b. Partial loss of one or both feet at or beyond tars metatarsal joint.
c. Loss of vision of one eye.
d. Loss of all toes of one or both feet.

CLASS 'C':

a. Limited restriction of movement of joint due to injuries.
b. Disease of a limb restricting performance of duties.
c. Provided that in case if the wound, injury or illness causing the disability is not included in the above schedule, the disability will be assessed by the Medical Board at the classification most closely corresponding to those given above.

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PART- II

PRINCIPLES AND PROCEDURE FOR DETERMINING ATTRIBUTION TO SERVICE OF DISABILITY

(A) CASUALTIES DUE TO WOUND OR INJURY:

1. It should be established in such cases that the cause of the casualty was the result of duty in service.
2. Where the injury resulted from the risk inherent in service attributability will be conceded.
3. An individual is on duty for 24 hours of the day except when on leave other than casual leave.
4. An individual will be deemed to be in the performance of duty when
   a. he is physically present in his headquarters;
   b. he is travelling on leave at Authority's expense;
   c. when travelling to or from duty (e. g., from residence to place of duty and back but not whilst he is in his residence);
   d. whilst travelling on duty i. e., where it is established that but for the duty he would have not been travelling at all; or
   e. disability resulting from purely personal acts as shaving or similar private pursuits would not normally be treated as attributable to service.
5. Disability resulting from violence provoked by performance of duty will be viewed as attributable to service unless the circumstances of the case warrant a different conclusion.
6. If circumstances are such that service played no part in the causation of disability, attributability will not be conceded.

   Illustration: *If a person driving a motor cycle etc., on duty, collides with a truck the injury received may be attributed to service but if he is out for a walk and sustains injury from a passing truck, his case will not qualify for the concession.*

(B) CASUALTIES DUE TO DISEASE:

1. The cause of disability resulting from a disease will be regarded as attributable to service only when it is directly due to risks which may be regarded as peculiar to the circumstances of duty in service. In determining attributability in such cases due regard should be paid to the question whether service in a particular region, or of a particular type involved exposure to exceptional risk of contraction of, or infection by, a disease, as well as to the actual circumstances of the case.
2. Attributability will not be conceded, if, though contracted during the period of actual performance of duty, the disease is, in the opinion of the medical authorities concerned, due to risks which cannot be regarded as peculiar to such duty in service.
3. Where a disease or its aggravation resulted from the risk of duty attributability / aggravation will be conceded.
4. All cases of tuberculosis and bronchial asthma will be accepted as attributable to or aggravated by service where the medical opinion is in favour of the acceptance.
5. Attributability / aggravation in all cases of Cardiac disease will be determined in accordance with the guidelines mentioned at the end of this part.
6. Where medical or other supporting documents arc incomplete, cases will be dealt with on merits with due regard to medical opinion and other evidence.

GUIDELINES FOR DETERMINING ATTRIBUTABILITY/AGGRAVATION IN CASES OF CARDIAC DISEASES

1. There are many pre-disposing factors which may precipitate an attack of coronary occlusion. No single factor can be pin-pointed as being responsible for such an attack. It is, therefore, not easy to lay any hard and fast rule for awarding attributability/aggravation in such cases. For the guidance of medical and administrative authorities some of the factors which may precipitate the attack of heart disease are enumerated below:-

   a. **Physical exertion.**-Coronary occlusion is known to have occurred during or immediately following physical exertion. Physical exertion may not necessarily be of an unusual character, i.e., lifting of a heavy bundle, pushing a stalled vehicle or an up-hill climbing have in many instances been followed by an attack of Coronary occlusion. The effects of exertion are worse if the individual is unduly fatigued, has lack of sleep or is under emotional stress. Attributability will be conceded if a person under-going stress and strain, pressure and counter-pressure by virtue of the nature of his duties, develops psychiatric problem.

   b. **Emotional strain.** The occurrence of Coronary disease in person who had been under an un-usually severe and protracted emotional strain points to a probable relationship between the two. Separation from families, uncongenial atmosphere, frequent moves, all add to mental strain and psychological trauma.

2. The question of attributability / aggravation of heart diseases on occurrence in otherwise a normal individual who is subjected to the above mentioned factors will, therefore, have to be considered and decided in the light of known history and merits of each case.

3. While dealing with such cases due precaution will be exercised by all concerned to carefully bring out detailed merits of the case as award of attributability / aggravation depends on their candid opinion.

PART – III

Chapter I

79. DEFINITIONS:

In these Regulations, unless the context otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them, that is to say.–

(1) **"Authorized Medical Attendant"** means as defined in the Civil Aviation Authority Employees (Appointment, Promotion, Transfer and Other Service Terms and Conditions) Regulations, 2014 (Revised Version-2019);

(2) **"Competent Authority"** means the authority as defined in the delegation of administrative and financial powers manual for the time being in force;

(3) **"Controlling Authority"** means an officer designated under the delegation of administrative and financial powers manual for exercising supervision over the movement and traveling allowance claims of an employee;

(4) **"Day"** means a calendar day beginning and ending at midnight;

(5) **"Family"** for the purpose of entitlement of travelling and daily allowance under these Regulations means spouse[s] of the employee, his parents, children and step children, if wholly dependent upon him;

(6) **"Disbursing Officer"** means an officer designated by the competent authority;

(7) **"Headquarters"** for the purpose of entitlement of travelling and daily allowance under these Regulations means the place of posting of an employee whether in Headquarters of Civil Aviation Authority or Airport , Unit ,etc.;

(8) **"Month"** means a month reckoned according to the Gregorian Calendar;

(9) **"Pay"** means as defined under Regulation 2;

(10) **"Public Conveyance"** means mode of transport by road, by rail or by air for general public;

(11) **"Personal car"** means a car registered in the name of the employee or his /her spouse[s];

(12) **"Transfer"** means the movement of an employee from his headquarters to take duties of a new post either on posting or promotion or in consequence of change in his station of duty.

80. ADMISSIBILITY OF TRAVELING AND DAILY ALLOWANCE:

(1) Traveling and daily allowance is admissible to an employee on duty to cover his expenses incurred in furtherance of functions of the Authority.

(2) All claims for traveling and daily allowance shall be dealt under these Regulations.

(3) All existing instructions or order related to traveling and daily allowance will remain in force unless inconsistent with any provision given under Chapter III and IV of these Regulations.

81. FUNCTIONS OF CONTROLLING AUTHORITY:

(1) The controlling authority shall ensure that traveling and daily allowance is not turned into a source of profit.

(2) Such traveling shall be resorted to only when it is necessary in the interest of the Authority.

(3) The controlling authority may issue instructions to limit the extent of tour[s] to be done by an employee.

82. SIGNATURE OF CONTROLLING AUTHORITY ON TRAVELING AND DAILY ALLOWANCE BILL:

The bill for traveling and daily allowance shall be paid only when it is signed or countersigned by the controlling authority.

83. DUTIES OF CONTROLLING AUTHORITY:

Before signing or countersigning a traveling and daily allowance bill, the controlling authority shall:

a. scrutinize the necessity, frequency and duration of journey and halts for which traveling and daily allowance is claimed; and disallow the whole or any part of the traveling and daily allowance claimed for any journey or halt if he considers that a journey or halt was unnecessary or unduly protracted, or that a halt was of excessive duration;

b. scrutinize carefully the distances entered in traveling and daily allowance bills and satisfy himself of bills signed or countersigned by him in order to ensure that a double payment for one and the same journey is not approved;

c. satisfy himself in cases where the actual cost of transporting personal effects, etc., is claimed that the scale on which such personal effects were transported was reasonable and disallow any claim which, in his opinion, does not fulfill the condition of such reasonableness;

d. exercise care that there is no evasion or breach of the fundamental principle of traveling and daily allowance, viz., that the allowance is not to be a source of profit;

e. observe all orders and instructions of the competent authority; and

f. satisfy himself that the mileage allowance for journeys by railways or other public conveyance has been claimed at the rate applicable.

84. JOURNEYS FOR WHICH TRAVELING AND DAILY ALLOWANCE MAY BE DRAWN:

Traveling and daily allowance may be drawn by an employee as authorized by the Competent Authority:

a. for the purpose of tour;
b. on transfer;
c. on retirement, suspension, dismissal or termination of employment;
d. to attend training[s] / courses] and connected examination[s];
e. to give evidence in a court or to attend an inquiry;
f. to obtain or furnish medical advice or treatment;
g. to attend an official function/ conference;
h. to accompany an incapacitated employee or his family member;

Chapter II

TRAVELING ALLOWANCE FOR JOURNEYS ON TOUR

85. TOUR:

(1) The absence on duty from headquarters under authorization shall be known as “tour”.

(2) In case of doubt, a Competent Authority may decide whether such absence from headquarters is to be considered as absence on duty for the purposes of clause (1).

86. ENTITLEMENT OF EMPLOYEES FOR TRAVELLING AND DAILY ALLOWANCE:

All CAA employees shall be entitled for traveling and daily allowances as specified by the Authority from time to time.

87. DISTANCE TO BE TRAVELED BEFORE TRAVELING ALLOWANCE IS ADMISSIBLE:

Traveling allowance may not be drawn for any journey during which an employee does not reach a point outside the city limits of his headquarters.

88. DETERMINATION OF GRADE OF EMPLOYEE IN TRANSIT:

(1) An employee in transit from one post to another rank in the grade to which he is holding the lower of the two posts would entitle him.

(2) If the initial order of transfer is modified while the employee is in transit, his traveling allowance shall be regulated in accordance with the initial or the final orders of transfer, whichever entitles him to rank in the lower grade; provided that if the initial order entitled him to traveling allowance in a higher grade, he may be allowed to claim traveling allowance admissible according to that grade on his certifying that he actually traveled by the mode of conveyance of the class admissible to an employee of the higher grade.

89. AUTHORITY TO PRESCRIBE TRAVELING AND DAILY ALLOWANCE:

The Competent Authority may from time to time prescribe rate of travelling and daily allowance for its employees.

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Chapter III

MILEAGE ALLOWANCE

90. DEFINITION AND PRINCIPLES OF CALCULATION:

(1) A mileage allowance is an allowance calculated on the distance traveled, which is given to meet the cost of a particular journey, and is governed by the following principles:

a. for the purpose of calculating mileage allowance, a journey between two places shall be deemed to have been performed by the shortest of two or more practicable routes or by the cheapest of such routes as may be equally short;

b. the shortest route is that by which an employee can most speedily reach his destination by the ordinary modes of traveling. In case of doubt, a competent authority may decide which shall be regarded as the shortest of two or more routes;

c. if an employee travels by a route, which is not the shortest, but is cheaper than the shortest, his mileage allowance should be calculated on the route actually used.

91. RATES FOR CLASSES OF JOURNEYS:

(1) Mileage allowance is differently calculated according to the nature of the journey that is intended to be performed by railway or road or by air.

(2) The following are the authorized modes of travel:

a. by rail;

b. by road on:-

i. car;
ii. taxi;
iii. passenger bus;
iv. motor cycle;
v. cycle or;
vi. foot;

c. by air.

92. MILEAGE ALLOWANCE FOR JOURNEYS BY RAIL:

(1) The mileage allowance for a journey by railway admissible to an employee is the fare actually paid for the journey in a class of accommodation to which he is entitled or in a lower class.

Note - (1) *An employee who reserves his seat in a train for official business but subsequently, due to an unexpected change in programme, gets the reservation cancelled, may be allowed reimbursement of the reservation fee and any deduction made by railway authorities before refunding the price of the tickets out of contingencies provided that it is certified by the controlling officer that:-*

(i) cancellation was unavoidable or/and in the Authority interest; and
(ii) the booking was cancelled at the earliest opportunity.

Note - (2) *The provisions contained in note (1) shall mutatis mutandis apply where an employee, on his transfer, reserves his seat but due to unexpected change in the programme, gets the reservation cancelled. The said provision shall apply and the concession of reimbursement shall be admissible also in the case of cancellation of the reservation of seats for the members of the family of the employee; provided that the*

reservation of seats for the members of family was made along with the reservation of the seat for the employee concerned.

(2) An employee is required to travel by the class of accommodation for which travelling allowance is admissible to him, but if for any reason he or any other person for whom travelling allowance can be claimed under these Regulations, travels in a lower class of accommodation, he shall be entitled to the fare of the class of accommodation actually used.

(3) When reservation/booking involves the payment for part of journey of rates for accommodation for a higher class than that to which the employee concerned is entitled, the employee may draw mileage allowance based on the higher rates for that part of the journey.

93. MILEAGE ALLOWANCE FOR JOURNEYS BY ROAD:

(1) For journeys by road mileage allowance is admissible at the rates prescribed by the Authority from time to time for:

a. Personal car/Taxi.

Note - (1) *Employees of the SG-01 to SG-04 are ordinarily not expected to perform journeys by motor car and no bill for a journey under this clause by such an employee shall be paid unless the controlling officer certifies in each case that it was absolutely necessary in the interest of the Authority that the journey should have been performed in a motor car.*

Note - (2) *Where Authority provide vehicle to employee he shall not be entitled to any road mileage.*

Note - (3) *A taxi, for the purpose of this Regulation, means a motor vehicle plying on hire and authorized to carry not more than three passengers.*

b. Motor-cycle/ scooter.

c. Bicycle / foot.

d. Public transport.

Note - (1) *Where two or more employees travel in the same conveyance, only that employee who either owns the conveyance or has hired may draw mileage and daily allowance, while others employee[s] may draw only daily allowance. A note showing the circumstances of such a journey should be made on the traveling allowance bill of each such employee.*

Note - (2) *Where an employee, while traveling on duty, is required to pay toll tax, he shall be entitled to recover the amount in addition to the mileage allowance admissible to him.*

Note - (3) *Mileage allowance shall be admissible from the residence of the employee to the railway station or the airport, as the case may be, at his headquarters and from the Railway station or the bus stop or the airport to the place of his temporary residence at the out-station.*

Note - (4) *Employees who are entitled to travel by air, or by railway accommodation of the highest class, or by personal car or by engaging a full taxi, shall also be entitled to travel by air-conditioned public transport and to charge actual fare as mileage allowance.*

Instruction (1) *-- Vouchers should be attached to every traveling allowance bill presented for payment particularly in respect of claims for hiring a whole vehicle but where vouchers cannot be obtained, the controlling officer should certify that to the best of his knowledge the claim is correct. But when the whole conveyance is hired a voucher should ordinarily be required. A voucher should be attached to every traveling allowance bill in respect of claim for hiring a whole taxi. However a voucher will not be required in the case of a journey between the residence and the headquarters or the residence and the temporary place of duty, and vice versa.*

Instruction (2) *-- The nature of the conveyance used should be certified on the traveling allowance bill.*

Instruction (3) *-- All controlling officers should maintain in their office a record of rates of hire of conveyances of all kinds within the tract in which the employees subject to their control ordinarily travel.*

Explanation*: Each complete journey on tour ends when the employee returns to headquarters or to a place in which his headquarters is situated, whether he halts there or not.*

94. AIR TRAVEL:

(1) For the purposes of these Regulations, travel by air means journeys performed in the machines of public air transport companies regularly plying for hire. It does not include journeys performed in private aircraft or air taxis or chartered aircraft.

(2) Only employees in pay group EG-01 and above and any other employee authorized by the competent authority to travel by air may draw mileage allowance equal to the fare charged for the air travel.

Note - (1) *Employees in EG-01 and above shall be entitled to travel by economy class when undertaking journey within the country or abroad.*

(3) Provided that Director General when traveling outside the country on tour/official duty shall be entitled to travel by business class.

Note - (2) *Wherever available a return ticket at reduced rates should always be purchased when an employee expects to perform the return journey by air within the period for which a return ticket is valid.*

Note - (3) *Airport embarkation fee, where charged, is included in the term "the fare charged for the air-journey".*

Instructions:

a. The issuance of air tickets for travel inland and abroad shall be authorized by the designated officer of the Human Resource Directorate from the nominated travel agent.

b. The inland air tickets may be purchased by an employee in case of facility not available by the nominated travel agent or at locations where there is no nominated travel agent.

c. The cost of such air ticket shall be reimbursed to the employee subject to an NOC from Human Resource Directorate where applicable.

d. The air tickets are non-transferable and non-refundable to a passenger/ employee.

e. In case where a person is entitled to travel by economy class, if the period of stay abroad permits and if a facility to a destination is available, only excursion tickets, by whatever name called, should be purchased.

f. Used/ availed tickets along with the boarding cards should be attached to the travelling bills. Reasons for failure to do so should be recorded on travelling bills by the controlling officer of the employee concerned.

95. MILEAGE ALLOWANCE FOR AN EMPLOYEE NOT AUTHORIZED TO TRAVEL BY AIR:

An employee who is not authorized to travel by air but performs a journey by air can draw traveling allowance that would have been admissible to him under these Regulations if he had been authorized to travel by air, or allowance for a journey by rail, road whichever is less.

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Chapter IV

DAILY ALLOWANCE

96. DAILY ALLOWANCE:

(1) A daily allowance is uniform allowance for each day of absence from headquarters which is intended to cover the extra daily expenditure incurred by an employee in consequence of such absence.

(2) A day is to be reckoned from sunset.

(3) Daily allowance will be admissible at full rate when during the absence from headquarters a night is spent while being on tour.

(4) One daily allowance will be admissible when the absence from headquarters is for more than 4 hours subject to limitation if he travels to a different city.

(5) A part of day less than 4 hours is to be ignored for the purposes of daily allowance.

(6) Provided that daily allowance shall be disbursed as per the entitlement specified in the Schedule B[107].

97. RATES OF DAILY ALLOWANCE:

(1) The rates of entitlement of daily allowance shall be prescribed by the Authority from time to time.

(2) An employee who avails the stay in a hotel, guest house, inspection bungalow or a residential club, may in addition to the above daily allowance, be allowed reimbursement of applicable single room rent including taxes/duties and excluding service charges relating to room rent subject to production of receipts/vouchers as approved by the Authority.

(3) The DG, AD DG and DDG who avails the stay in hotel, rest house, guest house, lodge or a residential club shall be allowed the actual room rent reimbursement including taxes, duties and service charges.

(4) The employees who in case cannot avail single room facility, two employee may jointly hire a double room and shall be allowed reimbursement of applicable double room rent and taxes, duties excluding service charges.

(5) The employees while traveling outside the duty station be allowed reimbursement of room rent charges subject to the same maximum as given in sub-regulation (2) above in respect of stay in a hotel besides guest/rest houses, lodges, inspection bungalows and residential clubs.

Note - (1) *For the purpose of calculating the amount of daily allowance the period of absence from headquarters/ unit shall commence from the time of departure of the employee from his office or residence, as the case may be, till the time of return to his office or residence, as the case may be.*

98. PERIOD FOR WHICH DAILY ALLOWANCE MAY BE DRAWN:

Daily allowance may be drawn for the entire period of absence from headquarters, i.e., for the time spent on a journey, a halt, on tour or on a gazetted holiday occurring during a tour.

Note - (1) *An employee who takes casual leave when on tour is not entitled to draw daily allowance during such leave.*

[107] Regulation 96 substituted ibid

Note - (2) *An employee who takes casual leave immediately on the conclusion of temporary duty will draw daily allowance for the day of departure from the out-station to which he would have been entitled had he not proceeded on casual leave.*

Note - (3) *An employee who during the course of his tour returns temporarily to headquarters on Sunday or a public holiday to attend to his private business is not entitled to draw daily allowance for the day or days spent at headquarters.*

99. MAXIMUM PERIOD FOR WHICH DAILY ALLOWANCE IS ADMISSIBLE:

(1) Daily allowance may not be drawn for a continuous halt of more than fifteen days at any one place and shall be deemed as temporary posting or attachment[108].

(2) Provided that a Competent Authority may, if it is satisfied that prolonged halts are necessary in the interest of the Authority, grant general or individual exemptions from the operation of this regulation, on such conditions including reduction in the amount or rate of daily allowance, as it deems fit.

Note - (1) *In granting exemptions from the operation of this Regulation the Competent Authority may impose such conditions as it deems fit. One such condition is the reduction in the amount of the daily allowance that may be drawn and the principle underlying this reduction is that the expense incurred by an employee in respect of a halt at an out-station ordinarily decreases in proportion to the length of his stay at that station. This principle should be borne in mind by the authorities to whom powers, under this Regulation have been delegated and the rate of daily allowance should be suitably reduced after the first fifteen days in all cases except those which present very special features. Cases in which special treatment can be justified will be generally those in which the halt of an employee at an out-station is of uncertain duration which makes it impossible for him to arrange for more permanent and cheaper accommodation.*

Note - (2) *Casual leave taken during tour may be excluded in computing the period of fifteen days referred to in this Regulation.*

100. FOR THE PURPOSES OF THESE REGULATIONS:

(1) After a continuous halt of fifteen days' duration, the halting place shall be regarded as the employee's temporary headquarters.

(2) A halt is continuous unless terminated by an absence on duty at a distance from the halting place outside the city limits for a period of not less than three nights.

(3) Provided that when an employee returns to his headquarters, the halt is terminated, even though the return is for less than three nights.

[108] Regulation 99(1) substituted ibid

Chapter V

TRAVELING ALLOWANCE FOR JOURNEYS ON TRANSFER

101. GENERAL CONDITIONS OF ADMISSIBILITY:

(1) Traveling allowance may not be drawn under this chapter by an employee on posting from one station to another unless he is temporary posted for service exigencies.

(2) A posting at his own request should not be treated, as a transfer for service exigencies unless the authority sanctioning the posting, for special reasons which should be recorded, otherwise directs.

(3) When an employee is transferred/ otherwise than for service exigencies, a copy of the order of posting shall be sent to the controlling officer with an endorsement stating the reasons for the transfer. In the absence of such an endorsement the controlling officer shall assume that the employee has been transferred, for service exigencies[109].

(4) A competent officer may depute an employee on duty outside his headquarters and order him to reside at a temporary headquarters for a period not exceeding three months. In such circumstances traveling allowance as on transfer will not be admissible and the employee in question will only draw traveling allowance as on tour.

102. ELEMENTS OF THE TRAVELING ALLOWANCE ON TRANSFER:

(1) Traveling allowance for a journey on transfer shall include:-

a. the cost of transportation/ mileage allowance of the employee and his family as per his entitlement;

b. the expenditure incidental to the traveling of the employee and his family subject to sub clause (10) and (11) of Regulation 103;

c. the transportation cost of the personal effects of the employee; and

d. the cost of the transportation of conveyance or conveyances of an employee under certain circumstances.

(2) Traveling allowance will be admissible in respect of all items of expenditure specified in sub regulation (1) provided that the transportation in question took place not earlier than one month and not later than six months of the date on which the employee took over charge of the new post.

103. MILEAGE ALLOWANCE AND TRANSFER GRANT:

Employees shall be granted the following:-

(1) **MILEAGE ALLOWANCE:**

a. In the case of a journey by rail, mileage allowance for himself and for each member of his family equal to the fare actually paid for journey in a class of accommodation to which he is entitled or in a lower class.

b. In the case of journey by modes other than rail, one full mileage allowance for himself and one full mileage allowance for each member of his family above 12 years of age and one-half of mileage allowance for every child below 12 years, at the rate to which he is entitled while on tour: Provided that where mileage is charged for journey by personal car or taxi, only a single mileage will be admissible.

[109] Regulation 101(1) (2) & (3) substituted ibid

(2) **TRANSFER GRANT:**

a. Employee possessing a family - One month's pay;
b. Employee not possessing a family - half month's pay.

Note: *In case where an employee possessing a family moves to a new station alone may draw transfer grant at the rate at least equal to the amount admissible to an employee not possessing a family provided that his family opts to do so on transfer.*

(3) Provided that the employee is transferred within the same station he will not be entitled to receive the transfer grant.

(4) Subject to clause (8) an employee is entitled under clause (2) to the cost of transportation of his personal effects not exceeding the following maximum limit:-

Employees	Employee possessing a family	Employee not possessing a family
EG-01 & above	4500 kg	2250 kg
SG-08 to SG-11	3000 kg	1500 kg
SG-05 to SG-07	2000 kg	1000 kg
SG-04 & below	1000 kg	500 kg

(5) Both husband and wife would be entitled to transfer grant and charges for transportation of personal effects in case both are employees and are transferred from one station to a common destination. The wife would, however, be required to certify that the weight of personal effects for which transportation charges have been claimed is not more than 25% of her entitlement under this Regulation.

(6) Subject to entitlement under clause (4) above an employee entitled to draw the cost of moving motor car or other such conveyance, may draw the cost on actual basis but not exceeding the expenditure for E.V.K rail transport.

(7) Subject to the prescribed maximum number of kilograms, an employee may draw the actual cost of transporting personal effects from station 'A' to station 'B' and again if transferred within reasonable short time to station 'C' he may be paid the cost of transportation of personal effects from station 'A' to 'C'.

(8) Motor cars and other conveyances shall be deemed a part of personal effect for the purposes of (these Regulations) in all cases where an employee is not entitled to traveling allowance for their transport.

(9) Cost of carriage of personal effects up to the maximum limits as in clause (4) shall be allowed at the rate of 3 (three) paisa beyond 500 kilometers and 5 (five) paisa less than 500 kilometers at the rate of per kilogram per kilometer from the residence of the employee at the old station to his residence at the new station respectively. Provided that the Executive Committee of the Authority may revise such cost periodically but not later than 36 months.

(10) When an employee transports his motor car or motor cycle and carriage by road between, stations connected by rail or partly by rail and partly by road, he may draw an allowance of Rs.10/- per kilometer in respect of motor car and Rs 5/- per kilometer in respect of a motor cycle/scooter or as prescribed by the Executive Committee of the Authority from time to time.

(11) Provided that if the employee or a member of his family travels by the conveyance, he may draw mileage allowance as for journey on tour and no additional allowance under this Regulation will be admissible.

104. PROCEDURAL MATTERS:

An employee who claims higher travelling allowance on the ground that members of his family accompanied him on transfer, must support his claim by a certificate showing the number and relationship of the said members.

105. EMPLOYEE TAKING OVER CHARGE OR HANDING OVER CHARGE AT A PLACE OTHER THAN HIS HEADQUARTERS:

(1) An employee transferred from one post to another who is permitted to hand over charge of his post or to take over the charge of the new post at a place other than the headquarters is entitled to –

a. travelling allowance as on tour for the journey to the place of taking over or handing over and also for the journey from such a place to his new headquarters;

b. travelling allowance as on transfer, except his own mileage allowance for the journeys from his old headquarters to the new headquarters.

106. TRANSFER OR DEPUTATION FOR TRAINING:

An employee who, in consequence of his transfer or deputation on a course of training for a continuous period of 12 months or more , in which travelling allowance as on transfer is admissible, is obliged to send his family to a station other than his new headquarters or place of training, may draw travelling allowance for his family to that other station, subject to the condition that it does not exceed the travelling allowance which would have been admissible if the family had accompanied him to his new headquarters or place of training.

107. EMPLOYEE APPOINTED TO A NEW POST WHILE IN TRANSIT:

An employee appointed to a new post while in transit from one post to another, is entitled to draw travelling allowance as on transfer for so much of the journey as he has accomplished when he receives the fresh orders and for the journeys from the place at which he receives such orders to his new station.

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Chapter VI

TRAVELLING ALLOWANCE FOR JOURNEYS OTHER THAN THOSE ON TOUR OR TRANSFER

108. JOURNEYS ON FIRST APPOINTMENT TO AUTHORITY AND ON RETIREMENT, DISMISSAL ETC:

(1) Travelling allowance is not admissible to any person initially appointed to a post in the Authority, for the journey to join his post.

(2) Travelling allowance is not admissible for a journey undertaken to procure medical certificate required on first appointment in the Authority.

(3) A person holding a permanent post substantively under the Federal Government may be granted travelling allowance to join a post under the Authority, and while reverting to his parent organization.

(4) Provided that no such allowance will be admissible on reversion, if the reversion is at the request of such person.

(5) No person is entitled to any travelling allowance for a journey made after dismissal or termination of his service.

(6) Provided that travel allowance will be admissible if:-

(i) an employee retiring from service may draw travelling allowance as on transfer from his last headquarters to the place of domicile/ permanent address according to the service record.

(ii) the family of employee who dies while in service shall be entitled to travelling allowance as on transfer.

(7) Travelling allowance under clause (6) will be admissible in respect of all items of expenditure provided that the journey and transportation took place either during leave preparatory to retirement or one month before the date of actual retirement but not later than six months of the date of actual retirement from service.

(8) Except as otherwise provided travelling allowance under this Regulation should be calculated as for a journey on tour, but no daily allowance may be drawn for halts. The rate admissible in case of a new appointee is the rate prescribed for the pay group to which he will belong after joining his post.

(9) Where under the Regulation the dead body can be transported by air, all the family members may be allowed one way economy class fare to accompany the dead body of the deceased employee. The air fare claimed on this account shall be in lieu of the family's normal entitlement for transfer allowance as admissible on retirement.

(10) In case the deceased employee's family is not residing with him at the time of death, an attendant may be allowed to accompany the dead body if the journey is permissible by air.

109. JOURNEY ON A COURSE OF TRAINING:

When an employee is selected to undergo a course of training shall draw travelling allowance for the first journey to, and the last journey from, the place of training, for halts at such place and journey during the course of training in interest of the Authority.

110. JOURNEY TO GIVE EVIDENCE IN A COURT, TO ATTEND AN INQUIRY OR CONFERENCE, ETC:

(1) An employee permitted at his request to attend a meeting or conference held in Pakistan, and if any Authority's interest is served thereby, may be paid return airfare and daily allowance for the journey without any road mileage.

(2) Mileage and daily allowance, etc., as for a journey on tour, are, however, admissible when an employee is officially deputed to attend a meeting.

(3) An employee nominated as a member of a committee, commission or board out of his headquarters, may draw travelling and daily allowance as per his entitlement.

(4) An employee nominated to represent the Authority in any court proceeding or to give evidence out of his headquarters, may draw travelling and daily allowance as per his entitlement.

(5) An employee who is nominated to assist at a departmental enquiry or at a preliminary investigation into charges of corruption or misconduct on the part of an employee and undertakes any journey in connection with such enquiry or investigation, is entitled to travelling and daily allowance as per his entitlement.

111. AN EMPLOYEE SUMMONED TO GIVE EVIDENCE:

(1) In a civil or criminal case, or a departmental enquiry held by a properly constituted authority in Pakistan or in foreign territory, provided that the facts as to which he is to give evidence have come to his knowledge in the discharge of his official duties; or before a committee appointed by government; he may draw travelling allowance as for a journey on tour attaching to his bill a certificate of attendance given by the court or other authority which summoned him: Provided that if the court by which he is summoned is situated within the city limits of his headquarters, he may claim actual travelling expenses.

(2) When an employee draws travelling allowance.-

a. If the court or authority by which he was summoned be in Pakistan, he may not accept any payment of his expenses in connection with the journey from such court or authority, and any fees which may have been deposited in the court or with the authority for the travelling and subsistence allowance of the witness must be credited to Authority; and

b. If the court or authority by which he was summoned be in foreign territory, he may receive from the court or the authority such payment of his expenses as may be admissible to him under the Regulations of the court and credit the amount to Authority, stating in his travelling allowance bill the amount received, the treasury in which it has been credited and the date of credit, and where no amount is paid to him by the court he should ascertain the reasons thereof and state them in his travelling allowance bill.

Note -- (1) *An employee summoned to give evidence while on leave or on vacation is entitled to travelling allowance under this Regulation from and to the place from which he is summoned as if he was on duty.*

Note -- (2) *When an employee summoned as a witness in a criminal case or a civil case claims travelling allowance under this regulation, a certificate from the court should be attached to the bill showing the amount of travelling or subsistence allowance which he has been paid under the Regulations of the court.*

112. JOURNEY TO GIVE OR OBTAIN MEDICAL ADVICE:

(1) When the place at which an employee falls ill is not the headquarters having the authorized medical attendant:

a. the employee/patient shall be entitled to travelling allowance for the journey to and from such headquarters; or

b. if the employee/patient is too ill to travel in such circumstances entitled to the attendance of the authorized medical attendant at his residence, the authorized medical attendant shall be entitled to travelling allowance for the journey to and from the place where the patient is.

(2) A claim for travelling allowance under sub-clause (a) of clause (1) of this Regulation shall be accompanied by a certificate from the authorized medical attendant stating that medical attendance was necessary, and where the claim is under sub-clause (b) of clause (1), that the patient was too ill to travel.

(3) Subject to the approval of Human Resource Directorate if the authorized medical attendant sends an employee/ patient or his family to a specialist and issue a certificate in this behalf, such employee be entitled to travelling allowance for the journey.

(4) A specialist if summoned under clause (3) shall be entitled to travelling allowance as specified by the Authority for the journey to and from the place where the patient is.

(5) When an employee is required to obtain the counter-signature of a medical board or a medical officer upon a certificate pronouncing him fit to return to duty from leave granted on medical certificate, he may draw travelling allowance for the journey undertaken to appear before such board of medical officers.

(6) If an employee, having obtained a medical certificate in support of an application for an initial grant of leave is required to appear before a medical board or to appear before a nominated medical board or to appear before nominated medical officer of the Authority for further opinion as to the necessity for the leave recommended in that certificate, he may draw travelling allowance for the journey undertaken to obtain that opinion.

Note: *Travelling allowance is not admissible for a journey to obtain a further medical opinion in support of an application for an extension of leave.*

(7) An employee directed by the Human Resource Directorate, in the interest of the Authority, to apply for an invalid pension may, if he be required to undertake journey in order to appear before a medical board, draw travelling allowance as on tour;

(8) Provided that his travelling allowance bill is supported by a certificate that he was directed to apply for an invalid pension in the interest of the Authority.

(9) The Competent Authority may allow travelling allowance to an employee who voluntarily applies for an invalid pension, provided that the authority is satisfied that the circumstances of the applicant are such as to justify the concession.

(10) Travelling allowance under this Regulation should be calculated as for a journey on tour; provided that no allowance shall be drawn for halts on the journeys, while travelling allowance under other regulations of this section may be allowed as for journeys on tour.

(11) An authorized medical officer who considers that an employee should leave his station to obtain medical advice or treatment and it is unsafe for him to travel unattended, may arrange an attendant to do so and the attendant, shall be deemed to have been travelling on duty and may draw travelling allowance for the outward and return journey as for a journey on tour.

113. JOURNEYS TO ATTEND CEREMONIAL FUNCTIONS, ETC:

An employee who is required to attend ceremony elsewhere than at the headquarters may draw travelling allowance for the journey as for a journey on tour.

Note: *No travelling allowance is admissible to an employee for attending a function with which he is not officially connected though he may have received a courtesy invitation for the same.*

114. TRAVELLING AND DAILY ALLOWANCE ON FOREIGN TOUR, VISITS ETC:

An employee while on foreign duty/tour or training course shall be entitled to draw travelling and daily allowance at the rate applicable to employees of the Federal Government.

115. POWER TO ISSUE ORDERS AND INSTRUCTIONS:

(1) The Director General may on the recommendation of the concerned Directorate, make such orders or issue instructions as it may deem appropriate for carrying out the purposes of these Regulations from time to time.

(2) Such orders and instructions shall not be inconsistent with these Regulations. In case of any inconsistency between the order/ instructions and the Regulations, the Regulations shall prevail[110].

[110] New Regulation 115 added ibid

Schedule B[111]

TABLE-I

EG/SG	Rates are applicable for Karachi, Lahore ,Islamabad, Peshawar, Multan, Quetta, Faisalabad, Sukkur, DG Khan, Bahawalpur, Sialkot, Hyderabad, Northern Areas (Gilgit & Skardu), Muzaffarabad, Sargodha, Gujranwala, Mirpur AJK.		
	Daily Allowance (Rs.)	Consolidated Rate (Own Arrangement) (Rs)	Hotel Limit (Rs).
SG-01 - SG-02	1,120	2,240	4,200
SG-03 - SG-06	1,240	2,480	4,620
SG-07 - SG-11	2,020	4,040	7,560
EG-01 - EG-02	3,590	7,180	13,440
EG-03 - EG-04	3,590	7,180	13,440
EG-05 - EG-06	3,590	7,180	13,440
EG-07 - EG-08	4,600	9,200	21,000
EG-09	4,600	9,200	21,000
EG-10	5,600	11,200	21,000
ADG & DG	6,720	13,440	** Actual

NOTE:-
Hotel limited is excluding GST & other taxes. Daily Allowance will be admissible in addition to actual Hotel Bill as well as Accommodation Charges (own arrangement).
*** DG & AdlDG shall also be entitled to one Daily Allowance in addition to actual Hotel Bill/Accommodation Charges (own arrangement).*

TABLE-II

EG/SG	The rates applicable to cities not mentioned in Table -I		
	Daily Allowance (Rs.)	Consolidated Rate (Own Arrangement) (Rs)	Hotel Limit (Rs).
SG-01 - SG-02	700	700	2,100
SG-03 - SG-06	880	880	2,660
SG-07 - SG-11	1,570	1,570	4,760
EG-01 - EG-02	2,800	2,800	8,400
EG-03 - EG-04	2,800	2,800	8,400
EG-05 - EG-06	2,800	2,800	8,400
EG-07 - EG-08	3,480	3,480	10,500
EG-09	3,480	3,480	10,500
EG-10	3,920	3,920	11,760
ADG & DG	6,300	6,300	** Actual

NOTE:- *Hotel limited is excluding GST & other taxes. Daily Allowance will be admissible in addition to actual Hotel Bill as well as Accommodation Charges (own arrangement).*
*** DG & AdlDG shall also be entitled to one Daily Allowance in addition to actual Hotel Bill / Accommodation Charge (own arrangement).*

[111] SCHEDULE B added ibid

ORDER

(Under Regulation 25)

REG-005-HRXX-2.0 - In exercise of the powers conferred under Regulation 25 of the Civil Aviation Authority Employees Pay, Pension and Travelling and Daily Allowance Regulations 2014 (Revised Version-2019), the Civil Aviation Authority vide its Board decision dated 01st August, 2019 is pleased to order delegation of its powers and functions to the Chairman except the powers to modify or amend these Regulations.

It is further directed that the Chairman may re-delegate any powers and functions to the Director General in a manner consistent with the provision of these Regulations.

Secretary of the Board

(Seal)

In exercise of the power conferred by section 27 of the Pakistan Civil Aviation Ordinance, 1982 (XXX of 1982) read with section 12 of the said Ordinance, the Civil Aviation Authority with the approval of the Board during its 191st Meeting held on March 25th 2022, hereby makes the following amendment in regulations: -

i. Civil Aviation Authority Employees Pay and Pension Regulations 2014.

Secretary of the Board

(Seal)

CIVIL AVIATION AUTHORITY EMPLOYEES PAY AND PENSION (AMENDMENT) REGULATIONS 2022

CSRG-001-HRXX-1.0 - In exercise of the power conferred by section 27 of the Pakistan Civil Aviation Ordinance, 1982 (XXX of 1982) read with section 12 of the said Ordinance, the Civil Aviation Authority with the approval of the Board during its 191st held on 25th March 2022, hereby makes the following amendment in regulations, namely: -

It is hereby enacted as follows

1. SHORT TITLE, EXTENT, APPLICATION AND COMMENCEMENT:-

(1) These regulations shall be called the Civil Aviation Authority Employees Pay and Pension (Amendment) Regulations, 2022

(2) These regulations shall come into force with effect from the date of approval of the CAA Board in its meeting 191nd held on 25th March, 2022.

2. AMENDMENT OF REGULATION 46:- In regulation 46, sub-regulation (10) shall be *omitted*

In exercise of the power conferred by section 27 of the Pakistan Civil Aviation Ordinance, 1982 (XXX of 1982) read with section 12 of the said Ordinance, the Civil Aviation Authority with the approval of the Board during its 192nd Meeting held on April 8th 2022, hereby makes the following amendment in regulations: -

i. Civil Aviation Authority Employees Pay and Pension Regulations 2014

Secretary of the Board

(Seal)

CIVIL AVIATION AUTHORITY EMPLOYEES PAY AND PENSION (AMENDMENT) REGULATIONS 2022

CSRG-001-HRXX-1.0 - In exercise of the power conferred by section 27 of the Pakistan Civil Aviation Ordinance, 1982 (XXX of 1982) read with section 12 of the said Ordinance, the Civil Aviation Authority with the approval of the Board during its 192nd held on 8th April 2022, hereby makes the following amendment in regulations, namely: -

It is hereby enacted as follows: -

1. SHORT TITLE, EXTENT, APPLICATION AND COMMENCEMENT: -

(1) These regulations shall be called the Civil Aviation Authority Employees Pay and Pension (Amendment) Regulations, 2022

(2) These regulations shall come into force with effect from the date of approval of the CAA Board in its meeting 192nd held on 8th April, 2022.

2. AMENDMENT OF REGULATION 74:- In regulation 74, sub regulation (2), shall be omitted.

CIVIL AVIATION AUTHORITY INTERNAL JOB PLACEMENT REGULATIONS, 2014 (REVISED VERSION-2019)

REG-006-HRXX-2.0 - In exercise of the powers conferred by section 27 read with section 12 of the Pakistan Civil Aviation Authority Ordinance 1982, the Authority is pleased to make the following internal job placement regulations, namely:-

1. SHORT TITLE AND COMMENCEMENT:

(1) These Regulations may be called as the Internal Job Placement Regulations, 2014 (Revised Version-2019).

(2) These Regulations shall come into force at once.

(3) These Regulations shall apply to all employees of the Authority.

2. DEFINITIONS:

In these Regulations, unless there is anything repugnant in the subject or context:-

(1) **"Applicant"** means an employee of the Authority;

(2) "**Authority"** means the Authority constituted under Section 3 of the Ordinance;

(3) **"Employee"** means any person appointed by the Authority except other than on contract or deputation;

(4) **"Establishment"** means overall strength of posts of all cadre sanctioned by the Authority from time to time;

(5) "**Expert**" includes a recognized and accredited entity or person having the specialized skill, knowledge, resources etc. for the selection purposes;

(6) "**Integrity assessment**" includes formal assessment conducted by Human Resource Directorate's "Integrity Assessment Committee" established on commencement of these Regulations;

Explanation: *The integrity assessment shall be used as an integral part of the internal job placement for the purpose of selecting the most suitable and duly qualified employee for appointment to any existing post or on a new post created under the establishment.*

(7) "M**anpower requirement**" means specified number and category of employees required in the establishment for efficient performance of duties and functions entrusted by the Authority under the Ordinance, Rules and Regulations made there under;

(8) **"Placement**" means appointment of an existing employee from one post to another including transfer from one cadre to another;

(9) "**Test**" includes a written test, interview and any other mode of assessment and evaluation of an employee for selection process;

(10) **"Ordinance"** means the Pakistan Civil Aviation Authority Ordinance 1982;

(11) **"Regulations"** include all Regulations made under the Ordinance.

3. PROCEDURE FOR ASSESSING SELECTION REQUIREMENT:

(1) The Human Resource Directorate, in consultation with the concerned Directorate shall carry out an assessment for selection against posts falling vacant due to retirement or promotion of employees or upon creation of new post[s] by the Authority.

(2) Notwithstanding anything contained in clause (1) a Directorate / Head of Unit may upon request shall forward to the Human Resource Directorate, its manpower requirement with a reasonable justification.

(3) The Human Resource Directorate shall carry out a periodic assessment for appointment by selection process either on its own or in consultation with the concerned Directorate.

(4) Where the Human Resource Directorate is of the opinion that the appointment by selection under clause (1) and (2) is necessary for efficient working of the concerned Directorate, it shall without any delay seek the approval of the Authority.

(5) The appointing authority shall give immediate directions to the Human Resource Directorate in case there is an appointment requirement for operational posts.

(6) Subject to clause (4) and (5) the Human Resource Directorate shall, without any delay, commence the process of such selection.

4. PROCEDURE OF APPLICATION ETC:

(1) The advertisement relating to any post to be filled by selection process under these Regulation shall be made through the:-

a. intranet portal,
b. newsletter; or
c. memorandum issued for proper internal circulation; or
d. through the circular of the relevant Directorates to their respective units.

(2) The advertisement shall clearly include:-

a. the required eligibility criteria for such appointment;
b. the terms and conditions of acceptance and rejection of application;
c. verified degree or certificate by the concerned educational or technical institute or university;
d. the deadline for submission of application; and
e. any other details as prescribed by the Authority.

5. APPLICATION:

(1) All applications received on or before the prescribed or extended date, if any, shall be entered in the record in chronological order on its receipt by the Human Resource Directorate.

(2) In case of more than one post the Human Resource Directorate shall maintain a separate record for each post subject to the condition under clause (1).

(3) The Human Resource Directorate shall facilitate the online submission of applications. Provided that the interested applicant/employee may submit his application, electronically or through courier or postal service after giving prior intimation to the respective Directorates / Head of Units.

(4) All applicant / employees shall be allowed to give any additional information other than his service record.

(5) All applications shall be subject to screening process. After screening process, test and assessment of shortlisted applicants / employees shall be conducted by the Human Resource Directorate or/and any consultant hired for such selection purpose.

(6) The test results shall be compiled and declared by the Human Resource Directorate.

6. APPLICATION PROCESSING PROCEDURE:

(1) The Committee of Human Resource Directorate shall comprise a team of officials to examine all applications filed electronically or otherwise and assess if the applicant fulfills the criteria provided for in the advertisement / circular.

(2) An application shall not be considered unless the applicant / employee affirms and deposes at the time of filing the application that:-

a. all Performance Appraisement Reports or Performance Evaluation Reports have been sent to the reporting officer;
b. annual declaration of assets has been filed regularly;
c. the code of conduct has been read and signed;
d. no Performance Appraisal Report of the subordinate employee is pending;
e. no inquiry is pending beyond prescribed time limit;
f. certification of medical fitness has been provided; and
g. no disciplinary action is pending.

(3) The Committee of Human Resource Directorate shall review any application that is not in conformity with the criteria provided for in the advertisement / circular and the said applicant/employee may be given an opportunity to rectify the discrepancies, within a specified period of time.

7. INFORMATION FOR TEST AND INTERVIEW:

(1) The applicants / employees shortlisted subject to Regulation 5 shall be informed electronically or otherwise regarding the date and place of the test and interview, as may be fixed by the Human Resource Directorate.

(2) All applicants shall be under obligation to clear all tests that are specifically approved for such post in accordance with the job description in which one or more of the following skills of the applicant shall be assessed in order to determine the suitability of applicant for appointment on the post, namely;-

a. professional and technical knowledge, competence and assessment;
b. computer skills;
c. language skills (Urdu, English, and others as may be applicable);
d. knowledge of applicable laws;
e. communication skills, or; and
f. any other skill(s) as determined by the Human Resource Directorate from time to time.

(3) The test and assessment may be conducted by an external expert or the Human Resource Directorate.

8. INTERVIEW OF THE APPLICANT:

(1) Applicants shall be interviewed on such date and such place as determined by the Human Resource Directorate from time to time.

(2) The panel for interview shall be constituted by the appointing authority and shall include a representative of the Human Resource Directorate along with other panel members.

(3) The panel shall carry out the interviews in accordance with the criteria specified in the circular issued under Regulation 4, and the interview evaluation shall be made on a specified form duly approved from time to time.

9. INTEGRITY ASSESSMENT:

(1) Integrity assessment of applicants shall also be carried out independently and also through process of test and interview.

(2) The integrity assessment shall include where required a formal assessment conducted by the Integrity Assessment Committee, of an applicant in service of the Authority.

(3) The committee referred in clause (2) shall collect and verify information about any previous complaints, legal proceedings and any other evidence that may give rise to an opinion that the employee under consideration for the selection under these regulations does or does not possess the integrity.

(4) The final selection of an applicant shall be subject to result of integrity assessment report.

10. DECLARATION OF SUCCESSFUL APPLICANT:

(1) The Human Resource Directorate shall consolidate the record of the assessment of the applicants, which shall include test results, integrity assessment, interview results and scrutiny of Performance Appraisement Reports, etc.

(2) After completion of the assessment process, a list of successful applicants in the order of merit, shall be prepared and forwarded to the prescribed Selection Board for recommendation to the Competent Authority for the purpose of these Regulations.

(3) Provided that such list of applicants shall be deemed to be the recommendations of the prescribed Selection Board for such internal job placement.

(4) Applicants shall be selected for internal job placement, on the basis of merit list, against the available number of vacant posts or newly created posts by the Authority.

(5) The Human Resource Directorate shall notify the successful applicants in accordance with clause (4).

(6) Successful applicants may, if necessary, be provided with relevant training prior to their internal job placement, or on-the-job training after assuming the charge of the post, as the case may be.

11. MAINTENANCE OF APPLICANT DATABASE:

(1) The Human Resource Directorate shall maintain the records of successful applicants.

(2) The officials authorized by the Human Resource Directorate shall have access to the database.

(3) The Human Resource Directorate shall establish and maintain safe custody of following documents and personal profiles of employees namely:

a. bio-data (all personal details);
b. posting history;
c. qualification;
d. courses/ training;
e. seniority and disposition;
f. occupational achievements profile;
g. language details;
h. foreign visits;
i. spouse (including spouse employment) details of children;
j. other dependents, and
k. pay and allowances details. etc.

12. NO VESTED RIGHT AND PERIODIC EVALUATION, ETC:

Notwithstanding anything contained in these Regulations, the applicants / employees who have been declared successful in obtaining an internal job placement, shall not have any vested right to continue working against that post and their internal placement shall remain subject to the normal career progression and a regular ongoing periodic evaluation process.

13. NO VESTED RIGHT IN CASE OF LESS NUMBER OF POSTS:

Notwithstanding anything contained in these Regulations, the applicant, who is declared successful on the basis of written tests, interviews, integrity tests and Performance Appraisement Reports, may not be posted due to lack of sufficient number of vacancies or posts and shall have no vested right to be considered for the selected post or any other post.

14. REMEDIES FOR UNSUCCESSFUL APPLICANTS:

The applicant, who is declared unsuccessful or has any grievance in respect of the application of these Regulations, may opt any of the following remedies to redress his grievance, namely:-

a. apply for another placement; or
b. seek further training and apply for another internal job placement; or
c. accept a Golden Hand Shake Scheme (voluntary separation scheme), as prescribed by the authority; or
d. continue service on his existing post.

15. VALIDATION:

All selections and placement of employees duly made and procedures applied for pay, allowance and benefits prior to the commencement of these Regulations, pursuant to sanctions, grants and approvals given by the Authority shall be deemed to have been validly made and applied until varied or revoked.

INTENTIONALLY LEFT BLANK

CIVIL AVIATION EMPLOYEES (WORKING HOUR) REGULATIONS, 2014 (REVISED VERSION-2019)

REG-007-HRXX-2.0 - In exercise of the powers conferred by section 27 read with section 12 of the Pakistan Civil Aviation Authority Ordinance, 1982 (XXX of 1982), the Authority hereby makes the following regulations namely:-

1. SHORT TITLE, COMMENCEMENT AND EXTENT:

(1) These Regulations may be called the Civil Aviation Employees (Working Hour) Regulation, 2014 (Revised Version-2019).

(2) These Regulations shall come into force on the date as determined by the Authority.

(3) These Regulations shall apply to all employees and persons in the service of the Authority.

2. DEFINITIONS:

(1) In these Regulations, unless the context otherwise requires:-

a. **"Authority"** means the Authority constituted under Section 3 of the Ordinance;

b. **"Employees"** includes all persons in employment of the Authority;

c. **"Duty breaks"** means rest period, during duty hours, as specified by the Authority;

d. **"Working hours"** means the period of duty under the applicable duty roster or schedule;

e. **"Night duty"** means duty of not less than eight hours including a period between midnight and 5.00 am;

f. **"Shifts"** means any method of organizing work whereby employees replace each other at the same place of duty according to a set pattern over a given period of days or weeks;

g. **"Shift employee"** means an employee who performs duty in shifts;

3. WORKING HOURS:

(1) Subject to the exigencies of service, the Authority shall have the power to prescribe working hours of employees from time to time.

(2) The Authority may fix working hours of its employees in shifts or otherwise. An employee shall work for such duty hours as specified by the Authority.

(3) Notwithstanding anything contained in this Regulation, the Authority may order or call any employee for performance of any duty anytime in connection with its affairs / functions.

4. MAXIMUM WEEKLY WORKING HOURS:

(1) The Authority shall ensure that weekly working hours of an employee, including any overtime, does not exceed the limit of forty eight (48) hours.

(2) Notwithstanding the above the Authority may for any operational or technical reason require an employee to be engaged in continuous weekly work for a duration that does not exceed fifty six (56) hours including authorized rest and duty breaks.

5. DAILY REST AND DUTY BREAKS:

Subject to the nature of duty of its employees, the Authority may prescribe necessary daily rest and duty breaks[112].

6. LENGTH OF NIGHT DUTY:

The night duty of an employee shall not exceed eight (08) hours unless specified otherwise by the Authority.

7. EMPLOYEES TO PERFORM DUTY IN SHIFTS:

(1) An employee shall, as and when required by the Authority, perform duty in shifts strictly in accordance with the specified roster.

(2) No shift employee shall perform duty of more than eight hours unless authorized by the Authority.

8. DUTY ROSTER:

(1) Each location / unit shall display a duty roster, in respect of shift employees, issued by the Authority.

(2) A copy of the duty roster shall be, sent to the Airport Manager two days before its implementation and, emailed to the Human Resource Directorate.

(3) Any change in the duty roster shall be, notified to the Airport Manager and, emailed to the Human Resource Directorate.

9. DUTY REGISTER:

The Duty Terminal Manager / Shift In-charge shall maintain a duty register as specified by the Authority.

10. POWER TO AMEND REGULATIONS:

The Authority may amend or modify any or all provisions under these Regulations.

11. DELEGATION:

The Authority may delegate any or all its powers under these Regulations to any officer as it may deem appropriate.

[112] ATCO's duty breaks and daily rest as per ICAO standards for 24 hours operational airports / locations

ORDER

(Under Regulation 10)

REG-007-HRXX-2.0 - In exercise of the powers conferred under Regulation 10 of the Civil Aviation Employee's (Working Hour) Regulation, 2014 (Revised Version-2019), the Civil Aviation Authority vide its Board decision dated 01st August, 2019 is pleased to order delegation of its powers and functions to the Director General except the powers to modify or amend these Regulations.

It is further directed that the Director General may re-delegate any powers and functions to the concerned officer in a manner consistent with the provision of these Regulations.

Secretary of the Board

(Seal)